

RED BELTS

HUGH PENDEXTER

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RED BELTS



*“On the ground lay Elsie Tonpit, hurled there by a bandit,
a huge brute of a man, bending over her.”*

RED BELTS

BY
HUGH PENDEXTER



FRONTISPIECE BY
RALPH PALLER COLEMAN

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FOREWORD

In 1784 North Carolina's share of the national debt was a ninth, or about five millions of dollars—a prodigious sum for a commonwealth just emerging from a colonial chrysalis to raise. Yet North Carolina was more fortunate than some of her sister *débutantes* into Statehood, in that she possessed some twenty-nine million acres of virgin country beyond the Alleghanies. This noble realm, from which the State of Tennessee was to be fashioned, had been won by confiscation and the rifles of the over-mountain settlers and had cost North Carolina neither blood nor money.

The republic was too young to have developed coalescence. A man might be a New Yorker, a New Englander, a Virginian and so on, but as yet seldom an American. The majority of the Northern representatives to the national Congress believed the Union was full grown, geographically; that it covered too much territory already. To all such narrow visions the Alleghanies appealed as being the natural western boundary. These conservatives insisted the future of the country was to be found on the seaboard.

Charles III of Spain heartily approved of this policy of restriction and set in motion his mighty machinery to prevent further expansion of the United States. He knew the stimuli for restoring his kingdom to a world plane could be found only in his American possessions.

As a result of those sturdy adventurers, crossing the mountains to plunge into the unknown, carried with them scant encouragement from their home States or the central Government. In truth, the national Congress was quite powerless to protect its citizens. And this, perhaps, because the new States had not yet fully evolved above the plan of Colonial kinship. It was to be many years before the rights of States gave way to the rights of the nation. The States were often at odds with one another and would stand shoulder to shoulder only in face of a general and overwhelming peril.

Spain, powerful, rapacious and cunning, stalked its prey beyond the mountains. She dreamed of a new world empire, with the capital at New Orleans, and her ambitions formed a sombre back-curtain before which Creek and Cherokee warriors—some twenty thousand fighting men—

manœuvred to stop the white settlers straggling over the Alleghanies. These logical enemies of the newcomers were augmented by white renegades, a general miscellany of outlaws, who took toll in blood and treasure with a ferocity that had nothing to learn from the red men.

So the over-mountain men had at their backs the indifference of the seaboard.

Confronting them were ambuscades and torture. But there was one factor which all the onslaughts of insidious intrigue and bloody violence could not eliminate from the equation—the spirit of the people. The soul of the freeman could not be bought with foreign gold or consumed at the stake. Men died back on the seaboard, and their deaths had only a biological significance, but men were dying over the mountains whose deaths will exert an influence for human betterment so long as these United States of America shall exist.

The fires of suffering, kindled on the western slopes of the Alleghanies to sweep after the sun, contained the alchemy of the spiritual and were to burn out the dross. From their clean ashes a national spirit was to spring up, the harbinger of a mighty people following a flag of many stars, another incontestable proof that materiality can never satisfy the soul of man.

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RED BELTS

CHAPTER I

FROM OVER THE MOUNTAINS

WITH its sixty cabins and new log court-house Jonesboro was the metropolis of the Watauga country. The settlers on the Holston and Nolichucky as a rule lived on isolated farms, often entirely surrounded by the mighty forest. Outside the tiny communities along these three rivers the Western country was held by red men, wild beasts and beastly white renegades. There were no printing-presses, and it required thirty days for a backwoods horseman, familiar with the difficult mountain trails, to make the State capital five hundred miles away.

The Watauga region contained reckless and lawless men, and anarchy would have reigned if not for the summary justice occasionally worked by the backwoods tribunals. North Carolina did not seem vitally concerned about her children over the mountains. Perhaps "step-children" would more nearly describe the relationship, with the mother State playing the rôle of an indifferent dame.

On a July morning in 1784 the usual bustle and indolence of Jonesboro were in evidence. Men came and went in their linsey trousers and buckskin hunting-shirts, some for the fields, some for the chase. A group of idlers, scorning toil, lounged before the long log tavern kept by Polcher, quarter-blood Cherokee and whispered to be an agent of the great Creek chief, McGillivray.

The loungers were orderly enough, as a rule, almost secretive in their bearing. Plotting mischief to be carried out under the protection of night, honest men said. Polcher seemed to have complete control of this class, and more than one seriously minded settler in passing scowled blackly at the silent group.

On this particular morning, however, Lon Hester was disturbing the sinister quiet of the tavern with his boisterous manners and veiled prophecies. He held an unsavoury reputation for being strangely welcome among hostile Cherokees, even free to come and go among the

“Chickamaugas”—renegade Cherokees, who under Dragging Canoe had withdrawn to the lower Tennessee to wage implacable war against the whites.

Polcher followed him anxiously from bar to door and back again, endeavouring to confine his loose tongue to eulogies on the rye whisky and the peach and apple brandy. The other habitués saw the tavern-keeper was deeply worried at Hester’s babblings, yet he seemed to lack the courage to exert any radical restraint.

“Got Polcher all fussed up,” whispered one with a broad grin.

“He carries it too far,” growled another.

Hester, reckless from drink, sensed his host’s uneasiness and took malicious delight in increasing it. Each time he came to the door and Polcher followed at his heels, his hands twisting nervously in the folds of his soiled apron, he would wink knowingly at his mates and say enough to cause the tavern-keeper to tremble with apprehension.

This baiting of the publican continued for nearly an hour, and then Hester’s drunken humour took a new slant. Reaching the door, he wheeled on Polcher and viciously demanded:

“What ye trailin’ me for? Think I’m only seven years old? Or be ye ’fraid ye won’t git yer pay?”

“Now, now, Lon! Is that the way to talk to your old friend?” soothed Polcher, fluttering a hand down the other’s sleeve. “There’s some fried chicken and some bear meat inside, all steaming hot and waiting for you.” Then, dropping his voice and attempting to placate the perverse temper of the man by adopting a confidential tone, he whispered, “And there’s things only you and me ought to talk about. You haven’t reported a word yet of all that Red Hajason must have said.”

With a raucous laugh Hester openly jeered him, crying:

“It’s ye’n me, eh? When I quit here, it was ‘Ye do this’ an’ ‘Ye do that.’ Now we must keep things away from the boys, eh? ——! When I git ready to talk to ye, I’ll let ye know. An’, when I bring my talk to ye, mebbe it won’t be me that’ll be takin’ the orders.”

“I’ve got some old apple brandy you never tasted,” murmured Polcher, trying to decoy him inside.

“Ye’re a master hand to keep things to yerself,” retorted Hester, readjusting a long feather in his hat. “But mebbe, now I’ve made this last

trip, the brandy will be 'bout the only thing ye can hoot 'bout as bein' all yer own."

Several of the group grinned broadly, finding only enjoyment in the scene.

The majority, however, eyed the reckless speaker askance. They knew his runaway tongue might easily involve them all in a most unwholesome fashion. Polcher's saturnine face suddenly became all Indian in its malevolent expression, but by a mighty effort he controlled himself and turned back into the tavern.

Hester glanced after him and laughed sneeringly. As he missed the expected applause from his mates, his mirth vanished, and dull rage filled his bloodshot eyes as he stared at the silent men and saw by their downcast gaze that he was rebuked. Standing with hands on his hips, he wagged his head until the feather in his hat fell over one ear. In the heraldry of the border the cock's feather advertised his prowess as a man-beater, insignia he would retain until a better man bested him in the rough-and-tumble style of fighting that had left him cock-of-the-walk.

"What's the matter with ye all?" he growled, thrusting out his under lip. "Don't like my talk, eh? Ye're lowin' I oughter be takin' orders from that sand-hiller in there? Well, I reckon I'm 'bout done takin' any lip from him. Ye'll find it's me what will be givin' orders along the Watauga mighty soon if—"

"For Gawd's sake, Lonny, stop!" gasped a white-bearded man.

"Who'll stop me?" roared Hester, leaping from the doorway and catching the speaker by the throat. "Mebbe ye 'low it's ye who'll do the stoppin', Amos Thatch, with yer sly tricks at forest-runnin'. Who ye workin' for, anyhow? Who gives ye orders? — yer old hide, I reckon ye're tryin' to carry watter on both shoulders."

"Don't, Lonny!" gasped Thatch, but making no effort to escape or resent the cruel clutch on his throat. "Ye're funnin', I know. Ye know I'm workin' same's ye be."

"Workin' same as ye be, eh? Ye old rip! Fiddlin' round in the same class that ye be, eh?"

"Don't choke me! Let's go inside an' have a drink. Too many ears round here. Too near the court-house."

With a wild laugh Hester threw him aside and derisively mocked:

"Too near the court-house, is it? Who cares for the court-house?"

And he grimaced mockingly at the figure of a man busily writing at a rough table by the open window. Then, believing he must justify his display of independence, he turned to the group and with drunken gravity declared:

“The time’s past, boys, when we have to hide an’ snoop round. There’s a big change comin’, an’ them that’s got the nerve will come out on top. The time’s past when court-houses can skeer us into walkin’ light when we feel like walkin’ heavy. I know. I’ve got news that’ll—”

“Now, shut up!” gritted Polcher, darting out the door and whipping a butcher-knife from under his apron. “Another word and I’ll slit your throat and be thanked by our masters.”

As Hester felt the knife prick the skin over his Adam’s apple, his jaw sagged in terror. Sobered by the assault, he realized he had gone too far. Instantly the loungers crowded about him to prevent outsiders from witnessing the tableau. Old Thatch whispered:

“He’s dirty drunk. ‘Nolichucky Jack’ must ’a’ heard some of it. I seen him stop writing and cock his ear.”

“To —— with Chucky Jack!” Hester feebly defied. “I ain’t said nothin’.”

“If you had finished what you’d begun, you’d never said anything more,” hissed Polcher. “You can drink your skin full every hour in the day, and that’s all right. But you’ve got to keep your trap closed. I’ve tried soft means, and now I’m going to rip your insides out if you don’t keep shut.”

Hester glanced down at his own bony hands and the long finger-nails, pared to points for the express purpose of scooping out an opponent’s eyes, then shifted his gaze to the grim faces of his companions. He read nothing but indorsement for Polcher.

“I can’t fight a whole crowd,” he jerkily admitted.

“You don’t have to fight none of us,” warned Polcher, lowering the knife and hiding it under his apron. “All you’ve got to do is to fight yourself, to keep your tongue from wagging. You say you’ve brought something. Is it for me?”

“No, it ain’t for ye,” sullenly retorted Hester, his small eyes glowing murderously.

“Then keep it for the right man. Don’t go to peddling it to Chucky Jack and all his friends,” said Polcher.

Glimpsing a stranger swinging down the brown trail that answered for the settlement’s one street, he motioned with his head for the men to pass inside. To mollify the bully he added—

“You understand, Lon, it’s yourself as much as it’s us you’ll be hurting by too much talk.”

“It’s that last drink of that——peach brandy,” mumbled Hester. “I’ll stick to rye after this. I can carry that.”

“Now you’re talking like a man of sense,” warmly approved Polcher, clapping him heartily on the shoulder. “Lord, what fools we all be at times when we git too much licker in. The boss combed me once till I thought he was going to kill me just because I got to speaking too free. Now let’s join the boys and try that rye.”

Outwardly amiable again, Hester followed him indoors; deep in his heart murder was sprouting. He knew Polcher wished to pacify him, and this knowledge only fanned his fury higher. And he knew Polcher had lied in confessing to babbling, for the tavern-keeper’s taciturnity, even when he drank, was that of his Indian ancestors.

The whisky was passed, Polcher jovially proclaiming it was his treat in honour of Hester’s return from somewhere after a month’s absence. Hester tossed off his portion without a word, now determined not to open his lips again except in monosyllables. Old Thatch sought to arouse him to a playful mood with a chuckling reminder of some deviltry he had played on a new settler over on the Holston. But even pride in his evil exploits could not induce Hester to emerge from his brooding meditations.

For the first time since he had won the right to wear the cock’s feather he had been backed down—and, at that, in the presence of the rough men he had domineered by his brutality. Of course it was the knife that had done it, he told himself, and yet he knew it was something besides the knife. If Old Thatch had held a knife at his throat, he would have laughed at him. No, it wasn’t that; it was the discovery that there dwelt in Polcher’s obsequious form a man he had never suspected. The knowledge enraged while subduing him. He recalled former insolences to the tavern-keeper, his treatment of him as if he were a humble servitor.

It was humiliating to know that, while he was sincere in his behaviour, Polcher had played a part, had tricked him. He knew that Polcher would gladly have him resume the rôle of bully, swear at him and treat him with disdain. He had no doubt but that Polcher would meekly submit to such browbeating. But never again could he play the bully with Polcher, and all this just because he understood how Polcher had fooled him by submitting

in the past. This was gall to his little soul. The man he had looked down upon with contempt had been his master all along.

His smouldering rage was all the more acute because he had believed he had been the selected agent in mighty affairs; whereas, he had acted simply as a messenger. On entering the settlement early that morning he had smiled derisively at beholding the tavern and the usual group before the door. He had supposed himself miles above them in the secrets of the great game about to be played. Now his self-sufficiency was pricked and had deflated like a punctured bladder.

Being of cheap fibre, Hester had but one mental resource to fall back upon: the burning lust to re-establish himself in his own self-respect by killing Polcher. He had been grossly deceived. He had been permitted to believe—nay, even encouraged to believe—the breed was only the vintner to the elect. It was while wallowing in the depths of this black mood that the sunlight was blocked from the doorway by the arrival of the stranger Polcher had glimpsed up the trail.

The newcomer paused and waited for the sunshine to leave his eyes before entering the long and dimly lighted room. His hunting-shirt was fringed and tasseled and encircled by a bead-embroidered belt. From this hung a war-ax, severe in design and bespeaking English make. His long dark hair was topped with a cap of mink-skin. In his hand he carried the small-bore rifle of the Kentuckians. The loungers drew aside to both ends of the bar, leaving an open space for him. He took in the room and its occupants with one wide, sweeping glance; hesitated, then advanced.

It maddened Hester to observe how servilely Polcher leaned forward to take the stranger's order. The other men, seemingly intent on their drink, quickly summed up the newcomer. A forest-ranger fresh from Kentucky. He stood nearly six feet in his moccasins and carried his head high as his grey eyes ranged deliberately over the two groups before returning to meet the bland gaze of Polcher.

In a drawling voice he informed—

“A little whisky.”

“You've travelled far, sir,” genially observed Polcher, his Indian blood prompting him to deduce a long, hard trail from the stained and worn garments. “That beadwork is Shawnee, I take it.”

“It was once worn by a Shawnee,” grimly replied the stranger. “Lost my horse a few miles back and had to hoof it afoot.”

“Virginy-born,” murmured Polcher.

“Yes, I’m from old Virginy,” proudly retorted the stranger, tossing up his head. “A mighty fine State.”

“Quite a number of ye Virginians seem keen to git clear of her mighty fine State an’ come down here to squat on North Car’lina land,” spoke up Hester, his insolent half-closed eyes advertising mischief.

The newcomer slowly turned and eyed him curiously and smiled faintly as he noted the cock’s feather. And he quietly reminded:

“The first settlers on the Watauga were Virginians. When they came here fourteen years ago, they reckoned they was on soil owned by Virginy. I don’t reckon North Car’lina lost anything by their mistake.” He threw off his drink and proceeded to deliver himself of the sting he had held in reserve. “From what I hear, the Sand-hillers didn’t care to come over the mountains and face the Indians till after the Virginians had made the country safe.”

The two groups of men shifted nervously. Hester’s eyes flew open in amazement, then half-closed in satisfaction.

“The——they had to wait for Virginy to blaze a trail!” he growled, slowly straightening up his long form and tipping his hat and its belligerent feather down over one eye. “An’ where was ye, mister, when the first brave Virginians kindly come over here to make things safe for North Car’lina?”

“I was eleven years old, shooting squirrels in Virginy,” chuckled the stranger.

“An’ wearin’ a Shawnee belt! Who give it to ye?”

“The warrior who was through with it when I got through with him. It happened up on the Ohio,” was the smiling response. “Anything else you’d like to ask?”

“Killed a Injun, eh?” jeered Hester. “That’s easy to tell. Sure ye ain’t the feller that licked the Iroquois all to thunder? No one here to prove ye didn’t, ye know.”

Toying with his empty glass, the stranger again surveyed Hester, much as if the bully were some strange kind of insect. He grimaced in disgust as he observed the long, pointed finger-nails. “One thing’s certain,” he drawled, “you never fought no Iroquois, or they’d have them talons and that hair of yours made into a necklace for some squaw to wear. Just what is your fighting record, anyway?”

“I ain’t never been licked yet by anything on two kickers atween here an’ the French Broad,” bellowed Hester, slouching forward, his hands held half open before him. Then he flapped his arms and gave the sharp challenge of a gamecock. “I’m Lon Hester, what trims ’em down when they’re too big an’ pulls ’em out when they’re too short.” And again he sounded his chanticler’s note.

“I’m Kirk Jackson, from the Shawnee country, and I reckon it’s high time your comb was out,” was the even retort.

“Just a minute, gentlemen,” purred Polcher, with a wink at Hester. “Fun’s fun, but, when you’re armed with deadly weapons, you might carry a joke too far. Before you start fooling, let’s put all weapons one side.”

Jackson’s brows contracted, but, as Hester promptly threw a knife and pistol on the bar, the Virginian reluctantly stood his rifle against the wall and hung his belt on it. It was obvious he was regretting the situation. Hester read in it a sign of cowardice and crowed exultingly. For a moment Jackson stood with his gaze directed through the open door. Hester believed he contemplated bolting and edged forward to intercept him. What had attracted Jackson’s gaze, however, was the slim figure of a girl on horseback, and, as he stared, she turned and glanced toward the tavern, and his grey eyes lighted up with delighted recognition.

“Take yer last peep on natur’, ’cause I’m goin’ to have both of ’em,” warned Hester, hitching forward stiff-legged, his hands held wide for a blinding gouge.

“You dirty dog!” gritted Jackson, his soul boiling with fury at the brutality of the threat.

With a spring Hester leaped forward, his right hand hooking murderously close to the grey eyes. Jackson gave ground and found himself with his back dangerously close to the group at the end of the room. He could feel the men stiffening behind him, and he believed they would play foul if Hester needed assistance. As Hester made his second rush, Jackson worked with both elbows and knocked two men away from his back, sending one reeling against the wall, the other against the bar.

Then he leaped high, his legs working like scissors, feinting with his left foot and planting the right under the bully’s chin, smashing the long teeth through the protruding tongue and hurling him an inert mass against the base of the bar.

“No kickin’!” yelled Old Thatch, pulling a knife.

“You played foul!” roared Polcher, his suave mask dropping and leaving his dark face openly hideous. “Shut that door, boys!”

The men at the upper end of the bar rushed to the door and not only closed it but appropriated Jackson’s rifle and belt. There was a stir behind him, and Jackson leaped to the end of the bar just vacated by the men. Here he wheeled and snatched a five-gallon jug of brandy from the bar and swung it high above his head. Then planting a foot on Hester’s chest he warned:

“The first move made means I’ll brain this dog at my feet and then damage the rest of you as much as I can.”

Polcher and his henchmen stood motionless, wrathfully regarding the man at bay.

“You broke the rules by kicking,” said Polcher.

“Rules, you miserable liar and scoundrel!” hissed Jackson. Then in a loud voice, “Open that door and stand clear, or I’ll smash this punkin at my feet and rush you.”

“One minute!” softly said Polcher. And he whipped a long pistol from under the bar and levelled it at Jackson. “You set that jug on the bar and do it soft-like. You’ve played foul with my friend. He’s going to have a fair shake at you.”

“Just let me git at him!” sobbed Hester from the floor. “That’s all I ask, boys.”

“Before you can move that jug an inch, I’ll shoot your head off,” warned Polcher. “Put the jug down and step to the middle of the floor. No one will meddle while Mr. Hester has a fair chance.”

“Fair chance? You low-down murderers! Shoot and be——!”

“I’ll count three—then I’ll shoot. There’s witnesses here to say you come in drunk and hellin’ for a row and got it. One—two—”

“Drop that pistol, Polcher!” called a voice at the window.

The tavern-keeper glanced about and paled as he beheld the muzzle of a long rifle creep in over the sill and bear upon him.

“If you’d said three, it would have been your last word on earth.”

Polcher lowered his weapon but protested:

“Look here, Sevier, this stranger has assaulted one of my patrons. I propose to see they fight it out man-fashion.”

“A man-fashion fight is a bit beyond your imagination,” was the grim reply. “Have that door opened and see the stranger’s rifle is stood outside. Be quick!”

Polcher nodded to Old Thatch, who threw back the door and passed the rifle and the belt. Jackson tingled with a fresh shock as he glimpsed a slim brown hand receiving the weapons. Then Sevier commanded:

“Now, young man, come out. If you want to be murdered, there’s a rare chance for you anywhere along the border without entering this hell-hole. Remember, Polcher, you’re a dead man if a hand is raised against this guest of yours.”

Jackson sprang through the door and closed it after him. The girl he had seen passing the tavern at the inception of the brawl was waiting for him.

“Elsie!” he whispered, relieving her of his weapons. “I’ve just come from Charlotte, where I went to find you.”

She was as fair as he was dark, and her blue eyes glistened as he addressed her. Then she sighed, and an expression of sadness overclouded her small face.

“I saw you for a second,” she faltered. “It seemed impossible it could be you. I knew you would have trouble when I saw them close the door. I left my horse and called Mr. Sevier. Kirk, I’m glad to see you—and I’m sorry you came.”

John Sevier, or Chucky Jack, as he was commonly called after the Nolichucky River he lived on, stepped round the corner of the tavern before Jackson could reply to the girl’s contradictory statement and brusquely called out:

“Come along, Miss Tonpit. And you, sir; this is no place for an honest man to linger in.”

“I owe you thanks. I’ll try to thank you later,” said Jackson. “I find Miss Tonpit is an old acquaintance—an old friend—I’ll walk home with her.”

The girl cast a swift glance at Sevier and faintly shook her head. Sevier tucked his arm through Jackson’s and quietly insisted:

“You must come with me now; Miss Tonpit is perfectly safe—perfectly safe.”

To Jackson’s amazement the girl flushed, then turned pale and ran to where her horse was tied to a tree.

“—— it, man! Virginians don’t leave such matters to chance,” cried Jackson, tugging to release his arm. “The young lady should be escorted

home. This seems to be a desperate community.”

“I, too, am a Virginian,” Sevier calmly reminded, tightening his hold on the other’s arm. “And I know the community better than you do.” There was a peculiar hardness in his voice as he added, “Miss Tonpit is perfectly safe in any part of the Watauga settlements at any time of day or night, providing her identity is known.”

Jackson stared savagely into Sevier’s face and hoarsely demanded—

“Just what do you mean by that?”

“Nothing to her hurt, God bless her!” was the ready response. “But this is no place to talk. If there was an ounce of courage to go with the ton of hate back in the tavern, we’d both be riddled with bullets before this. Step over to the court-house where we can talk.”

“But, Miss Tonpit? She lives near here? I shall have a chance to see her again?”

And Jackson held back and gazed after the girl, who was now cantering up the trail towards the foot-hills.

“Every opportunity, I should say,” assured Sevier, leading the way into the court-house. “Now suppose you give an account of yourself. I’m sort of a justice of the peace here. We’re hungry for honest men, God knows. I believe you’ll fit in with the court-house crowd rather than with the tavern crowd.”

“But Elsie? Miss Tonpit?”

“Your story first,” Sevier insisted, seating himself at the table and motioning Jackson to a stool fashioned from a solid block of cedar.

Jackson surrendered and rapidly narrated:

“I’m Kirk Jackson, Virginian. I met the Tonpits in Charlotte a little over a year ago and fell in love with Miss Elsie. I must confess my suit didn’t progress as I had hoped. I think her father was opposed. I can’t blame him. Major Tonpit’s daughter can look higher than a forest-ranger. Anyway, I went back to the Ohio country, where I had served under George Rogers Clark. I’m just back from there. Absence had renewed my courage.

“I hurried back to Charlotte and learned the major had moved over the mountains. My informant didn’t know whether he had made his new home in the Watauga district or on the Holston. I saw and recognized her just as that brute in the tavern was preparing to tear my eyes out. Now tell me what you meant by saying she is safe anywhere hereabouts, providing her identity is known.”

Sevier drummed the table and frowned. Then he explained:

“John Tonpit, according to all indications, holds the whip-hand over these scoundrels here. They serve him, I believe.”

“Good heavens!” Jackson weakly exclaimed. “Major Tonpit, proud to arrogance—having truck with those scoundrels?”

And he wondered if this were the girl’s reason for pronouncing his quest of her as hopeless. Then he rallied with the buoyancy of youth. If the only barrier between them was some sinister business of her father’s, he would overcome it, although great be her pride.

“Can’t you tell me something more definite?”

Sevier tapped a document on the table and replied:

“This is a petition I’m about to send to Governor Martin. North Carolina is dumping criminals and trash upon us, and we’re asking for a superior court to handle their cases. The Creeks, under Alexander McGillivray, are working day and night to get the Cherokees to join them in a decisive war against all settlers on the Watauga, the Holston and the French Broad. The petition asks for power to raise militia and for officers to lead the men.”

“But how does Major Tonpit come into this?” broke in Jackson. “Tavern brawlers and hostile red men!”

“I’m coming to that, if there is any that. The Creeks have made a secret treaty with Spain. McGillivray pledges twenty thousand warriors towards exterminating the Western settlements.”

“But you can’t know that for a fact.”

“You’ve been away the last year. You’re out of touch with affairs. The treaty was signed at Pensacola, June first, by McGillivray on behalf of the Creek Nation and by Don Estephan Miro, Governor of West Florida and Louisiana, on behalf of Spain.”

Jackson was nonplussed by this intelligence. He gazed in silence at the man across the table, whose words were building a mighty barrier between him and the girl. Sevier’s handsome face softened in sympathy. He was a tall, fair-skinned man with an erect carriage, and his slender figure well set off the hunting-shirt he invariably wore. Eager and impulsive by nature, he was now holding himself in restraint because he knew his revelations were so many blows at the young ranger’s happiness.

“The major fits into all this. Spain and the Creeks?” Jackson faintly asked.

“So I firmly believe. There is one flaw in the chain—the Cherokees. For, while McGillivray has pledged twenty thousand braves, his Creeks can’t furnish any such a number of fighting men. There are a few thousand Seminoles he can get, but unless he lines up the Cherokee Nation he has promised more warriors than he can call to the war-path. One of the principal chiefs of the Cherokees, Old Tassel, is holding off. He controls three thousand warriors. He wants his lands back, but he wants to get them by peaceful measures.

“Major Tonpit has great influence with Old Tassel. Could he swing him for a war against us, not only would his three thousand fighting men be added to McGillivray’s total, but the rest of the Cherokee Nation, now hesitating, would gladly rush in. Major Tonpit may supply the link to complete the chain. It will be the weakest link in the chain, yet absolutely necessary for McGillivray’s success.”

“Tonpit a schemer for Spain!” gasped Jackson.

Sevier frowned, then shrugged his shoulders and corrected:

“Scarcely a schemer. He isn’t cold-blooded enough for that. For a schemer you need a man of Polcher’s cool mind. Tonpit is flattered by attentions from royalty. He loves royalty. His head is in the clouds of personal ambition. He sees himself a dictator of a mighty province reaching from the Alleghanies to the Mississippi. If put in as royal governor he would rule supreme, he believes.

“I became suspicious when he gave up his comfortable home in Charlotte and went to the State capital and then came out here and made his home. Since being here, he has informed Governor Martin that the Indians are friendly and desire peace but that our settlers persist in stealing their lands and abusing them. This has won him the friendship of Old Tassel. Every talk Tassel has sent to the governor has been carried by Tonpit.”

“That’s bad!” cried Jackson. “But I can’t make myself believe he deliberately plots for Spain. Even in the national Congress men are expressing different views as to what shall be done with the region west of the mountains.”

“True. And Major Tonpit takes the views of Charles III.”

“But he may be friendly with Old Tassel and yet not be working with the Creeks,” persisted Jackson, trying to find something favourable to say in behalf of Elsie’s father.

“I know he is hand in glove with McGillivray,” solemnly declared Sevier. “I know McGillivray looks on him as a man of insane ambitions but lacking balance. I know McGillivray even now is holding back from war only because he is not quite satisfied that Tonpit will live up to his agreements. It isn’t the major’s heart or courage he doubts, but his lack of balance. Once he gets what he believes to be a firm hold on Tonpit, you’ll see things begin to hum along the Holston and the Watauga.”

Jackson shifted the trend of conversation, seeking to find a weak spot in Sevier’s hypothesis.

“After all, McGillivray’s probably over-rated. I never saw an Indian yet who could plan a campaign and stick to it,” he hopefully said.

Sevier smiled ruefully.

“You don’t know Alexander McGillivray, who calls himself ‘Emperor’ of the Creek Nation. His father was Lachlan McGillivray, a Scotch trader. His half-breed mother was of a powerful family of the Hutaigalgi, or Wind clan. Her father was a French officer. McGillivray was educated at Charleston and studied Latin and Greek as well as the usual branches. He’s a partner in the firm of Panton, Forbes and Leslie in Pensacola. Naturally that firm has a monopoly of the Creek trade. He’s shrewd as a Scotchman, has the polish of a Frenchman and is more cunning than any of his Indians. He is an educated gentleman according to English standards. He lives up to his title of ‘Emperor.’ I must say this for him: he’s kind to captives and honestly tries to do away with the usual Indian cruelties.

“Now to return to my petition to show where we fit in. It’s Old Tassel’s deadly fear of the Watauga riflemen as much as his desire for peace that is holding him back. And, if he should die, his three thousand warriors would flock to McGillivray at once. The renegade Cherokees, who call themselves Chickamaugas, are impatient to take the path. As things are turning out, my riflemen aren’t enough. They’ve served without pay. The new settlers demand pay. We must have power to raise and equip militia.”

“I begin to understand,” Jackson sadly admitted. “This Polcher? He must be active in anything evil.”

“He’s cunning. His tavern is where messages are brought and relayed on. If word comes to Tonpit, it is left at the tavern and sent secretly. Look here, young man! Perhaps I’ve talked more freely than I should. You’re in love with Miss Elsie, and you’d be a fool if you weren’t. But that naturally makes you wish to see things that exonerate the major. Wander round and

see and hear for yourself. In a few days, maybe, I'll feel like telling you something else. Only remember this: Elsie Tonpit hasn't a better friend west of the Alleghanies than John Sevier. By heavens! I'm a better friend to her than her father is!"

He clamped his lips together and began rereading the petition.

Jackson studied the strong visage with new interest. Sevier's face reminded him strongly of Washington's in its Anglo-Saxon lines of determination. But there was also a certain mobility of expression, a mirroring of emotions, which came from his French blood. He was a Virginian, and the young ranger had heard his fame echoing up and down the lonely Ohio. As Nolichucky Jack—usually clipped to Chucky Jack—his name was reputed to be worth a thousand rifles when he took the field against the red men.

But it puzzled Jackson to understand how this man, a gentleman born and bred, could have left the solid comforts of his home at Newmarket in the beautiful valley of the Shenandoah, thrust behind him positive assurances of great political advancement, cast off the social prominence he so naturally graced and bring his Bonnie Kate to the lonely country of the Nolichucky.

Jackson's material mind had taught him that one fought Indians because one must, not from choice. A beautiful and devoted wife and ample fortune appealed to the young ranger as being the goal in life. It never entered his process of reasoning that Destiny transplants men to obtain results, just as Nature supplies seeds with methods of locomotion so that new regions may be fructified. The vital incentive for Jackson's admiration for the man was not his sacrifices but rather his knowledge that Chucky Jack had invented a new style of forest-fighting.

He could not know that in his lifetime a certain Corsican would utilize the same tactics in overrunning Europe: namely, the hurling of a small force with irresistible momentum and the achieving of greater results thereby than by the leisurely employment of large bodies of soldiery. The border already rang with the victories of Chucky Jack, who was to fight thirty-odd battles with the red men and never suffer a defeat; whose coming to the Watauga country marked the passing of defensive warfare and instituted the offensive.

"Yes, it's natural that you should try to think leniently of Major Tonpit," murmured Sevier without raising his eyes from the petition.

Jackson flushed and coldly replied:

"I am a Virginian, first and last. I have nothing to do with the Spanish King."

"We soon must begin to call ourselves Americans—if we wouldn't bend the knee to Spain," gently corrected Sevier with a whimsical smile.

"Of course," agreed Jackson. "We're all Americans now. But first we are Virginians, I take it."

Sevier rose and stood at the window and stared thoughtfully across the valley and spoke as one repeating articles of faith in the privacy of his chamber:

"Virginians when we were colonials, but now Americans first and last—if this republic is to endure. If this union of States is to last, we must forget our former identity; we must be merged in one compact body and be known as Americans. Well, well. It will all come some day, please God!"

He broke off and leaned from the window and called out:

"Ho, Major Hubbard! Step here a minute."

Jackson saw a tall figure in forest dress turn in the trail leading to the woods. As the man came toward the court-house, he beheld a dark, gloomy face, a countenance he could never imagine as being lighted with a smile. Hubbard came up to the window, and Sevier said:

"Mr. Jackson, step here, please. Meet Major James Hubbard. Major, this is Kirk Jackson, fresh from the Shawnee country and come to live with us."

Hubbard's face glowed with passion, and he clutched Jackson's hand fiercely and cried:

"The Shawnees! I envy you your chance, sir."

Sevier gently nudged Jackson to stand aside and, leaning from the window, muttered:

"Major, times are ticklish. Any little break will mean ruin to many cabins. Remember!"

Hubbard made some reply inaudible to Jackson. In a freer tone Sevier asked—

"What is the latest news?"

"That —— mixed-blood, John Watts, and his Chickamaugas have gone to water. They'll be raiding the French Broad and Holston next."

Sevier pursed his lips musingly and said:

"We must have more men, more arms and money. North Carolina must act on my petition."

Hubbard laughed harshly and sneered:

“Why should they give money when you’ve always been ready to foot the bills? Ask them for money, and they’ll tell you that the Indians—curse them, curse them—are friendly and much abused. And they’ll leave you to pay the shot.”

“I can’t pay again. I’ve spent my all,” Sevier quietly answered. “But I’m hopeful the State will show common sense. North Carolina must realize we’re no longer able to handle the criminals pouring over the mountains without courts; that we’re unable to stand off the Creek Nation once the Cherokees join it. Old Tassel can’t always hold his three thousand in check.”

“His chiefs rebel. Many of his young warriors are stealing away to go to water and follow Watts,” was the gloomy response.

A few words more and Hubbard returned to the trail and struck off for the forest. Sevier stood and looked after him uneasily. Wheeling about, his face betrayed his anxiety and prompted Jackson to ask:

“What’s the matter with him? Any relation to Hubbard, the Injun-killer, we heard about up on the Ohio?”

“He is the killer. He’s killed more Cherokees than any other three men on the border. His family was wiped out by Shawnees back in Virginia. You can’t make him believe any Indian should be allowed to live. And he worries me. Now he’s off to scout the forest. It only needs the killing of an Indian or so to explode the powder under our feet. Huh! I wish he had not gone.”

“He had news?”

“Nothing more than we’ve suspected for a year. John Watts is always ready to take the path. He’s the shrewdest of the Cherokee leaders. If Old Tassel loses his grip or should decide that peace doesn’t pay—”

His French blood found expression in an outward gesture of the hands as he dropped down at the table.

Toying with the petition and speaking his thoughts aloud, he ran on:

“But Major Hubbard wants war. He’s inclined to look on the dark side of things. Tush! The State by this time realizes what we’ve won for her without an ounce of help. Pure selfishness will compel the Legislature to send us the necessary aid. Ha! There’s news, by heavens! The Cherokees must have struck!”

It was the distant clatter of flying hoofs. Sevier dropped through the window with Jackson at his heels. Polcher and his henchmen were piling from the tavern and staring toward the mountains. Some one was riding at top speed from the east.

Although the rider might be bringing the fate of a continent, Jackson's first interest was in a man and woman cantering up the trail from the opposite direction. Instead of watching for the furious rider, he had eyes only for the two. The man was tall and gaunt and of haughty bearing, his sharp, cold face swinging from side to side as if he were the master riding among slaves. The girl was his daughter, Elsie Tonpit. The young Virginian forgot the approaching messenger and ran toward the couple, his heart beating tumultuously.

To his glad surprise Tonpit greeted him with a shadowy smile and stretched out a hand in welcome. The girl, however, betrayed symptoms of alarm instead of being pleased by her father's attempt at cordiality. She even sought to evade the fond gaze of her lover and glanced apprehensively toward the court-house. Jackson knew in a moment that she felt shame for what she believed Sevier had told him.

"When Elsie informed me you were in Jonesboro, Mr. Jackson, I set out to find you," Tonpit now delighted the young man by saying.

"I have to thank her and Sevier for rescuing me from a ridiculous position," he blurted out and then bit his tongue for having uttered the words.

"Ha! How is that?" coldly demanded Tonpit, but with his gaze seeking a glimpse of the rider, now well among the cabins.

"The men in the tavern were taking advantage of their numbers," quickly spoke up the girl. "The man called Hester was the ringleader, I should say."

"This is the first time you've said anything about it," murmured her father, his eyes now lighting as they focussed on the bobbing figure of the horseman.

"It only needed Mr. Sevier's command to relieve Mr. Jackson of any embarrassment," she awkwardly explained.

Tonpit's thin visage grew cold with hate.

"I and my friends refuse to be beholden to this man Sevier," he harshly warned.

And, touching spur to his mount, he beckoned the girl to follow him and darted toward the tavern. With one backward glance she rode after him.

Jackson ran forward, as did Sevier, as the rider reined in before the tavern door and wearily dismounted. From all quarters came the settlers and their families. Polcher brought out a pitcher of brandy, and the messenger drank deeply. Then jumping on a horse-block he waved a paper in his hand and cried out—

“For Chucky Jack!”

“Here!” called Sevier from the edge of the crowd.

The missive was tossed into his outstretched hand. As he was breaking the seal, the messenger drew a deep breath, waved his arms for silence and shouted—

“North Carolina has ceded us to the central Government to pay for her part of the war debt!”

CHAPTER II

THE DEAD ARE DANGEROUS

WITH a low word for his daughter to follow him Tonpit backed his horse clear from the crowd and spurred away. For sixty seconds the astounded gathering remained motionless. Sevier stared incredulously at the message, while his neighbours gazed stupidly at the dusty messenger. All felt as if they had been abandoned in the wilderness without shelter or means of self-defence. True, the over-mountain men had always fought their own way and financed their own campaigns, yet in the back of their minds was ever the thought that, should a crisis come, the mother State must aid them.

That a crisis was imminent was evidenced by Chucky Jack's open mention of his petition for soldiers. Chucky Jack was worth many riflemen and had whipped the Indians many times. All the more proof that the settlements must be in desperate straits when he was impelled to beseech help. And of a sudden they were disowned; there was no mother State, no slumbering asset they could call to life.

Sevier had not talked much about the possibility of Creeks and Cherokees uniting, but the petition, coupled with whispered rumours seeping through the cabins, now brought morbid speculations. How many Indians would come and when, were the questions more than one man and woman asked themselves. Who would go to hold the line on the French Broad so that the red raiders might not penetrate to the Watauga?

Jackson watched Tonpit ride hastily away, followed by Elsie, and he fancied he beheld elation in the man's hard visage and sorrow in the girl's gentle face. It was quite a coincidence, too, that Major Tonpit should ride forth just in time to learn the momentous news—unless he had been expecting it and came purposely to hear it. His prompt return home gave colour to the suspicion.

The young Virginian shifted his attention to Chucky Jack. Sevier perused the message for the second time, crumpled it into a ball as if to hurl it from him, thought better of it and tucked it inside his buckskin shirt and called to the assemblage:

“Women and men of the Watauga, North Carolina will have none of us. We’re shoved through the door and told to shift for ourselves. To be exact, we’re told to look to the central Government for protection. And, as you know, the ink is scarcely dry on the petition I was about to send to the Legislature, asking for courts and militia.

“Without consulting one of the twenty-five thousand settlers on this side of the mountains, North Carolina chooses to pay her share of the national debt by the simple process of ceding us to Congress. She proposes to pay her debts with lands we won by rifle and ax. The act was passed by the Legislature a month ago, and for thirty days, while the messenger was bringing the news, we have been set off from North Carolina.

“During those thirty days our plight has been as serious as it is now, only, not knowing the truth, we worried but little. This fact should teach us that we can care for ourselves during the next thirty days, and so on, until there is no danger from the Indians along our border. So I ask you to be of brave heart and to remember the Watauga people always have had to hoe their own row. Please God we can keep on.

“A year or two ago this message would have worried me none. I could send out the call, and my old friends would respond overnight, as fast as horseflesh could fetch them. If an Indian war comes now, it will be more serious than what we’ve experienced in the past but nothing that our rifles can not blast away. I still can count on my friends and old companions-in-arms. Of the newcomers who have come to us in such numbers I am not so sure.”

And he paused to dart a lightning glance at Polcher and his cronies pressed about the tavern door.

“The national Congress oughter help us,” piped up an old man.

“It would be glad to. But the national Government, while empowered to levy armies, can not compel a single State to furnish a soldier,” Sevier reminded. “The national Government can do only what the States will permit it to do. Last year several hundred soldiers stormed the very doors of Congress and demanded their over-due pay, and Congress was unable to escape the mob’s demands. There will come a time when our Congress will

have the power to protect its citizens in this, or in any other, land. But not now.”

“If not now, then by the Eternal, men of Watauga, there is one power that can defend us!” cried Polcher from the tavern doorway. “And we have only to ask to be freed from either Creek or Cherokee.”

“Aye! Aye! Spain looks after its own!” cried another of the tavern coterie.

“So does the devil!” thundered Sevier, enraged at Polcher’s making the Creek menace common property. “We’ll get nothing from Spain only as we pay dearly for it. And remember, there can be no danger from the Creeks except as Spain sets the mischief afoot. All who would be free and live in security follow me to the court-house. Messengers must be sent out; delegates must be elected and called here.”

“What’s yer plan?” hooted a tavern fellow.

“My plan is to form a Government of our own and to be admitted into the Union as a separate State!” retorted Sevier in a ringing voice.

The decent element raised a hoarse cheer, and faces heretofore gloomy became inspired. Polcher quickly warned:

“Vermont’s been trying to be admitted ever since 1776. We can’t stand on air, neither one thing nor another. Spain will protect us and give us justice. If she should fail, we could turn to and drive her into the gulf!”

“The time to drive her into the gulf is before you slip on her yoke!” shouted Sevier. “And, if we’re able to do that same thing, why seek her protection? To the court-house!”

The women gathered in knots to discuss the startling news. The men followed their old leader. Jackson remained outside the court-house, watching the scene. His experience with Kentuckians on the Ohio had taught him the feeble central Government was powerless to function in a crisis like this—and this because the thirteen States retained the mental attitude of the thirteen colonies.

Polcher’s advocacy of accepting the protection of Spain was not painfully repugnant to Jackson, no more than it was to some others west of the mountains, who believed themselves forsaken and left to shape their own destiny. When it hurt, it hurt pride, not a national spirit. He repudiated the idea because of an instinctive dislike to domination by any foreign power. His sense of Americanism was not shocked as Sevier’s was, for the union Polcher openly urged, and which John Tonpit was suspected of secretly

promoting, simply meant a political affiliation and not the death of national ideals, the seeds of which were scarcely sown.

Jackson, however, firmly opposed the project, for his forebears had come to America to escape overlords. Then again common sense told him the law of compensation would decree that Spain's protégés must pay Spain's price.

Being in this frame of mind, he saw no reason why he should not play his luck by accepting Tonpit's courteous demeanour at full face-value and profit by it to the extent of wooing his daughter. His last meeting with Tonpit before going to the Ohio country convinced him his suit was frowned upon. Now, with the father's smile still soothing him, with a vivid picture of Elsie's shy, backward glance, he had small liking for the courthouse and its jumble of loud-voiced philipics against Spain and North Carolina. The situation was localized in his estimation. And yet he hesitated, his loyalty to Sevier, whom he had known for only a few hours, holding him back.

Polcher came from the tavern with Lon Hester, and Jackson thrust his thumbs into his belt and strode toward them, thinking it timely to conclude the morning's one-sided argument. But Polcher said some hurried words to the bully, who turned and hastened down the trail, while the tavern-keeper himself affected to ignore the truculent ranger and strolled toward the courthouse. Jackson turned to follow him, only to behold the people pouring from the building. There came staccato commands, and a score of men flew to their horses and rode away.

The Virginian breathed in relief. It was not necessary for him to choose between love and duty. Chucky Jack had rushed matters through with his characteristic energy, and the messengers were off to arrange for the election of delegates. The tavern-keeper, too, was no longer visible, and with nothing to detain him Jackson took the trail to the south, his heart as light as his moccasined feet.

What recked youth in love-time even if the fate of the Anglo-Saxon race in America were at stake! Ever thus does youth help shape the course of political evolution, help win a world without realizing the achievement, and only ask in the midst of astounding events that the heart of a simple maid be won.

The dalliance of the young man's thoughts blinded him, and his feet followed the rough path unguided by his eyes. Some premonition that she was near was what finally awakened him from his smiling reverie. He

halted and threw back his head with a jerk. Tonpit's commodious cabin stood in from the trail, surrounded by clumps of cedar and bass-wood. Within ten feet of the ranger stood Elsie.

Jackson reddened with confusion. He knew he had been smiling as he came down the trail, and the restrained merriment tugging the corners of her mouth proclaimed her a witness to his deportment. He felt as sheepish as if she had detected him making faces at himself in a mirror.

"Elsie, I've come all the way from the Ohio to win the privilege of calling you sweetheart," he hurriedly greeted.

She cast an apprehensive glance toward the house.

"I like you, Kirk. You know how much," she wistfully began. "My father —"

"He seemed glad to see me," he completed as she hesitated.

And he gained her side and took her hands in his.

"He is glad to see few men," she warned. "He loves me, but to others he's cold."

"Politics," assured Jackson. "Big men always have political bees swarming through their heads. I wouldn't give a beaver's pelt for all the political power they can develop in this whole country. I'm a free man, and you're a free maid, and your politician is a slave. And you must love me, dear."

"And I'm a free maid, and I must," she quoted, drawing him out of range of the cabin.

"Elsie, not another step till I know," he whispered. "I asked myself every step from the falls of the Ohio, but now, you must—please!"

"Then I must if I must," she murmured, dancing ahead toward a natural harbour.

"Wait!" he cried. "I bring a belt from the Ohio to the dearest little girl in the world. It shows a white road leading to a little cabin, which shall be the happiest home in all the col—I mean the States."

She seated herself on a log and he kneeled by her side. She remained silent, her eyes averted to hide her glorious confusion.

"I've brought my talk," he whispered. "What does the wonderful little woman say to it? Does she pick up the belt, the white wampum, the one road leading to the cabin?"

"I like your talk," she confessed. "Oh, I like it more than you can ever know, Kirk. But my father—he won't let me pick your belt up."

"I'm not asking your father to marry me," he reminded.

"Don't speak in that voice," she whimpered, wilting against him. "Kirk, dear! I'm miserable. Ever since coming over the mountains I've sensed poison in the air."

He patted her hair and waited for her to continue.

"It's something I can't understand. It's something that keeps my father up all night, walking his room. And yet, when I go to him, it's to always find him strangely exalted."

"Politics," he belittled. "What has that to do with our love?"

She lifted her head and revealed eyes round with fear and warned:

"But it does! It concerns our happiness deeply. Not that he has said anything. Not that his love for me ever changes—"

"Good Lord! Love for you—change?" he gasped.

"I say it hasn't, you silly. But after the messenger came and we were riding home, he asked me if I would make a sacrifice for him. He didn't say what but gave me to understand it would be only for a short time. Now I'll make any sacrifice for my father, only—"

She persisted in her silence, and he gravely prompted—

"Go on, sweetheart."

"Only I must know it will help him."

"Tell me what he asked you to do and let me be the judge."

"He's asked nothing as yet. I think he plans to tell me tonight. He said something about my understanding everything tonight. Since then he's been in his room, whistling and singing. Never in my life have I heard him whistle or sing before. And, do you know, he has a beautiful voice—and I never knew it before."

"When a man can sing and whistle, he can't be planning to ask much of a sacrifice of his daughter."

"Oh, I'm not fearing what he may ask. He's been a good father to me. I must be perfectly loyal to him in my heart. I only wish he didn't have men come to see him—that is, certain kind of men."

She gave him an odd look, then, forgetting the house was hidden by the trees, she gazed over his shoulder. He was quick to detect the glint of alarm in her eyes and asked—

"Who's with him now?"

"Nay, you must not ask me. That would mean I was spying on him. Doubtless I'm very silly. I shall know all tonight. Tomorrow, if we should

meet alone, I'll perhaps be able to tell you."

"We certainly shall meet alone," he promised. "But why wait till tomorrow? Why not this afternoon or tonight? I sha'n't sleep a wink if I have to wait till tomorrow. Why not here?"

"Oh, I couldn't, Kirk," she protested. In the next breath she filled him with ecstasy by declaring, "And yet I will if possible. Tonight—come when the moon is clearing the forest, two hours before midnight. He always goes to his room at that hour. I shall be here on the hour and will wait for you, but you mustn't wait for me. I shall come promptly or not at all."

"But if I come and you're not here—" he began complaining.

"Hush, silly. I'll leave a note on this very log. Don't wait if I'm not here. Don't wait if the note is not here. It will simply mean I couldn't leave the house without disturbing him."

"Why couldn't I call at the house?"

"Oh, no! Not at the house," she hurriedly cried. "Promise?"

"Very well. I'll come as far as this arbour."

"Now, don't be ugly. Some time you can come to a house and know you'll always find me—"

"You darling!" he softly exulted.

She lifted her head from his shoulder and touched a finger to his lips. A voice was calling her name.

"It's father," she warned, unwarrantably alarmed her lover thought.

He made to walk a bit with her, but she gently pushed him back into the arbour. Then, giving him her lips, she ran to the house.

He should have walked the skies as he returned to the settlement, but somehow complete happiness was held in abeyance until he could learn what it was that Tonpit was to ask of his daughter. His peace of mind could not return until he had seen her again and learned the truth. He had worried none while with her, for joy had destroyed perspective and dulled imagination. He had actually lived in the present, taking toll of each delicious minute. Now he was recalling her father's reputation as a man of mystery.

Back east, before his last trip to the Shawnee country, he had heard strange remarks concerning John Tonpit. Here in Jonesboro the talk was resumed. He could remember when Tonpit was counted a poor man, but now he seemed to be above want. The sordid fact angered him by persisting in invading his speculations. John Sevier had the right of it in saying Tonpit

was engaged in a conspiracy—no doubt about that. But it was left for the girl herself to hint that she might be involved in his wretched schemes.

“—— his beastly ambitions!” growled Jackson, turning from the trail and throwing himself under a clump of willows.

He lighted his pipe and smoked it empty before recovering any of his natural optimism. After all, he told himself, a father could not be unnatural with his only child. Tonpit’s mode of address, even when talking to Elsie, was harsh. That characteristic induced one to attach undue significance to his simplest statements. The girl had permitted his solemn assertions to carry too much weight. She had confused the austere vehicle of his spoken thoughts with the simple meaning of his words.

“He’s a queer one,” Jackson admitted as he stowed his pipe preparatory to resuming his walk back to the settlement. “I can imagine the poor child being thrown into a panic by his cold voice announcing it’s going to rain tomorrow.”

He chuckled a bit at this caricature of the maid’s awe, then fell back under the willows as the long shadow of a man fell across the sunlight within a few feet of him. Walking noiselessly, the stealthy figure of Lon Hester swung by.

For a moment Jackson was tempted to accost him and conclude the little argument started in the tavern. But his impulse vanished because of wonderment at the bully’s presence at this end of the settlement. The tavern was his proper habitat. Again he saw Polcher whispering in the bully’s ear and saw the latter set out afoot with the purposeful step of one going on an important errand. Linked up to this recollection was the girl’s statement that her father had a visitor whom she was unwilling to name.

“But it couldn’t have been the tavern brawler,” muttered Jackson, rising and softly following Hester. “Still, Polcher was giving the lout some orders and sent him somewhere. And Sevier says Polcher is a deep one. Polcher showed he was for the Spanish alliance after the messenger came. He and Tonpit have the same fancy, it seems. But Tonpit was there and heard as much as Polcher did. What could happen that needed a message and a messenger? Sevier says all messages are brought to the tavern.

“Almost appears as if the affair was ripe for a sudden blow somewhere, for something decisive to happen—and Tonpit was singing and whistling. Good Lord! What with being thrown off by North Carolina and not yet accepted by the Union, it certainly isn’t any time for the settlers to take on

fresh troubles. Reckon I've been selfish. I'll see Chucky Jack and tell him what little I know."

Making a detour so as to escape the notice of the tavern loungers, Jackson approached the court-house from the east side of the settlement. The town was ominously calm. Small groups of men were quietly talking, and all carried their rifles. As they talked, they looked much at the court-house, where through the windows Sevier could be seen pacing back and forth, his hands clasped behind him, his head bowed. He was one man who carried the entire load of the settlement's troubles. He was idolized by the men, and there was none who would think of intruding in this his great hour of anxiety.

"Reckon, if Chucky Jack can't fix things up for us, there ain't no fixing to be done," one man spoke up and said to Jackson.

"He's a great man," heartily retorted Jackson. "I talked with him this morning for the first time. My name is Kirk Jackson, just returned from the Ohio."

"My name's Stetson. My cabin is on t'other side of the court-house. Seen you with him this morning. You'll eat with us today. Where's your horse?"

"Broke a leg a few miles out. Had to shoot him," the ranger sadly informed.

"Shoo! That's tough. I've got several. Help yourself any time. I'll tell the woman."

"It's a —— of a Government that leaves us folks to shift for ourselves," spoke up another settler, catching Jackson's eye.

"Seeing how you've always shifted for yourselves, I reckon you ain't worse off than you've always been," smiled Jackson. "And I reckon Jack Sevier's enough help for one settlement to have. The Indians are awfully scared of him."

"That's 'cause they know he won't wait to fight behind logs," Stetson broke in eagerly and with great pride. "They know that every time they make a raid he'll lead us straight into their country for a hundred miles or so and rip —— out of their villages. Nothing takes the fighting guts out of a Injun so much as to hear—while burning a few cabins—that Chucky Jack is back in their towns burning up all their corn. He's thinking up things now."

Jackson had halted his advance on the court-house because of the respectful aloofness of the settlers. But now came one who ignored the

black frowns, an Indian. He was a Cherokee, and his path was to the court-house.

Suddenly a woman's shrill voice called from a cabin:

"The murderin' spy! He's come to see how we took the bad news!"

"There's more of his kidney back in the woods!" shouted a man.

The Indian continued his advance. The various groups of men thinned out and formed a half-circle behind him so as to block his threat. The Indian halted and, still gazing at the court-house, threw back his head and sounded the wolf-howl, *wa-ya*. With muttered imprecations a score of rifles were brought to bear on him, while several men ran back to the forest to scout for a hidden foe. But the signal was intended only for Sevier, who now appeared at the window. A glance took in the situation, the erect form of the red man and the half-circle of menacing rifles. Leaning from the window, Sevier shouted:

"Put down those guns! I'll answer for the Cherokee!" Then to the savage, "The Tall Runner is welcome."

Without a glance behind him, the Indian made for the door. Sevier sighted Jackson and beckoned for him to enter.

Sevier was alone in the long room. He motioned for Jackson to remain in the background and, addressing the Indian, said:

"Tall Runner, of the Aniwaya people, is welcome. What talk does the warrior of the Wolf clan bring to me?"

The man of the Wolf, the most powerful clan of the Cherokee Nation, permitted his gaze to kindle with admiration as he looked on Sevier. After a brief silence he began:

"I bring a talk from Old Tassel. He tells me to say to Tsan-usdi (Little John) that he is an old man. He says he is standing on slippery ground. He says his elder brother's people are building houses in sight of Cherokee towns and that his young warriors grow nervous. He says the white people living south of the French Broad have no right there, and he asks his elder brother to take them away."

Sevier waited for a minute, then replied:

"This is the talk I send back to Old Tassel. I will meet the Cherokee chiefs in a grand council and fix a place beyond which no settler shall go south of the French Broad and the Holston. Tell Old Tassel that, if he stands on slippery ground, it is because the Indians have wet the ground with the

blood of white people, killed while travelling the Kentucky road and while hoeing their fields along the Watauga.

“As for the settlers who have made homes south of the French Broad, they can not now be removed, but, if the chiefs of the Nation will come to a council, we will agree they shall go no farther. The Cherokees know Tsan-usdi wants peace. But there can be no lasting peace so long as the Cherokee Nation listens to the evil whisperings of the Creeks and loads its guns with Spanish powder. Tell Old Tassel it was North Carolina that sent the settlers south of the French Broad, not Little John.”

The Indian remained silent for several minutes, then with a cunning gleam in his eyes continued:

“I will carry your talk to Old Tassel. Who sends the talk? Tsan-usdi or North Carolina? Or does Tsan-usdi speak for North Carolina?”

Sevier’s gaze hardened. He knew Old Tassel had learned of North Carolina’s act of cession. This would imply advance knowledge on the part of the chief. The messenger was sent with a colourless talk, his real errand being to learn how the settlers were reacting to the Cessions Act.

In a voice of thunder he warned:

“Brother of the Wolf, I am going to speak to you. Be wise and remember my words. Tell Old Tassel the talk comes from Little John and his three thousand riflemen. Tell him to forget that the settlements are no longer a part of North Carolina. Tell him he is to remember that the settlers never have had help from North Carolina and have always depended upon their own guns. Tell him our rifles shoot as straight and that our horses run as swiftly as they did a few moons ago. I will send for Old Tassel when I have my council talk ready.”

Tall Runner was somewhat abashed but did not offer to depart. He remained silent and motionless, staring furtively at the one white man the Cherokee Nation feared above all other men. For three centuries the Cherokees had made wars and treaties with the English, the Spanish, the French, the Americans, with Creeks, Catawbas, Shawnees and Iroquois, but in all their campaigns they had never shown so much respect, or fear, for any one individual as they had for John Sevier.

Sevier knew Tall Runner had something on his mind, something he had not intended to speak but was now tempted to divulge. Sternly, yet not unkindly, Sevier prompted:

“My brother of the Wolf has seen something on his way here, or has heard something. He thought at first to bury it deep in his head. Now his medicine commands him to tell it. The ears of Tsan-usdi are open; his heart is open. Does the Tall Runner speak?”

The Indian stood with eyes cast down as if irresolute; finally he lifted his head, succumbing to the personal magnetism of Sevier, a subtle influence that never failed to work on both friend and foe, and said:

“It is not in the talk I brought from our peace town of Echota. It is something I saw on the Great War-Path very near here. A dead man of the Ani-Kusa.”

Sevier’s hands gripped the edge of the table.

“A warrior from the upper Creek towns,” he repeated.

“He was a messenger,” was the laconic correction.

The borderer fully appreciated the grave results sure to follow the slaying of a messenger from McGillivray, Emperor of the Creek Nation. One faint hope remained, that the Creek had fallen by the hand of a Cherokee.

As if reading his thoughts, Tall Runner significantly added:

“The dead warrior was not scalped. He was shot by a white man hiding in ambush. I found where the white man kneeled and waited. I followed his trail back to the settlement. I found where his trail left the settlement and made for the woods.”

There was no doubt in the minds of either Sevier or Jackson as to the identity of the assassin. Major Hubbard, his heart rankling with fanatical hatred for all red men, had left the village for the forest, taking the direction the Cherokee would cover on returning home.

“When was the Creek killed?” quietly asked Sevier.

“The blood had dried.”

“Five hours ago,” muttered Sevier. Then aloud, “How do you know the Creek brought a message for me?”

“Who else would he bring a talk to?” shrewdly countered Tall Runner. “He carried no arms. He was a messenger. His moccasins were worn through because of haste. He had not stopped at any of our villages to get new moccasins. His talk was for the white men. Little John is their chief.”

“And by this time the news of his death is spreading,” Sevier gloomily mused.

“I threw boughs on the body. It may not be seen if Tsan-usdi goes and covers it with earth. If others find it, the word will travel as far as a red ax

or a war-belt can travel.” Which was equivalent to saying that McGillivray would surely learn of the killing and seize upon it as pretext for declaring war upon the settlements.

Sevier walked to the window and back. When he halted before the Cherokee, his countenance was placid, and his voice was gentle as he directed:

“Go to Old Tassel and tell him my talk. That I will meet him and his head men and give them a talk; that I wish only for peace and will hold back the whites from going farther on Cherokee lands unless an Indian war makes me use all my riflemen in defending our cabins.”

CHAPTER III

THE PRICE OF A JUG OF WHISKY

FINDING himself overlooked, Jackson reminded:

“I’m still here. If I’m in the way, I’ll get out. Of course I couldn’t help hearing your talk with the Cherokee.”

“Don’t go,” Sevier replied. “I’m worried about the dead Creek. Tall Runner says he was an Ani-Kusa, from the upper towns. He brought a message from McGillivray. There was no writing on his body, or Tall Runner would have found it and brought it here. That makes two mysteries.”

“I don’t understand,” Jackson confessed. “Two mysteries?”

“Who was to receive McGillivray’s message? Who did receive the message?”

“Isn’t it possible McGillivray is trying to treat with you; that some of the tavern crowd found it out and stole the message and killed the Indian?” Jackson put the query with much animation, the theory growing on him even as he spoke.

“No. McGillivray has spies at the State capital. He knew ahead what the Legislature intended doing before the Cessions Act was passed. He knows he couldn’t swing me into line with Spain. Believing that the Watauga settlements are disowned and helpless, it’s the tavern crowd he’d dicker with.”

“If Hubbard killed him, why didn’t he get the message?”

“I haven’t any doubt as to Hubbard’s killing him. He went in that direction in time to meet the Creek. He left us with blood in his thoughts, cursing all Indians and believing the Chickamaugas are taking the war-path. He saw the Creek and shot him. He never bothered to approach the body, much less to examine it. Either the Creek had delivered the message or it was found on his body by some white man before Tall Runner came along.”

“I saw Hester leave the tavern and go down the trail in that direction right after the messenger brought the news of the Cessions Act,” Jackson informed, his sense of duty overriding his disinclination to say anything that might compromise Tonpit.

“Ah! Hester never quits the tavern unless it’s on important business. But none of that gang would kill a messenger sent them by McGillivray. It’s through him that Spanish gold comes to them. Do you know where Hester went?”

Jackson was deeply embarrassed and felt himself slipping into deep water.

“I don’t know, but I believe he visited John Tonpit. He was afoot and didn’t plan to go far. A short time afterward I saw him coming up the trail. I didn’t see him go to or come from Tonpit’s house.”

“My boy, why not tell it all?” gravely encouraged Sevier.

Jackson made his decision under the compelling gaze of the steady blue eyes and briefly related his meeting Miss Elsie and his knowledge that her father was closeted with a visitor.

“That would explain much!” rapped out Sevier. “McGillivray sent a written message to Major Tonpit. The bearer managed to get it to the tavern. Polcher forwarded it to Tonpit by Hester. If the Creek had taken it direct to the major, he probably would now be alive. But the system is to send all messages to the tavern, where they are relayed without exciting suspicion. That Polcher is a deep one. He’s a natural conspirator. He loves underhanded methods. He must be an able man to hide his real self in the rôle of a tavern-keeper.

“Tonpit couldn’t do that. He’s insanely ambitious. He must always have a dignified part to play. Useful at a certain point when his dignity fits in, such as influencing some of our settlers to follow his lead, but incapable of continual plotting. He’s just a fool figurehead. Yes, I’m convinced Polcher is the more dangerous man of the two.”

Jackson hesitated and twisted nervously. His sympathies were entirely with the settlement. Although he had known Sevier for a few hours only, he was eager to serve him. Finally he blurted out:

“I expect to see Miss Elsie tonight. Naturally I don’t care to set her father against me, but, if I learn anything that’s all right for me to repeat, I’ll tell you.”

Leaning forward, Sevier swept his flaming gaze up and down the ranger's trim form in mingled anger and scorn.

"Young man," he softly said, "you're either an American or just a two-legged critter. Can't you see the time has come when it must be decided once for all whether an English or a Spanish-speaking race is to rule this country? What are your personal affairs compared with the destiny of a world? As an American you'll do nothing dishonourable. I don't expect you to wheedle secrets from Elsie, whom I've known and loved dearly and who is as good an American as I am. But there's no reason why you shouldn't go to John Tonpit and put the question to him frankly: did he or did he not confer with Lon Hester this morning?"

"That means I lose the girl," Jackson sadly reminded.

"Not if she is the girl I've always believed her to be. I tell you she's an American girl. She may not call it that, but she is. She would despise you if you dodged your duty to secure her love. Remember, you'll get nothing worth while in this life except what you pay for by work and suffering. God knows we who have won the Watauga and the Kentucky lands have paid the full price. Tell the girl frankly you must know more about her father's doings from the lips of her father."

"He'd simply rage and probably threaten to shoot me."

"I need scarcely remind you that threats won't scare a man who's just from the Shawnee country," said Sevier with a smile.

"—— it! I'll lose my chances of seeing the girl without learning anything that would help you."

"Tonpit will rage and bluster, and he'll threaten and forbid your seeing Elsie. But he won't lie about Hester; there's where he is weak as a plotter. If he saw him, he'll fume and demand what business it is of yours. Then tell him you propose to marry his daughter. She's of age. If she loves you and is worth the winning, you'll lose nothing. The other way—trying to remain neutral—leads to dishonour and the girl's contempt. When do you see her?"

"Tonight—about ten o'clock."

"I will be here waiting for you. I understand your feelings. It's natural you should feel a bit selfish. Love-making wouldn't be worth the experience if lovers weren't selfish. But Miss Elsie would scorn a man who slighted his duty. Our country comes first. If I can find out what Tonpit intends to do, if only a hint of his next move, I can make a close guess about what McGillivray wrote him. I know the Creek Nation has been ready

to strike for months and has been held back until the Cherokees could be won over. Now that we're ceded to the Union and believed to be unprotected, the Cherokees favour the Creek alliance.

"Old Tassel is cunning beyond the average. He wants peace, but he'll fight to get back the French Broad lands. Tall Runner's talk was merely to show me that the Cherokees know our condition, a strong hint for us to vacate the French Broad lands. If we'd withdraw from the Broad and the Holston, Old Tassel would strongly oppose any alliance with the Creeks. As it now stands, we're facing the power of Spain, the enmity of the Creeks and a very probable alliance between the Creeks and the Cherokees, with the Seminoles thrown in for good measure. By heavens! It's high time we all began to be good Americans!"

"God knows I'm an American!" cried Jackson, catching the other's fervour. "I was training to be one when I first risked my hair among the Shawnees and Wyandots. Yes, Sevier, I'll give my all to block Spain."

"Good boy!" cried Sevier, and their hands met with a smack. "Now we'll go and eat."

"Stetson asked me to come there. He's offered to let me have a horse."

"Stetson is of the salt of the earth, and Mrs. Stetson has a knack of frying chicken that even makes my Kate jealous."

The Virginian had no set purpose as, after the midday meal, he wandered to the outskirts of the settlement. He wished to be alone with his jumble of new thoughts. He had meant every word of his earnest declaration to Sevier, but there still lingered in the back of his mind the question, how much of his solemn statements had smacked of the rhetorical, and how much was based on genuine, lofty sentiments? Sevier was sure to set a listener's pulses to dancing. He developed the full strength of a man's honesty. He had played Jackson up to himself as being a hundred per cent. patriot.

Now, alone and with leisure to think it all over, Jackson feared he might be only ninety-eight per cent. patriot and two per cent. selfish lover. Yet he considered himself a good American. Hadn't he fought for the colonies? Now that only white wampum hung between America and the mother-country, hadn't he earned the right to order his life along the lines of love, to cater to the two per cent. of his make-up and create a home in the land he had helped to secure for Anglo-Saxons? Even Sevier had said love was legitimately selfish to a certain degree. But who was to determine the degree?

Chucky Jack at the age of seventeen years had married his Bonnie Kate. He had had his love and could better afford to give more of his time and strength to building up the new republic than a man who had fought for years with no opportunity for wooing a maid. And were not there many others, as fortunate as Chucky Jack, who could carry on the work?

“Wrong, wrong! All wrong!” groaned Jackson as he entered a little glade and threw himself on the ground. “Jack Sevier would never have been turned aside from his good work. Married or single, successfully wooing or rejected, nothing could come between him and what he believed to be his duty. He has vision. He sees things far ahead. He looks down the years. He’s willing to sacrifice everything for results that can’t be recognized until long after he’s dead.

“——! Why quibble with myself? He’s a bigger man than I can ever be. Even now it isn’t my Americanism that stirs me so much as it is love for Elsie. Lord, if only loving Elsie constituted Americanism, I’d be the first patriot in all the land. Yet one can imitate Sevier. Maybe the unselfishness will come later.”

Possibly Jackson underrated his nationalism. Certainly he had done all that a man could during the years of incessant warfare. Undoubtedly he averaged high above the status of many citizens. A proof of this was his humble realization that Washington and others who carried the torch of freedom were far above him in spiritual ideals. They were exalted to the stars, while he groped along the ground. But, so long as he knew this, there was every hope for his climbing high among the peaks of democracy.

Of course the country was in rather a chaotic state, notwithstanding the mighty labours of the giants. Congress was powerless to function in important matters unless nine States gave consent. Sovereignty was claimed by every State. While this condition existed, it is not to be wondered that a simple ranger should find it difficult to comprehend the exact essence of Americanism. The Articles of Confederation could not be changed without the consent of every State. In short, Congress could recommend but not enforce. It could borrow money but had no authority to pay it back.

It could coin money but had no authority to purchase bullion. It could make war and could not raise a soldier. With the States thus jealously retaining the power of initiative, it was logical that a man should identify himself by proclaiming his State citizenship. To merely say “I am an American” was to speak anonymously.

But as Jackson mulled it over with chastened mind the obscure places in his soul caught vagrant rays of light, and he marvelled at the birth of new comprehensions. At first they were nebulous and vague in details. As he concentrated, they took on substance until his soul-gaze swept over a mighty panorama, as if a stupendous flash of divine fire were lighting the future and revealing what might be if the dreams of the dreamers came true.

“Just one State!” he whispered, closing his eyes to retain the picture. “By heavens, that’s it! Washington has seen it! Sevier sees it! No, no! It can’t be all that!”

This last, as the picture persisted in widening, sweeping over unknown rivers, leaping towering mountain ranges not yet seen by white men, and promised to include all between the rising and setting suns.

“A man would get drunk thinking on it,” he muttered, rubbing his eyes as if wakening from deep sleep.

“Been takin’ a snooze?” greeted a voice.

Jackson glanced up and beheld Old Thatch, owlshly contemplating him and weaving slightly from side to side in a manner that was reminiscent of tavern whisky.

Jackson sat up and scowled blackly at the old man.

“You’re the fellow who objected to my kicking that cur this morning. Clear out before I forget you’re a drunken old fool.”

Thatch smiled forgivingly and chuckled softly. His bleared eyes were thoroughly amiable as he dropped to the ground and grunted in comfort at feeling himself securely anchored.

“Lawd, but ye did sure give Lon his needin’s,” he mumbled. “Reckon Polcher now wishes ye’d finished the job. Such doin’s! Such doin’s!”

Laying aside his animosity, Jackson surveyed him curiously.

“But Polcher and Hester are great friends,” he protested.

“Mebbe yas, mebbe no. He! He!” snickered Thatch, wagging his white head knowingly. “Ye see, ye don’t know what I know.” And he rumbled with laughter.

“Oh, I reckon I know all you know,” taunted Jackson.

“No, siree!” hotly denied Thatch. “Ye couldn’t. ’Cause why? ’Cause I was the only one in the tap-room when they rowed it. I was sleepin’ in the corner when their jawin’ woke me up. Lawdy, but there ain’t nothin’ but bloody belts atween them two!”

“Oh, they’re always quarrelling,” said Jackson with a fine show of indifference. “What else can one expect from a drunken bully and a low-down tavern-keeper.”

“Sonny, ye spoke the truth in a fashion. That Polcher treated me like dirt, yes, siree! Like common dirt! An’ all I asked for was a gallon. Yes, siree! Ye’ve hit the bull’s-eye in the centre. He is low-down. I’m Maryland stock. He ain’t nothin’ but a onery North Car’lina sand-hiller of a quarter-breed. He didn’t even dast to cross the mountings till better men had gone ahead an’ made a clearin’.”

Then with ludicrous solemnity:

“But ye’re wrong ’bout their always jawin’. They never struck fire till today. They had a clash this mornin’ afore ye come, Polcher ’lowin’ that Lon was too free-spoken, but it wa’n’t much. But what I seen just now had murder writ all over it. They was in Polcher’s little room, an’ the coloured boy was asleep ahind the bar. Lawdy, but I could tell things if I wanted to!” And the old reprobate hugged his knees and enjoyed his own confidences.

“Bah! Hester is always trying to stir up a fight only to find he hasn’t enough guts to go through with it,” sneered Jackson, yawning elaborately and making to rise.

“Don’t go!” begged Thatch. “I’m hankerin’ for comp’ny. It wa’n’t Hester what started the trouble this time. It was Polcher. I was asleep at the first of it, but I reckon’ I didn’t miss much. An’ ye can lay to it, it was somethin’ of a eye-opener to me! Never’n my life seen Polcher like that afore. Nothin’ of the tavern-keeper ’bout him. No, siree! When they come through the door of his room, he was jest out’n-out ugly. He was askin’ Hester to tell what come of some job he’d sent him out on, an’ Hester opined the major wouldn’t thank him for peddlin’ his ’fairs round tap-rooms.

“Whewee! Jest a streak of lightnin’, an’ Polcher had him by the throat an’ a knife at his weazen! He! He! Lonny knows now how I felt when he was chuckin’ me this mornin’. Ye never see a cock-o’-the-walk eat dirt an’ crawl like he did. Polcher made him say he was jest a yaller dawg. Made him swear he’d know his master another time. Then he took off his hat an’ slapped his face with it till the feather got busted. An’, although Lon’s throat was free of Polcher’s hand when his face was bein’ slapped, he stood mighty still an’ lam’-like an’ took it.”

“And Hester told what he was asked? Tut, tut! I don’t believe it,” scoffed Jackson.

“Sonny, I’m older then them mountings, but I ain’t no liar. No, siree! They don’t breed no liars in ol’ Maryland. I was wide awake an’ seen it an’ heard it jest as I’ve told. Lon knuckled under an’ said he’d took the word to the major.”

“Erhuh? What next?”

“Wal, that was the p’int that Polcher seen me in the corner an’ quit Lon to drag me to the middle of the floor, an’ it was the time I ’lowed it was best for me to act sleepy. Lon went back with him to the small room, an’ it was when they come out that I asked for a gallon, promisin’ to pay, an’ that Polcher treated me so p’izen mean.”

A piercing whistle penetrated the glade with the incisiveness of a war-arrow. Jackson swung about to locate the source. The effect on Thatch was quite remarkable. For one thing the whistle seemed to drive the whisky fumes from his brain and leave him sobered and horribly frightened. Scarcely able to speak, he dragged himself to Jackson and huskily whispered:

“Go, go! Keep shet on what I’ve said. It’s Polcher’s whistle. He’s lookin’ for me. If he sees me with ye, he’ll opine I’ve been blabbin’. He’ll cut my throat, jest as sure as he promised to cut Hester’s. Oh, Gawd! He’s comin’!”

Jackson took him by the shoulder and shook him violently and murmured:

“Stop it, you fool. Pretend to be asleep. Polcher won’t see me.” And, picking up his rifle, he glided into the bushes.

The whistle sounded again, shrilling on the ear most unpleasantly. Jackson manœuvred with the stealth he had acquired in stalking the Shawnees and soon located the tavern-keeper. From behind a tree he saw Polcher, still wearing his soiled apron, slowly advancing toward him, his eyes shifting from side to side and with nothing of a landlord’s urbanity showing in his face. Jackson remained motionless, determined if discovered to see that Polcher did not find the old man. Polcher advanced several feet, then pursed his lips and repeated his signal. Thatch’s voice querulously called out:

“What’n sin ye want now? Can’t a man git a little sleep?”

Turning aside, Polcher strode through the undergrowth and into the glade. Jackson slipped along after him until he saw him stop and stand before Thatch.

“What are you doing here?” gently asked Polcher, studying the old man keenly.

“Tryin’ to forgit ye wouldn’t let me have a leetle rye,” sullenly answered Thatch.

“The stranger, the one called Jackson, walked this way. Have you seen him?”

Old Thatch stupidly blinked his eyes and shook his head.

“Ain’t seen hide nor hair of him. Want me to find him?”

“No. Tell me what you thought of Hester’s talk back in the tavern.” This was put in an ingratiating voice, but Jackson noted the hand under the apron was clasping the hilt of a knife, and he insured Thatch against an impolitic answer by drawing a bead on the boniface.

But Thatch, sober, possessed an animal’s instinct and smelled the trap.

“That Lon Hester’s a derved fool. Wish some one would comb him,” he growled. “See how he choked me this mornin’? By Gawdfrey! Take it a few years back an’ he wouldn’t be wearin’ no rooster’s feathers round this yere settlement. Almost wish we’d let the stranger muss him up. Reckon the new feller could do it, at that.”

“I mean, about what he said to me,” quietly corrected Polcher, drawing a step nearer, both hands under his apron now.

“Lawd, he didn’t go for to give ye any lip, did he?” cried Thatch. “If he did, ye was a fool to take it. Lem’me tell ye something Polcher, that mebbe ye don’t know. Lon Hester’s fightin’ nerve is mighty poor quality. He’s low-down. If ever he gives ye any lip, jest ye comb him. Why, if I was a bit younger, I’d mount him in a second. Makes me feel wolfish round the head an’ shoulders to see that feller carry on so an’ make his betters step aside. Now, ’cause ye keep a tavern, he ’lows he can bully ye. But if ye’ll jest swing a bottle ag’in his chuckle-head he’ll be as meek as a rabbit.”

He ran out of breath and paused. Polcher frowned slightly, withdrew one hand and rubbed his chin doubtfully. Jackson hugely admired the old man’s dissimulation and lowered his rifle.

“I thought you heard him giving me some lip when you woke up,” mused Polcher. “I intended to ask you about it, but you was gone before I remembered. I want you to promise me you’ll say nothing about it. If the other fellows knew he’d made cheap talk to me, it might set them all doing the same thing. And I have it hard enough as it is.”

Old Thatch avoided this trap also and replied:

“But I never heard nothin’. But I do still opine ye didn’t treat me very friendly when I only asked for a gallon. I know where a Injun has some furs hid, an’ I’d have fetched ’em to ye tonight. Ye might ’a’ took that chance on a old customer.”

Polcher laughed with his lips, making no sound, and slowly withdrew his right hand from the apron and folded his arms.

“See here, Thatch,” he softly began, “that gallon is yours and several more if you fetch me the furs—but leave the Injun.”

“Leave the Injun?”

“Exactly. Leave him so he’ll stay just where you leave him.”

“Ye mean for me to kill him?” hoarsely asked Thatch.

“Well, I’m quarter-blood, but I don’t like Injuns,” murmured Polcher.

“But that would bring a war-party ag’in us,” the old man protested.

“What’s that to you, you old coward? You wouldn’t have to do any fighting. You’re afraid,” growled Polcher.

“’Fraid of a Injun! Huh! Like ——!” wrathfully retorted Thatch.

“Now listen to me. If you blab a word, you’ll never blab another. I’ve changed my mind about the furs. I don’t want them. Bring a scalp and get your jug.”

“I ain’t got a tender stomach when it comes to Injuns. But this cuss is a friendly one. Lives near here. It would be like killin’ a neighbour. I—I can’t do it,” cried Thatch, his old face now running sweat.

“Then I’ve made a mistake and talked to the wrong man. It’s your hair or the Injun’s before midnight.”

“It means war on the Watauga cabins,” whined Thatch.

“That’s nothing to you. A single word of this to any one and I’ll first prove you’re a drunken old liar, and then I’ll cut your throat. Now, I’m going back and fill that jug.”

With this gruesome warning Polcher made for the settlement. Jackson kept concealed, curious to see what Thatch would do. He knew the old man would have no great compunctions about killing an Indian. It was the after-effects he dreaded, the prospects of his white hair flying from a Cherokee belt.

Polcher’s purpose was clear; he wished to precipitate trouble between the Cherokees and the Watauga men. A mighty danger hung over the settlements; it would only require a Cherokee slain by a white man to bring the danger crashing down. Once committed to a campaign of vengeance,

the Cherokee Nation would gladly accept the war-belt offered by McGillivray and his Creeks, and Charles III, of Spain, would decide he held winning cards.

Thatch remained motionless until Polcher was out of sight and hearing; then with a muttered curse he picked up his rifle and shuffled toward the ancient Indian trail which led to the south. Jackson followed to prevent the murder. The prospective victim must live near by, according to Thatch's words. He would be one of Old Tassel's warriors, friendly to the whites and willing to dwell on the edge of their civilization. Mumbling under his breath, Thatch followed the trail only a short distance before leaving it for the forest. Jackson was now at his heels, wondering if he were fully decided to commit the crime.

The old man stopped close to the trail and sat down on a log and rested his rifle on some dead brush and stared intently at his feet. Jackson watched his face and saw his great weakness gradually conquer. Thatch was picturing the endless procession of jugs one scalp would buy. By degrees his aged eyes grew bright with resolution, and the lips under the beard ceased trembling.

"What's a Injun more or less?" he grunted, stooping for his rifle and slipping and plunging both arms deep into the brush.

He began mouthing profanity but suddenly desisted and stared as if death-struck. Jackson was greatly puzzled at this extraordinary behaviour. From a decision to do murder he had inexplicably dropped into the depths of terror. The watery eyes were round and fixed; the arms, still buried nearly to the shoulders, were rigid and straining. Then, very slowly, the arms were withdrawn, while the eyes, as if pulled by a magnet, slowly turned downward.

Jackson nearly betrayed himself when three hands instead of only two emerged from the brush.

"He's stumbled on to the dead Creek—McGillivray's messenger!" gasped Jackson under his breath.

Incredulously the old man glared at the dead hand his living hands had found under the brush. For nearly a minute he remained with his gaze fixed; then a cunning expression crept over his base face, and he turned his head in all directions to make sure he was unobserved. Satisfied he was alone with the dead brave, he grunted and growled like an animal worrying its

prey and drew his knife and reaching deep into the brush, worked with feverish haste.

It lacked an hour of ten o'clock when Jackson finished trailing Thatch to his lonely cabin. After completing his horrid business, Thatch had proceeded to an isolated Indian hut and hung about near the clearing waiting for an opportunity to steal the furs. Polcher had told him the furs were not necessary, but possibly the old man planned to palm off the scalp as having belonged to the owner of the pelts and thus doubly insure his supply of strong drink. But the Indian owner had remained near his cabin door, and as the shadows gathered the old man sought his cabin.

Jackson had planned to follow Thatch until he went for his whisky, but as time pressed he abandoned his purpose and hurried back to find Sevier. He was much chagrined to find no candle burning in the court-house. If he was to keep his appointment with Elsie, he could not waste any time looking for his friend. He hesitated for a moment, then set off for the Tonpit cabin.

He stood at the edge of the clearing just as the moon climbed above the forest crown. The cabin was dark, and a hush hung over the place. He proceeded to the arbour and softly called her name. Even as he paused for her to answer, he was convinced she would not come. Not only did the clearing and the cabin exhale the atmosphere of something abandoned, but the queer fancy obsessed him that life had never dwelt there; that his meeting with the girl in the morning hours was a dream.

He had promised her he would not seek her at the house, and he had assured Sevier he would seek her father there. The silence was oppressive and grew upon him and his first feeling, which was of sadness, gave place for alarm.

Groping his way to the log, he brushed it with his fingers and was rewarded by finding a scrap of paper. This should have brought him happiness and should have dispelled his morbid imaginings, for it proved she had been there a short time since and, therefore, must even now be in the cabin. The effect on his melancholy was quite the contrary; it savoured more of some memento of old, dead days, like the finding of a keepsake in the débris of ancient things.

"Idiot!" he snarled at himself. "One would think I was bewitched. Elsie has been here and left a word for me. Now to see what she has to say."

He hastened out into the thin moonlight and essayed to read the paper but was baffled. It was maddening to know he must wait until he reached a

cabin light before he could know her message. It was a small, irregular piece of paper, suggesting it had been torn hurriedly from a larger piece. This in itself, betokening great haste or need of secrecy, was disquieting. He turned, eager to reach a light, then remembered his word to Sevier. Thrusting the paper into his hunting-shirt, he strode through the clumps of shrubbery and made for the cabin.

Elsie had said her father retired to his room at this hour but not to sleep. He walked the floor much of the night, but no light shone in the cabin. To make sure, Jackson made a circuit of the house before approaching the door. Then as he raised his hand to rap his first premonition of emptiness came back to him. He pounded lustily and gained no heed. The cabin was dead. He seized the latch-string only to drop it. He knew he could gain an entrance easily. Tonpit would not bother to lock the house.

If Sevier were correct in his surmises, the thieves in the settlement would respect the place as belonging to a friend of McGillivray. Honest men would not intrude. But what would it profit for him to enter? He had no light, and he doubted if a crumb of fire would be burning in the fireplace now it was July. His fumbling hands would find many reminders of the girl, and he needed no more than his heart now held.

Turning away, he regained the trail and hastened back to the settlement. As he approached each cabin, he pulled forth the paper, hoping to find a lighted window outside of which he could pause and read his message. The settlers, however, retired early in the Watauga region, and each cabin was a squat, dark mass. But ahead there did gleam a light, a tiny beacon, and he knew Sevier was awaiting his return to the court-house.

He ran swiftly and noiselessly and without pausing to announce himself pushed open the door and jumped across the threshold. Sevier was seated at the table, his right elbow resting on it, his hand gripping a long pistol, the muzzle of which covered the door.

“You, Jackson!” he softly exclaimed, dropping the pistol. “You come as if the devil was after you.”

“There’s no one in the Tonpit house. She left a message for me, and I haven’t had a chance to read it,” panted Jackson, snatching up a candle and holding it close to the paper. Sevier watched his face closely and saw the dark features change from a frown of perplexity to a scowl of understanding.

“Read!” choked Jackson, restoring the candle to the table and dropping the note.

Sevier bowed over it and read—

Little Talassee.

“——!” gasped Jackson, wiping his wet face. “Little Talassee! Where McGillivray, Emperor of the Creeks, lives!”

The writing was a mere scrawl, as if the girl had but a moment.

“It was a surprise to her,” murmured Sevier. “She wasn’t prepared for it. They started immediately after her father gave the word. Of course he went with her. He isn’t entirely an idiot.”

“But why? Why?” was Jackson’s agonized query.

Sevier rose and paced to the window and back, his brows wrinkled in perplexity. But when he halted at the table again, the furrows on his forehead were ironed out. Placing a hand on Jackson’s shoulder, he said:

“I think I have it. The Creek messenger brought a talk for Tonpit, a writing from McGillivray. Both McGillivray and Tonpit knew what the Legislature intended to do. Tonpit was here to be on the ground. His reward was to be great if he influenced the bulk of the settlers to submit peacefully to Spain’s rule. But McGillivray, in putting everything at stake, feared Tonpit would not stand firm. So, I believe, his message was to demand a hostage, a guarantee that Tonpit would see the matter through to the end. He demanded the girl as the hostage. Her father consented.”

“Good God! Impossible! His own daughter!” choked Jackson.

“Wait a bit. Alexander McGillivray is very much the gentleman. In case of an Indian war, the girl is safer with him than she is in Jonesboro. He won’t harm her. She remains his guest while her father carries out his end of the bargain. The messenger sent the writing to Tonpit through one of the tavern crowd—”

“Hester!”

“But, instead of turning and making tracks for home once the message was delivered, the Creek waited. He came stealthily and even avoided the Cherokee towns. Why should he invite discovery by hanging around on the edge of Jonesboro? Because he was waiting to guide Tonpit and the girl back to the Coosa River. I’ve been down and looked the ground over. He was killed while sitting in a clump of bushes. His slayer’s trail entered the

woods from this settlement and then returned here. I followed it both ways until it was lost in the beaten path. Hubbard did it, all right.”

Jackson then rapidly told of his meeting with Thatch, the quarrel between Hester and Polcher and the latter’s bargain for a Cherokee scalp and Thatch’s substitution of the Creek’s hair.

Sevier heard him through in silence until he described the taking of the scalp. Then the borderer exclaimed aloud and cried—

“That’s more important than the disappearance of the girl!”

“John Sevier—”

“No, no. Calm yourself! Miss Elsie will be safe in McGillivray’s town. But, if it’s known a peaceful Cherokee has been murdered, we’ll have Old Tassel’s three thousand savages joining with Watts without waiting for any help from the Creeks. That will be the chance McGillivray has been waiting for—and the Lord help the Watauga, the Holston and the French Broad and poor John Robertson down on the Cumberland!”

“But no Cherokee will be missing, let alone be dead. It’s a Creek that furnishes the scalp,” reminded Jackson.

“And we can’t afford to have the Creek’s murder known any better than we could a Cherokee’s,” cried Sevier. “McGillivray would never forgive the slaying of his messenger. The office is almost sacred. — Hubbard for getting us into such a mess! Oh, why didn’t I examine the brush-pile when down there! I found it easy enough but thought it could wait till I had more time. Time? Every second fights against us!”

“If Major Hubbard hadn’t killed the Creek, then Thatch would have wiped out a Cherokee. It’s six of one and half a dozen of the other.”

“Not so. You would have stopped Thatch. But we’re wasting time. Make for the tavern. If Thatch isn’t in Polcher’s room in the back end toward the garden, he hasn’t arrived. You must hold him up and take the scalp from him.”

“And you?”

“I’m off to do what I should have done before—bury the Creek where none will find him. Report to me here. Remember what is at stake!”

“I’m an American,” growled Jackson, snatching up his rifle and gliding from the room.

The tap-room of the tavern contained half a dozen patrons, who sat along the walls in silence, as if waiting. A mulatto boy presided over the bar. There were none of the usual loungers outside the door, and the door was

closed. By these signs Jackson knew Polcher had dismissed all but a trusty few so as to leave a clear path for Old Thatch. Pausing only long enough to make sure Hester was not in the tap-room, the ranger skirted the zone of light and gained the garden at the rear.

There was a light in the room, but Jackson could not make out any occupants. From his position a man on either side of the room would be out of range. To make sure Thatch was not already there, he dropped behind some currant bushes and commenced crawling to one side. His manœuvre was halted by the sudden appearance of Polcher's figure blocking the window.

Then came the devilish whistle that carried the edge of a lance, and Jackson was startled and chagrined to hear a feeble reply back of him. Steps shuffled nearer, and the young Virginian knew he had lost his chance of intercepting Thatch. However, the game was not lost. The old man would deliver his ghastly trophy, and the next play would be to vault through the window and take it away from the tavern-keeper.

"Can't see a derved thing facin' the light," croaked the complaining voice of Thatch.

"Ssst! You fool!" hissed Polcher, placing the candle on the floor so that it fed up against his ferocious face but no longer blinded the gaze of his tool. "Come close. I've cleared the babblers from the tap-room, but it's best even they should not see you. I have the jug here, filled. Have you the price?"

"I've fetched the price," shivered Thatch, and he passed within three feet of Jackson in making for the window.

"Good! Good!" softly applauded Polcher. "I knew you had the right stuff in you."

"I—I couldn't git no furs!" huskily confessed Thatch.

"You brought the other?" anxiously demanded Polcher.

"It's here in my shirt."

"Then —— the furs and hand over."

"Here she be, but I'm mighty onnerved. Kindly pass out the jug afore I drop. I feel like the devil's been taggin' every one of my steps. Ugh!"

"Just a minute," mumbled Polcher, ducking from Jackson's view in bending close to the light.

"I tell ye I need some licker now," insisted Thatch. "I feel dretful sick. I can see all sorts of critters right beside me."

“Hush, you fool!” gritted Polcher, raising his head. “Here, I’ll hold it. Drink!” There came a protracted gurgling, followed by a deep sigh of content.

“Reckon now I’m game to face all the devils atween the Watauga an’ the Cumberland,” declared Thatch. “Gim’me my jug.”

“Not so fast,” muttered Polcher. “Stand close to the window. I’m going to lift the light long enough to see you ain’t covered with blood. That would give the whole game away.”

“There ain’t a speck on me,” proudly assured Thatch, leaning against the sill.

Polcher lifted the candle for a moment and briefly examined the head and shoulders of the old man, then dropped to the floor again.

“Ye’re a —— of a long time payin’ over that jug,” grumbled Thatch. “I want to be gittin’ back to my cabin. Goin’ to make a night of it. Reg’lar old blue devil comes out an’ grins at me—lives in the fireplace. Keeps yappin’ for me to make the fire hotter’n hotter. That is, he does when I have ’nough whisky.”

Polcher reappeared above the sill and seized Thatch by the arm and hoarsely accused:

“What the devil does this mean? This ain’t a prime, fresh scalp. It’s more’n a dozen hours old.”

“What ye tryin’ to make out now, Polcher,” choked Thatch, striving in vain to keep his terror from showing.

Polcher maintained his grip on the old man’s arm while he ducked his head for another study of the scalp. Then with a smothered oath he hissed—

“Creek hair! You—”

“Don’t! Don’t!” pleaded Thatch, his voice squealing. And he sought to tear his arm loose.

Polcher held him firmly and stared with lack-luster eyes into the frightened face for nearly a minute. His gaze seemed to exert a hypnotic influence on the wretch, for the struggling ceased, and the pleading stopped.

“Now tell me where you got a Creek scalp,” gently commanded Polcher.

Mumblingly and often inaudible to the eavesdropper behind the currant bushes, Thatch blurted out his story of having found a warrior buried under some brush. The man had been dead only a few hours, and he supposed it was a Cherokee.

“It was atween the three black oaks an’ a clump of poplars,” he explained. “An’ I couldn’t see why his sculp wasn’t jest as good as if I’d done for him.”

“It’s just as good,” slowly replied Polcher. “It’s much better. And the Watauga will pay the price when McGillivray hears of it. His messenger killed by the settlers! By the Almighty, but won’t he rage! And I know who killed him and scalped him, and we’ll prove it.”

“Polcher! Ye don’t go for to throw me, do ye?” whispered Thatch.

Polcher laughed.

“None of my friends did this.”

Thatch began to understand and faltered.

“Chucky Jack?”

“Think I’m a fool? No one so high as that.”

“Promise me it ain’t me,” groaned Thatch, his fears returning.

“No one so low as you, old friend.”

“—— an’ brimstone! Spit it out, Polcher. Ye make me think of that big blue devil in my fireplace! What’s the idee?”

“I have six witnesses in the tap-room who’ll swear that from a distance they saw you try to stop the murderer from killing the Creek; that, after he had killed and scalped his victim, he chased you into the woods to prevent you from blabbing.”

“Good!” ejaculated Thatch, his form straightening.

“They’ll swear that they came and told me and that we were about to go out and search for you and the murderer, when you came running here, chased by the scoundrel.”

“Hold on!” spluttered Thatch. “What’s that ’bout him tryin’ to ketch me? Of course he didn’t ketch me, did he?”

“Yes!” softly cried Polcher, darting his body half out the window to secure room for knife-play.

It was over before Jackson dreamed of what the finale was to be. With a low groan the old man fell to the ground, and the tavern-keeper’s figure was drawn inside the window like some monstrous spider retiring to its lair.

With a wild shout of rage Jackson leaped to his feet and discharged his rifle into the room a fraction of a second after Polcher had dropped below the sill. The report had hardly jarred the night calm before the landlord was raising his head to glimpse the ranger’s distorted visage almost at the

window. Darting to the door opening into the tap-room, Polcher threw it back and screamed:

“Help! Help! Surround the building! Jackson, the ranger, just killed Old Thatch in the garden! Jackson killed an Indian. Thatch saw him and he followed the old man here to stop his telling me! Back of the building and head him off if he takes to the woods!”

Nonplussed, incapable of intelligent thinking for a moment, Jackson stood with empty gun while Polcher shouted his terrible accusations. Then came the rush of swift feet, and the young Virginian knew Polcher’s creatures had been kept in waiting for just such work. He knew Thatch would have been killed in any event and the alarm given that Kirk Jackson had done for him.

Retreating from the garden, he worked his way toward the court-house, only to observe lights springing up in the nearest cabins, the inmates being alarmed by the rifle-shot and the loud cries of Polcher and his men. Jackson dodged one of the tavern posse and escaped discovery by a hair-breadth. The court-house was dark, Sevier had not returned. To wait for him and withstand the temper of Polcher’s creatures was out of the question. At the midday meal Stetson had repeated his offer of a horse, urging him to select an animal from the log corral any time.

Five minutes after escaping the garden he was well down the trail back of the court-house and leading a horse from the pen.

Another five minutes and Sevier came face to face with a group of citizens in front of the court-house. Some of them carried torches. Among them were several of Polcher’s men; some were honest men.

“What’s all this confusion about?” demanded Sevier. “One would think there was an Indian raid on.”

“Yer friend, Kirk Jackson, has killed a friendly Injun!” roared a tavern man.

“Prove that, and we shall have to hang Mr. Jackson,” Sevier promptly replied. “But, if any one tries any promiscuous hanging, he’ll dangle from an oak limb just as sure as I’m called Nolichucky Jack. Burn that fact into your brains. We belong to no State now. Until we’ve arranged some form of government, I’m the law. Let a hair of Jackson’s head be harmed before his guilt is proven and I’ll hang the offender. And the first man to tread air will be Polcher, the tavern-keeper. Now we’ll hear the evidence.”

CHAPTER IV

FOR WATAUGA AND AMERICA

WHILE some of the men, notably those under the influence of Polcher, pressed the search for Jackson, others heeded Sevier's request and repaired to the court-house to conduct an inquiry into the tragedy. There was none so simple-minded as not to realize that the death of either Creek or Cherokee might precipitate a bloody war. With Spain in league with the Creek Nation, it was only the pacific tendency of Old Tassel that had restrained the Cherokees under his immediate control. There were other thousands of Cherokees who only waited for a strong incentive to send them into line with the Creeks.

The five lower towns on the western frontier of the Cherokee country, including Creeks, Shawnees and white renegades as well as the original Cherokee founders, lusted and clamoured for battle. John Watts and Dragging Canoe, their leaders, only waited to augment their numbers before striking. To start the riot of bloodshed and burning cabins it only required some isolated act such as the unprovoked slaying of an Indian near a white settlement. For two years the situation had been shaping up. If ever Spain was to establish an empire by force in America, no fairer opportunity could exist than the present.

Of course there was Old Thatch's death to be investigated, but aside from his tavern cronies there were few to lament his passing. His demise could be considered leisurely; it carried no train of red axes. The murder of the Indian was epochal. The settlers assembled in the court-house viewed the situation objectively. Whether the dead be Creek or Cherokee, his people would seek reprisal. Sevier's vision carried him beyond the Watauga. He saw the destiny of the new world about to unfold. The vast western country was unexplored except as half-civilized forest-rangers penetrated depths they could not comprehend.

The door to this unknown region was closed, and Sevier knew it must soon open and reveal a home-maker's paradise. Bold men in Kentucky had glimpsed the marvellous possibilities. Now was the crisis; an Indian's death might be the hinge on which the door would swing to admit either imperial Spain or democratic America. Could it be kept shut a bit longer, until Chucky Jack had summoned the faithful, then let it open as widely as it would and Spain face her answer.

"Where's this man Jackson?" asked a settler.

"Probably dodging the mob. He'll appear when he knows he can have a fair hearing," said Sevier. Then to a man near the door, "Stetson, go and find Polcher. He doesn't seem to be here."

As the messenger departed, Sevier began scribbling on the back of his petition. The men believed he was setting down the known facts of the double killing. Had they glanced over his shoulder they would have read:

Isaac Shelby, Geo. Rogers Clark and Benj. Logan will raise 5,000 men in Ky.

Arthur Campbell will be good for 3,000 more in southwest Va.

Robertson can surely bring 1,000 from the Cumberland.

Elijah Clarke can raise at least 5,000 in northern Georgia.

We are good for 3,000.

Tot. 17,000 rifles—if we have time.

He studied the list thoughtfully and nodded approval. Give him a few inches of time before the storm broke, and he would stake his soul on the American manhood of the seventeen thousand riflemen he had listed. If Spain and her tools could be held off for a few months, then the Western door would swing back to allow men in buckskin to file through and take possession. He drummed on the table idly, then tore off a strip of paper containing his notes and fed it to a candle. With the exception of George Rogers Clark, all the men on the list had fought with him, some under his command.

"Didn't know your friend was so keen set ag'in Injuns, Jack," spoke up a grey-bearded man an honest if simple fellow.

"It's his fightin' ag'in' the Shawnees," declared a tavern lounge.

"Kirk Jackson has killed too many Indians in open warfare to have to slay them by murder," growled Sevier. "We won't convict till we've heard

the evidence. We haven't any proof yet that an Indian has been killed. After that's shown it will be time enough to name the slayer."

"Polcher's got the proof. He'll be here in a second," cried a voice.

Sevier rose and strolled to the door, his manner calm but his nerves inclined to jump. Through the doorway he had glimpsed the face of Major Hubbard, and he feared lest the Indian-hater should enter and boldly announce his bloody coup. Standing so as to block the gaze of those behind him, he caught Hubbard by the shoulder and whispered:

"The devil's to pay! Your one dead Indian may bring death to many women and children. Let no one know you did it. You'd better go away until it's over. I'm hoping I can stave it off—that they won't find the body."

Hubbard hesitated, then the feeble wail of a child from some cabin struck to his heart, and with a shudder he slipped back into the darkness just in time to avoid being seen by a group of men carrying torches. As the men drew up to the door, Sevier saw they had brought the silent form of Thatch on a stretcher of rifles.

Sevier stepped aside and the men filed in and deposited the body on the floor before the table and took their seats. Polcher remained standing until Sevier returned to the table, when he approached and placed the Creek scalp before Sevier. The borderer bowed abstractedly and waited for the tavern-keeper to retire.

"We will now open the inquiry into the death of Amos Thatch," announced Sevier. "Polcher, what do you know about it?"

Polcher stood up and testified: "I was in my room, with a coloured boy tending the bar. I was figuring up my accounts when I heard my name spoken softly and looked up to see poor Thatch's face at the window. He seemed to be badly frightened. I thought it was nerves, the need of a drink. I picked up a jug and gave him a drink. The liquor seemed to straighten him out, and he told me he was trying to escape the man called Kirk Jackson. He said he had come upon Jackson down the trail and that Jackson was ripping the hair off an Indian he had just shot—"

"Did he say he saw him shoot him?" broke in Sevier.

"I don't think so. He talked fast and was much frightened. I remember he said the shot attracted his attention. He was lying down, had been asleep. He got up and saw Jackson scalping the Indian. I take it for granted he didn't see the shot, although he must have been very close. Of course his story was more or less broken up. I'm only giving the substance of it. He

said he cried out and asked Jackson why he killed the Indian and risked bringing on a war. Jackson sprang to his feet and snapped his rifle at him, forgetting he hadn't reloaded it.

"Poor Thatch then ran for his life with Jackson after him. He knew Jackson would catch him if he didn't hide. He managed to dart into a hollow tree. Knowing Jackson would kill him to prevent his being a witness against him, the old man kept in hiding till long after dark. If he could make my place without being seen, he knew I would protect him. His talk was wild because of his fear. He insisted he was followed, that Jackson was right behind him. He wanted to crawl through the window. Poor Old Thatch! If I'd only let him in through the window! But I thought it was all nonsense.

"He'd been drinking too much the last few days, and only this morning I refused to let him have some whisky. I told him to pass round to the tap-room door and I'd see that no one harmed him. He started to do so when some one jumped him from behind the currant-bushes. The old man must have lost his head, for instead of running up to the window he stood in his tracks as if paralyzed. Then he yelled out, and I knew he'd got it.

"I climbed through the window and Jackson saw me and fired. I called to the men, and they came on the run. We got lights and found where Jackson hid behind the bushes. The tracks of his Shawnee moccasins are very plain. You can see them for yourself. It was at that spot we found the scalp I've given you. I think that's all."

"Very connectedly told," murmured Sevier, rapidly making some notes. "Did you see Jackson to recognize him?"

"I did. After I leaped through the window he started toward me, then heard the men coming and thought better of it. I saw his face plainly."

"That would seem to prove the killing of Thatch," mused Sevier, rising and advancing with a candle to the body.

He held the candle close and superficially examined the location of the wound and measured the cut in the soiled hunting-shirt. Returning to the table he asked—

"Are there any witnesses to the killing of the Indian?"

One of the tavern characters stood up and awkwardly bobbed his head.

"Job Twill," greeted Sevier. "Tell what you know."

Twill began:

“Me’n two other fellers was down on the trail an’ seen this Jackson crawlin’ toward the three black oaks. We watched, ’lowin’ he was goin’ to bag a deer. Then we see a Injun stick his head out of some bushes, an’ this yere Jackson cuss fired. Almost the same time we seen poor Thatch come through the bushes an’ go into the bushes after Jackson. Afore we could git to thinkin’ straight, Old Thatch busted back into sight, runnin’ his old legs off, with Jackson poundin’ after him. That’s all we seen.”

“Who were the two men with you?”

“Lon Hester ’n Bert Price. They’re out huntin’ for the murderer now.”

“I see. You were in the tavern this morning when Jackson had trouble with Hester?”

“I was there when he picked a row with Hester,” growled the witness.

“They laid aside their weapons?”

“Yes, ’cause Polcher wouldn’t have any killin’. Hester threw his knife on the bar, an’ Jackson hung his ax an’ pistol on his rifle. That is, he hung his belt holdin’ ’em on the rifle.”

“Can you describe the pistol?”

“Long one, with the bar’el all scarred up, like it had been banged round a lot.”

“Good for you, Twill. You’ve got a sharp eye. What about the ax?”

“Ahem!” broke in Polcher, trying to catch the witness’ eye but unable to do so because Twill stood in front of him. “I think—”

“I think you’ll be lying beside Mr. Thatch if you interrupt these proceedings with another word!” roared Sevier, covering the tavern-keeper with his pistol. Then to the startled witness, “Go on, Twill.”

“Th’ ax wa’n’t a common trade ax. It was made for real work, extry strong an’ the handle showed hard wear,” faltered the witness, feeling Polcher’s gaze boring into the back of his head but not daring to look back.

“Excellent!” heartily approved Sevier. “Give me a thousand men with your eyes and memory and I’d ask help of neither State nor Congress. But we must get along faster. Now describe the knife.”

“There wa’n’t no knife,” the witness promptly answered.

A faint growl of rage from Polcher and a wide smile from Sevier warned the witness his patron was displeased with his evidence. Half turning his head and entirely missing the cue Polcher’s savage gaze was seeking to convey to him, he persisted:

“Don’t ye remember, Polcher, when he hung his belt on the rifle, it held only a ax an’ pistol an’ that there wa’n’t no loop for a knife? One of the boys spoke about it after he went out that it was queer he didn’t carry no knife. An’ Price said he might ’a’ killed lots of Injuns but without a knife he couldn’t ’a’ took any—”

Too late he saw the trap he had been led into, and with a terrified stare at the ominous-eyed tavern-keeper he halted and bit his lips, then glared helplessly at Sevier.

“Without a knife he couldn’t take any scalps,” completed Sevier. “In spots, Twill, you’re an honest witness. You speak the truth when you forget. Kirk Jackson carried no knife when he came to Jonesboro. What is more, he always fought honourably and did not scalp. Polcher made a mistake in thinking he recognized him. Amos Thatch was killed with a knife, a broad-bladed knife, not a hunting-knife. Jackson never killed him. Now, Twill. No, no; look at me. Now, sir, you dare tell Nolichucky Jack Sevier that you and Hester and Price saw Jackson shoot an Indian? Be careful. I’ve hung horse-thieves in Jonesboro. I’ll hang you for a liar before morning if you don’t tell the truth.”

Twill turned a ghastly white and licked his lips frantically. In the blazing eyes of Sevier he saw the noose if he were caught bearing false witness. He knew Polcher’s cruel gaze was warning him his days were numbered unless he persisted in his story. But Sevier had meted border justice to several of Twill’s cronies.

“I—I may have been mistook,” he faltered, gulping out the words with difficulty and knowing he must leave the Watauga country before morning if he valued his life. “It was a right smart distance off. Mebbe it wa’n’t Jackson. I’d—I’d been drinkin’ hard.”

“Maybe you didn’t see anything. Just dreamed it?” suggested Sevier.

With a low groan Twill made complete surrender before the compelling gaze and desperately cried out:

“I reckon so. Jest dreamed it. An’ I want to git out of here.”

Sevier nodded toward the door. As Twill made for it, Polcher sprang to his feet as if to follow him. Sevier raised the pistol and warned:

“Not another step, Polcher.” Then humorously, “I’ll have no tampering with the witness.”

Polcher returned to his seat and quietly promised—

“The red war-club will be lifted up for this, Sevier.”

"Hayi! Yu!" sneered Sevier, using the introduction of the sacred formula for going to war. "I know your heart well. You wait and long to hear the red war-whoop, but your soul shall become blue. So shall it be." Then to the others, "It's time now, my friends, to visit the spot where this Indian is said to have been killed."

"Said to have been killed?" choked Polcher. "And the poor devil's scalp is before you on that table."

Sevier picked it up and examined it curiously and invited:

"Stetson, you know scalps and Indians. Come up here."

The settler advanced and bowed his broad shoulders over the table and held the scalp up to the candle and examined it closely. Then in surprise:

"This ain't no fresh scalp. It was took from a Injun who'd been dead for hours. Huh! Looks like it was took off by a blind man. No border-man would scalp like that. Besides, the Injun was so long dead no blood come. What kind of a game is this, anyway?" And he turned and glared angrily at the tavern-keeper.

"So much for Stetson. And he knows what he is talking about," said Sevier. "Now we'll take torches and go down the trail to where the Indian was killed. The three oaks make the spot easy to find."

"I can lead you there in the dark," Stetson assured.

"But we'll carry lighted torches, and Polcher will go with us," Sevier significantly ruled.

And the mixed-blood knew the words contained a threat.

"I'll be glad to go," stoutly declared the tavern-keeper. "I want this thing cleared up as much as any one does. All I know about it is what I've told. Thatch's story prepared me to see Jackson when the old man was killed. Perhaps I made a mistake, but, if I did, it was an honest one. The knife part doesn't prove Jackson innocent, for he could have picked up a knife anywhere."

"True," agreed Sevier softly, "but I'm surprised he should pick up a butcher-knife. And Twill's story—"

"I'm not responsible for that," hotly broke in Polcher, ignoring the reference to the mortal weapon. "He heard me tell the boys what I'd been told and had seen. He up and told me his story. I supposed it was the truth. It looks now as if he wanted to appear important."

Nor did Polcher believe his scheme had failed. If Jackson escaped his net, there still remained the big, vital objective—the precipitation of war

between the reds and whites. The plot to implicate Jackson had been at the most a by-play to satisfy Polcher's hate for Sevier. He would have struck him by striking his friend. But, so far as the real purpose was concerned, it mattered not whether Jackson or Thatch was believed guilty of the killing.

All Polcher asked was for the news to spread that a Creek had been murdered. He had originally planned to assassinate a Cherokee, but the Creek fitted in just as pleasingly. Therefore it was with genuine alacrity that he caught up a torch and took a place beside Sevier at the end of the little procession.

Stetson took the lead. Polcher walked in silence beside the borderer for a minute and then gravely asked—

“What's to become of us, John, now that the mother State has cast us off?”

“We're not entirely orphaned,” Sevier retorted. “We can rap on the door of the central Government, and, as a separate State, say, ‘Here is your child.’”

“But will the Government take us in? Can it protect us?”

“If it can't protect us, it doesn't make any difference whether it takes us in or doesn't. We can keep on shifting for ourselves as we've always done.”

“I sometimes think you misunderstand me and my motives,” Polcher regretted.

“Never!” emphatically assured Sevier with a broad smile.

“All I want to do is my duty by the settlers on this side of the mountains,” Polcher warmly declared.

“Our first duty is to see that the settlers in this valley and those on the Holston and French Broad are not wiped out by that red ax you said was coming.”

“I spoke foolishly,” sighed Polcher. “I only meant that the killing of this Indian would make trouble. You and I are one in wanting to save the settlements. Why not accept aid where we can find it?”

“From over the water? Already we've stood more from Spain than we ever endured from the mother country. If we didn't want a separate existence, why did we go through a war that's left us bankrupt?”

“We could accept help till we're strong enough to strike out for ourselves,” insisted Polcher.

“The man who'd sell us to Spain would next be selling us to the devil,” Sevier sharply retorted. “As for strength, we're strong enough now to send

a red ax to every Indian nation in the South—and another to Charles III.”

Polcher knew this was said for rhetorical effect and did not represent Sevier’s true belief. But he took the words seriously and argued:

“I can’t see that. Other men, bigger than me, can’t see it, either.”

“Meaning Tonpit.”

“You named him; not me. There are men over the mountains, who stand very high, who believe it would be our salvation from the Western Indians if we had Spain at our back.”

“Spain at our back today means Spain at our throats tomorrow.”

“Bosh! Then there are the Northern Indians. When you get a war-belt from Cherokee and Creek, you’ll get others from the Ohio tribes. Just now the friendship of Piomingo, the Chickasaw chief, for Robertson holds that tribe back. But what if Robertson dies or Piomingo dies? What will hold the tribe back then? And, as the Chickasaws go, so go the Choctaws, seven thousand in round numbers.”

“We haven’t come to that trail yet.”

“But it’s only a step ahead. How can the Western settlements get anywhere or do anything under the present Government? We’re shut off from the seaboard. Spain controls every mile of the Mississippi. Our tobacco rots on the ground. We’re hemmed in. If we accepted Spain’s friendly offer, we could ship our tobacco down the Mississippi and sell it in New Orleans for ten dollars a hundred. Today a man’s lucky to sell any of his crop for two dollars a hundred. And so it is with everything else. We’ve everything to win and nothing to lose.”

“Polcher, you’re a dangerous man, the most dangerous man on the border. Your trade-talk will catch some settlers who are honest at heart but who only think of selling their tobacco. You have other lines of talk to win over the man who refuses to make a move that will divide or weaken the thirteen States.

“Now listen; I know you. I see your hand in the death of Old Thatch. I understand how gladly you’d hear that the Cherokees have gone to water as a nation. I can picture your joy when you hear Creek and Cherokee have taken the red path together. Now this will surely happen: I shall kill you if I can prove you’re working to throw the Western settlements into the lap of Spain. I know you’re doing it, and, when I can prove it to the satisfaction of a dozen men like Stetson, you’ll swing.”

“You talk big about killing folks,” snarled Polcher. “Any more threats?”

“Only this: you spoke of Piomingo’s friendship for Jim Robertson. The minute I hear Piomingo is dead I start out on your trail. And don’t figure on your Cherokee blood providing you a hiding-place in that nation. I’d dig you out even if you were hid in the white peace town of Echota. I have spoken.”

“Here we are!” called out Stetson. “Light extry torches.”

This was speedily done, and, as the three black oaks and the clump of poplars sprang into the light, the men took up their search for the dead Indian. Polcher was most zealous in the task, and Sevier kept close by him. But, although the men scattered and hunted carefully, and although the glare of the torches attracted those men who had been seeking Jackson, no trace of the murdered Creek could be found.

“It’s mighty queer,” mused Stetson, rubbing his head in perplexity. “If the Injun was killed, he wasn’t et up or burned up. But where’s the body?”

“If!” snarled Polcher in great disgust. “Didn’t you see his scalp?”

“I’ve seen lots of Injun hair,” Stetson quietly replied. “I’m beginning to think that partic’lar hair is older’n even I thought it was. One thing’s sartain: there ain’t no dead Injun in this neck of the woods.”

“Of course the murderer hid the body,” cried Polcher, now prepared to play his trump card, and his gaze shifted for a second to the pile of brush, under which, as Thatch had told him, the Indian was concealed.

“Not if he chased Thatch, as the old man claimed,” said one of the searchers.

“He had plenty of time while Thatch was hiding in the hollow tree,” Polcher returned. “Ah! I wonder if this hides anything!”

And he ran to the pile of brush and cast a triumphant glance at Sevier.

“Now perhaps it does,” agreed Sevier. “It’s so exposed one wouldn’t think to look in it. The murderer probably thought of that.”

And he vied with Polcher in tearing the mound to pieces. They came to the forest floor without finding any trace of a corpse.

Polcher bit his lips to hide his rage. He knew that some one had forestalled him; he wondered if it could be Sevier. He began to feel uneasy at Sevier’s way of always keeping at his side. Chucky Jack’s threat to hang him if he caught him in overt treachery suddenly became very real, and he mechanically felt of his throat.

Sevier would not abandon the quest, however, and insisted:

“We must make sure. Let us all spread out in a wide circle and gradually work in to this spot. Let no hollow tree, pile of rocks or loose brush be overlooked. If an Indian has been killed, a most serious crime has been committed and we may find ourselves at war before we are prepared.”

“My woman’ll be crazy if I don’t git back,” growled Stetson. “Job Twill as much as said he didn’t know anything about it. Where’s Bert Rice and Lon Hester?”

The two names were shouted repeatedly, but neither of the men appeared. Stetson continued:

“They’re the only two other witnesses known, and I figger they don’t know any more than Twill did. I’m satisfied no Injun’s been killed.”

“But Old Thatch was killed,” cried Polcher, taking a step back. “There’s no make believe about that.”

“That’s another bar’el of cats,” grunted Stetson. “I’m going home.”

“Yes, Thatch was killed. But if no Indian was slain his story must have been a case of too much liquor,” murmured Sevier. “That brings us back to the question; who killed him?”

Polcher was alarmed. Not only was his whole scheme tumbling about his ears, but he felt death in the night air and even fancied he detected Sevier examining the dark boughs overhead as if in search of a gallows cross-beam. He cursed his lust for personal vengeance. If he only had accused Thatch of the crime! Or Hester! Where were his wits that he had not utilized the trick for disposing of Hester? Hester was becoming a nuisance, and it was only a question of time when he must be removed. Used as an ignorant tool, the fellow had assumed such airs as to threaten embarrassment to the plans of his Majesty, Charles III.

But more poignant than any regrets was the accumulating fear of the unseen counterplot. He knew Thatch had stumbled upon a dead Indian. And some one had concealed the body. He began to doubt his own perspicacity and to imagine other secret plots were unfolding to hem him in. For the first time in his life he knew what it was to tremble on the edge of a panic. With a sidelong glance he saw Sevier was watching him curiously. With a mighty effort he recovered his self-control and demanded:

“Let no one go back until we’ve formed the circle as suggested by Sevier. Somewhere near here is the dead body of an Indian. One more effort before we cry quits.”

He seized a torch and led the way deep into the forest, calling out for the men to scatter and make the circle complete. The men hesitated, but, as Sevier took up a position within a rod of the tavern-keeper, they grumbled and did as told, even Stetson changing his mind and participating in this, the last effort.

“All ready over here,” bellowed Stetson.

The signal was repeated until it had run round the circle, and the men began to slowly advance toward the common centre. Ostensibly Sevier searched most carefully, but always with a sidelong glance to see that Polcher’s torch was on his immediate right. As the men worked inward they came nearer together, but it was not until they were but a few rods from the three oaks that Sevier gave a low exclamation of anger. The man next to him was not Polcher but one of his tools.

Seizing him by the shoulder Sevier fiercely demanded—

“Where’s your master?”

Frightened, the man did not speak for a moment; then he faltered:

“I don’t know. He gave me his torch to hold while he looked under some brush.”

“Every one scatter and look for Polcher!” roared Chucky Jack. “I charge him with killing Thatch. The job was done with a butcher-knife, like what he carries under his apron. Stetson, take three men and follow me on the jump. You others beat the woods toward the settlement and come to the tavern.”

“What’s on your mind?” asked Stetson as he raced beside Sevier up the trail.

“I think he’ll make for the court-house. To get that scalp!”

“He’s lighting out?”

“He’ll be hiding among the Cherokees by morning.”

Nothing more was said until they reached the court-house. Then, as they entered and by the stub of the candle beheld the horn of ink spilled on the table and inky finger-prints on the worthless petition and top of the table, Sevier quietly announced:

“He’s been here and gone.”

“And he took the scalp!” cried Stetson.

Sevier smiled and drew it from his hunting-shirt, saying—

“It was too valuable to leave behind.”

One of the settlers now thrust his head in at the door and informed:

“Polcher’s hoss is gone. The mulatter says he come an’ got a pile of money from a hiding-place under the bar. He’s lit out jest as ye thought.”

Others now came up, and from the doorway Sevier addressed them, saying:

“My friends, it’s all over. Polcher’s gone, showing that he killed Thatch. There’s nothing more you can do except to choose a guard to keep the trash out of the tavern. The men on guard are to find and keep for me all papers in the tavern. The rest of you go home to your families. Stetson, you stay here for a bit.”

After the men had departed, Sevier thrust the scalp through a crack in the floor and poked it with the point of his knife until it entirely disappeared. Then to Stetson he directed:

“Send a messenger to Kate, telling her from me that I sha’n’t be home until I come. She’ll understand. Send other messengers in my name warning the border to be ready to ride to me wherever I may be. See that Thatch is decently buried. If young Jackson turns up, tell him he’d better wait here till I get back. He was mixed up in a way he never dreamed of. I sent him to Polcher’s. Can’t tell you now; no time. But he acted under my orders. They jumped him; I wasn’t there, and he took to cover. Tell the boys he’s thoroughly innocent. I couldn’t tell them tonight without showing Polcher I knew his game. I had to let him have rope; now he’s got enough to swing on.”

“You’re going away, John?”

“I start inside of ten minutes, as soon as I can get my horse. If alive I’ll be back when the delegates arrive to settle our new form of government. If I’m not back, you will ask Judge David Campbell to take the lead. Now go, and don’t forget the messenger to Kate.”

“You’re sure—quite sure you can’t take me along, John?” begged Stetson.

“Not this time, old friend. I ride far, and I must ride hard, and I must ride alone.”

“Then God be with you!”

“May He be with Watauga—with America!” softly added Sevier.

He wrote a few words and handed them to Stetson saying:

“A few lines to Judge Campbell if I’m not here. Now, good night.”

Their hands met, and Stetson reluctantly departed.

Sevier caught up his weapons from behind the table and hastened to his horse corraled back of the court-house. As he threw on the saddle he told the intelligent animal:

“Tonpit and Polcher are ahead of us, old boy. We’ve got to kill Polcher and head Tonpit off. Neither must reach Little Talassee. If we can steal Miss Elsie, then Tonpit’s errand is spoiled. McGillivray won’t trust him till he has the girl as a hostage.”

CHAPTER V

THE ANCIENT LAW

ALL over-mountain men rode well, and their mounts were the envy of both red and white thieves. Among the saddle-bred, however, Chucky Jack was given the palm. Until he reached the French Broad, he spurred along openly, sticking to the trail. The occasional settlers he encountered invariably caught up their arms and made for their horses, only to be told their leader rode alone. After crossing the river the little clearings were more scattered and the approach of the rider brought the gaunt border-men to sharp attention, rifles ready, until he shouted his name.

Once south of the Broad he traversed a land where Death stalked abreast of each passing minute and the husbandman worked with his rifle at his side and the children were taught not to stray from the cabin door. For this was the ragged edge of Western life, where the first threads would be unraveled should the red scourge essay to tear its way to the mountains. On the right of the Great War-Path were scattered the homes of the Holston folks, a tense, grim people waiting for what the next hour might bring them.

Once below the rough parallelogram formed by the Watauga, the Holston and the Nolichucky, the horseman had left the settlements behind him and rode more circumspectly. The site of what was to be Knoxville would not receive its first visit from white men, James White and James Connor, for another three years. A tavern and a court-house marked the beginning of Greeneville. Below this "settled" area were a few "stations," as the blockhouses were called, consisting of the usual stockade inclosing a few small cabins. Invariably these cases of civilization were girt about by the primeval forests.

"Sevier rides alone!" was the word flashed from clearing to clearing on both sides of the Great Trail, and men wondered, and women called the children indoors and stoically awaited the result of the wild gallop.

For Chucky Jack, their idol, was not given to racing into the wilderness unless spurred on by the imperative.

At the Tellico crossing Sevier met a frightened hunter who said he had seen a white man, riding like mad.

“Was there a girl with him?” asked Sevier.

No; he was alone, it seemed.

With a word of thanks Sevier warned:

“Get back to the Broad! This country won’t be safe for any honest white man.” And with a prick of the spur he was darting away.

At times he avoided small bands of Cherokees, but these were not overwatchful as none dreamed of a white man so far within their country. When near the Hiwassee, the borderer drew aside and sought a ford farther to the west of the regular crossing. River-crossings were the favourite haunts of those younger Cherokees who refused to heed the council of pacific elders.

Now, too, each mile of the way brought Sevier that much nearer to the lower towns on the Tennessee, where the motley hordes of white refugees, Shawnee outcasts, Creeks fleeing tribal punishment, as well as turbulent Cherokees, held the towns of Nickajack, Crow Town, Long Island, Lookout Mountain and Running Water. Implacable hatred for the whites was the occasion of these villages, and from them radiated an atmosphere of hostility that no number of peace talks could soften.

It was while seeking a ford that Sevier came upon something that furrowed his brows and caused him to examine his weapons. It was a soiled apron, thrown on a bush. It marked the passing of Polcher, and it openly advertised his identity to any passing savage. Its presence west of the regular ford told Sevier the man was hastening to the lower towns, where the Chickamaugas under Watts and Dragging Canoe would respond promptly to his urging for immediate war.

It revealed the cunning of the man, for, had he paused to win over Old Tassel’s people in the eastern villages, he would have lost valuable time and laid himself open to discovery by a pursuing posse of settlers.

“He strikes for headquarters of the war faction,” Sevier told himself. “Let him go. They can do nothing without the aid of the Creeks. My path lies south of Lookout Mountain town to the Coosa. All I ask is that I may overtake the Tonpits.”

His rapid, stealthy flight, his evasion of all villages minimized his chances of picking up Tonpit's trail. But, knowing the couple were safe in the Cherokee country and convinced they were making for McGillivray's town on the Coosa, he had planned to press forward with all speed to the head of the river below the Chickamauga towns and there endeavour to intercept the two. If luck were with him, he would accomplish this before Polcher had finished his talk with Watts.

Dismounting, he studied the faint trail left by Polcher's horse and decided it was at least twenty-four hours old. This lead was in part represented by the tavern-keeper's hurried flight from Jonesboro and in part by his freedom to ride posthaste by the shortest route regardless of villages. On the whole Sevier was much pleased with his own progress, for he had been compelled to make detours and to dodge roving bands of savages.

He followed the trail to the river and studied the opposite side with care. There was no sign of life except a *huhu*, or yellow mocking-bird. High in the heavens floated the *awahili*, the great sacred bird of the Cherokees, the war-eagle. The superstitious would have found an ill omen in the eagle's course toward the Chickamauga towns.

Its white tail-feathers tipped with black would buy the best horse in any village. It could be killed only after the crops had been gathered and the snakes had denned for Winter, just as the eagle songs must not be sung until the snakes were asleep. But Sevier was not superstitious, and, if he found any symbol in the great bird's majestic flight, it prompted him to picture the expansion of a mighty nation toward the western sun.

Taking his horse by the bridle he waded into the ford and the mocking-bird darted away. He was hoping no Indian had seen the songster's fright when there sounded behind him the click of a rifle being cocked. He stopped with the water swirling about his knees and looked back. A glance sufficed to tell him his plight was hopeless did he offer resistance. Fully a dozen warriors were on the bank with rifles aimed.

Turning and leading his horse back to them, Sevier complained—

"When a Cherokee brings a talk to Tsan-usdi he is not met with a pointed gun."

One of the warriors met him as he came out of the river and relieved him of his rifle and belt and significantly replied—

"They say that when a Cherokee went to see Little John he left his scalp."

Eyes flashed, and bronzed hands played with knife and ax at the speech. Sevier knew Polcher had begun spreading his poisonous tale and that by this time the story was radiating through the wilderness, village after village catching it up and passing it on. Like magic would the news spread throughout the nation.

“By the lips of a Cherokee himself you shall learn that it is a lie. None of your brothers has been harmed in Jonesboro where the Cherokee talks are brought to me,” quietly answered Sevier. “Who commands here?”

“We follow John Watts,” sullenly replied the warrior.

“Chickamaugas, hopelessly hostile,” Sevier inwardly exclaimed. Then aloud, “Where is he? I bring him a talk. I have come fast as the wind to see him.”

“He is near. You shall see him,” was the grim reply.

“Then do not keep me waiting,” was the brusque command. And the borderer leaped on his horse.

The Indians feared him as they had never feared white or red man, and, although he was unarmed and greatly outnumbered, they kept their distance and nervously covered him with their guns as if fearing some magic. The temporary leader of the band went ahead and frequently glanced back to make sure Chucky Jack was not too close to his heels.

Sevier whistled softly, outwardly calm and indifferent. As a fact, he would have preferred that almost any other man than Watts should be ahead of him. He had fought Watts and whipped him, but he respected him for his courage and shrewdness. He considered him the most astute of all the Cherokee leaders, the one chief destined to succeed Old Tassel. Watts was hopelessly belligerent, where Old Tassel sought to gain his ends by trickery and diplomacy.

“Where is Tall Runner?” Sevier sharply called out to the warrior ahead.

“Ask those who laid down the Black Path for his feet to follow to the Twilight Land,” was the ominous answer.

“Tall Runner will come to give you the lie,” coolly declared Sevier. “He has not gone to the ever-darkening land in the west.”

The savages’ firm belief in the warrior’s demise set the borderer to wondering, however. What if Polcher had overtaken Tall Runner? It might easily have happened that the fleeing horseman had come upon Old Tassel’s messenger. And, had it happened, Sevier hadn’t the slightest doubt concerning the tavern-keeper’s readiness to slay the man and blame his

death on Jonesboro. He suddenly decided that his life was most critically in the balance.

“The soul of Tall Runner turns to nothing. It becomes blue,” chanted the warrior ahead, his voice taking on the intonation of a *shaman*.

Sevier held his tongue, knowing his fight must be waged with Chief Watts. In silence the party passed up the bank for a mile and then crossed and struck into a well-beaten path and turned northwest. Another mile and they came to a village. The habitations were substantial log structures surrounding a council-house. Evidently it was a prosperous village, for hogs and fowls wandered about in large numbers, and many horses grazed on the outskirts. Gardens of beans and corn flourished between potato-fields and fields of squash. Along the edge of the clearing stretched peach orchards.

Women engaged in basketry and pottery ceased their labours as Sevier was brought in, then pretended not to have seen him and bowed over their work.

A little girl, carrying a milk-tooth by a string and intent on replacing it by the time-honoured custom of invoking *dayi*, the beaver, famous for his strong teeth, came running round a cabin. She shrilly cried out four times, “*Dayi skinta*” (“Beaver, put a new tooth in my jaw”) and completed the formula by throwing the tooth on the parental roof. Not seeing Sevier because of her excitement, she bumped into him as he leaped to the ground.

Her terrified squeal was hushed as Chucky Jack caught her up and smiled into her little face. He patted her head and fished out a small trade mirror from his hunting-shirt and pressed it into her hand and earnestly assured:

“The Gnawer will give you a new tooth very soon. Look in this each morning, and some morning you will see it.”

With that he set her on her feet. She opened her mouth to bleat in fear but caught a glimpse of her face in the mirror and smiled and decided there was nothing to be afraid of. Neither warrior nor squaw gave any sign of having noticed the little incident, but among the women looks were exchanged as the great borderer was conducted to the council-house. And more than one mother whispered in awe—

“Tsan-usdi!”

Ignoring the cane-benches, which were reserved for the head men, Sevier threw himself down on a bearskin and curtly demanded:

“Where is John Watts? Do not keep me waiting.”

Fear and respect dominated his captors, and the leader replied:

“He will be here soon. A messenger has gone for him. He rode early this morning and should now be coming back.”

“Do not keep me waiting,” Sevier repeated.

The warriors withdrew and took up positions about the council-house. As the leader passed out, he reached to one side and caught up something and carried it before him, but not before Sevier recognized it as a large soapstone pipe. His features changed none, yet the warrior’s stealthy act in withdrawing the pipe kept alive his sense of danger. The removal of the pipe had two significances: it had been used in cementing a peace pact; and it was not to be offered to Sevier.

“The Creeks came here hotfoot on learning the Watauga settlements had been ceded to the central Government and are no longer under Carolina’s jurisdiction. Watts has struck a bargain with McGillivray,” Sevier quickly deduced.

Half an hour passed with the village remaining very quiet. Then sounded a slight confusion, and the prisoner knew Chief Watts had returned. The low murmur of voices suddenly ceased. The little girl wishing the new tooth shyly thrust her head through the door and invited the stranger to confidences and more gifts. A strong hand gently lifted her away; then Chief Watts, arrayed for hunting but carrying no weapons except the knife in his belt, entered the room, followed by a file of head men.

“I greet you, Little John,” he gravely saluted as he seated himself on a bench.

“You have kept me waiting,” rebuked Sevier.

Watts’ beady eyes flickered a tribute to Sevier’s nerve, and with ironical meekness he replied:

“I am sorry. As soon as I knew you were here, I came. What is your business so far inside the Cherokee country?”

“I seek a murderer, a white man. I have no time to waste. Three thousand riflemen will misunderstand my absence and come searching for me if I do not get back to them.”

The warriors fidgeted uneasily at this threat. Chief Watts’ visage became malignant, and he hissed—

“It would have been better for you if you had brought your riflemen with you.”

“It will be much worse for the Cherokee Nation if I do not return,” was the prompt reply.

“That is as it will be,” rumbled the chief. “I ask you why you or some of your men killed Tall Runner of the Wolf.”

“A renegade brought you that lie. You know it is a lie,” Sevier calmly retorted.

Watts half rose with hand on knife, then sank back on the bench. Sevier continued—

“The man who told you that is a murderer and the man I am after.”

“He killed Tall Runner?” sneered Watts.

“He killed a white man. No one killed Tall Runner. There is peace between the Little Tennessee towns and the Watauga settlements. Tall Runner was a messenger from Old Tassel, who is our friend. Why should we kill him? The Runner brought me talk from Old Tassel about a grand council. I sent a talk back to him, saying I would meet him and all friendly Cherokees in council and settle the trouble about the settlers moving on to the lands south of the French Broad.”

“No such talk was brought to me,” said Watts.

“That is for Old Tassel to look after. Perhaps he knows you already have made a treaty with the Creeks; that you want war against the whites.”

“Why do you say such things?” cried Watts.

“Why do you hide the white peace-pipe when I’m brought here? The pipe you have just smoked with the chiefs sent by McGillivray?”

“It is false. My people do not want war with the whites. They only ask to have back the lands they always held from the beginning of things, the lands the whites have stolen from them.”

“It is true you have made a bargain with McGillivray. You are a renegade Cherokee. You lead the Chickamaugas. You have Shawnees in your cabins, bad Indians who dare not go home to their Ohio brothers. Beware, John Watts. The Chickamauga towns have been burned once. The fire is kindled that will burn from Crown Town to Running Water.”

“Who will lead the Watauga men when they bring that fire?” hoarsely asked the chief, his bronzed chest rising and falling spasmodically as he fought to retain his self-control, to keep his hand off his knife.

“Nolichucky Jack will lead them,” was the even response.

“Little John, you are said to have killed a man of the Wolf. Were you many times Chucky Jack you should die,” Watts passionately declared.

“If it is proved I killed him, or that he was killed by any of my men, I will shoot myself,” Sevier readily promised. “But, if he is alive, you will be

sorry you held me here. If he has been killed on Cherokee land by Polcher, the murderer, then I demand that Polcher be handed over to me to be hanged. After he is dead you can have his scalp.”

The warriors along the cane-benches stirred and twisted uneasily at these bold words, and more than one began considering the possibility of there being any truth in the intimation that the tavern-keeper was the assassin. Chief Watts was quick to note the disturbing effect of the borderer’s speech and loudly proclaimed:

“Our *shamans* have looked into the Great Crystal and have seen you and the Tall Runner facing each other with a bloody knife between you, the point at the Runner’s breast. And the Tall Runner has not come.”

“No *shaman* has seen me in the Ulunsuti as you tell,” Sevier denied, his serene countenance belying his conviction that Watts was determined to remove him from the path of Spain and was prepared to use the *shamans* in order to still any protest from Old Tassel.

Watts rose and extended his hand, shaking a finger dramatically at Sevier, fiercely demanding—

“You dare to say a Cherokee was not killed and scalped at Jonesboro a few days ago; that you did not hold a council in your council-house and saw the raw scalp placed before you?”

Now Sevier knew for a certainty that Polcher was near and had told his story to the lower towns. Nor did Sevier care to explain that a Creek had been killed, and not a Cherokee; for that news, relayed to McGillivray, would bring even greater evil. He was forced to believe Watts was sincere in considering Tall Runner dead. The messenger’s failure to return home was alarming. He found one slim hope to cling to: Tall Runner had started from one of the Little Tennessee towns and had returned there. During his absence Old Tassel had set out on a journey and the Runner had not yet caught up with him.

“After Tall Runner gave me his talk and had received mine and was ready to start back, I told the settlers of Jonesboro I would hang the man who crossed his homeward trail. And they know Chucky Jack keeps his word,” Sevier declared.

Watts seemed impressed and remained silent for several moments, his head bowed. Then he rose and with racial dignity said:

“I will send a runner to find Old Tassel to see if anything new has been heard from his messenger. But if the Cherokees should find their red brother

had been killed and scalped—just as it is now believed in this village that he dwells where it is ever growing dark—and if Little John should be asked to cover the dead with his blood, who is there to become angry and make war-medicine against us?”

“My riflemen know how and when to make war-medicine.”

“Little birds whisper that they can do nothing without a leader; that their minds are in many pieces, some crying for Spain to buy their tobacco, some saying they will make themselves into a new nation and have done with Chucky Jack, who plans to join the Thirteen Fires (thirteen States).”

Sevier folded his arms and stared over the chief’s head. Watts continued:

“It can not be that North Carolina will be angry if the spirit of Tsan-usdi travels to the spirit land in the West, for Carolina has driven him from her cabin. The Thirteen Fires will not ask presents for his death, for the Thirteen Fires are made of green wood and give more smoke than flame and will soon die out. The Thirteen Fires are not like fires; they are like an old man without legs to run on, without hands to lift the ax, like an old man who can only open his mouth and make foolish sounds.”

With the quickness of a released steel spring Sevier came to his feet, and, before a savage could guess his purpose, he had Watts’ scalp-lock in his left hand and Watts’ knife in his right and in a low, vibrant voice was warning:

“I am an American. Say what you will about the Watauga, about Carolina. But, by the white man’s God, another black word against the Thirteen Fires and I’ll empty your flesh of blood!”

They stood breast to breast, their eyes fighting the old, old battle, with no warrior daring to move for fear of precipitating a tragedy. Nor was there any cowardice in Watts’ bearing when he finally broke the tense silence by saying:

“Little John of the Nolichucky is a brave man. The Great Spirit has caused him to be so.”

Sevier stepped back and, holding the knife by the tip, extended it, saying:

“My medicine is strong without this. John Watts would be a great man if he did not listen to the evil talks sent him by Alexander McGillivray.”

“You would not say these things to McGillivray of the Creeks.”

“All, and more. Now I demand to see the man Polcher, who killed a white man.”

“You shall see him,” quietly promised the chief.

And with a deep bow Watts dropped the knife in his belt and led his warriors from the room.

Sevier knew enough of the Indian character to realize that never had he stood as high in Chief Watts' estimation as now. This knowledge deceived him none as to his danger, however. Even if Polcher should fail to erase this last impression, the chief would persist in believing the future of his race depended on the elimination of all white settlements west of the Alleghanies. To preserve his people he would use whatever tools came at hand, whether furnished by Creek, Spaniard or the Evil One himself.

Now that the over-mountain men were disowned and told to find a guardian in the handicapped central Government, the wily leader realized the Cherokee Nation stood at the threshold of its destiny. Sevier represented the element opposing the red man's ascendancy; therefore, he must be removed. No man had ever been more highly esteemed by the Indians as a fighter, and the full measure of praise would be given him even while the sentence of death was being carried out. Sevier had found this recognition of merit to be a characteristic of every Indian tribe with which he had had dealings. Torture and the torments of hell would be accompanied by the sincere acknowledgment of the victim's virtues.

Sevier stepped to a window and noticed the guard on that side had been withdrawn. A similar inspection on the other three sides revealed the same negligence. But the borderer was not to be decoyed into imagining he could escape to the forest by a sudden rush. He knew he was circled about by sharp weapons and sharper eyes and that, should he attempt to escape, he would be despatched off-hand. Such an ending of his captivity would relieve Watts from any censure on the part of Old Tassel and his faction.

Leaning from an open window, Sevier found the invitation to attempt an escape was accented by the absence of even the women and children. The village appeared to be deserted. He smiled grimly at such a transparent ruse. He had fought too many times with the nation, had whipped it too often, to imagine the warriors would neglect any oversight that would insure his captivity. And yet the manœuvre made him think more kindly of Watts. The chief fought for the future of his people; he preferred to remove the stumbling-block in the council-house without brutality.

There was something in the drowsy atmosphere of the village that was reminiscent of James Robertson's last visit to his home on the Nolichucky. The fancy was absurd and yet persisted; something that now thrilled him

with a promise of succour, and yet too vaguely remembered to take a tangible form in his thoughts. He forced his recollections over the back trail. He recalled the evening. He could see Robertson at the table, talking. Then there flashed across the sensitive screen of his memory the words:

Then Moses severed three cities on this side Jordan toward the sunrising; that the slayer might flee thither, which should kill his neighbour unawares, and hated him not in times past; and that fleeing unto one of these cities he might live.

Now he had it through the seeming irrelevancy of some passages of Scripture. Robertson had been to Echota, and had spoken of it as a “white,” or “peace” town. Sevier had summoned it back to mind through the association of ideas. The Cherokees had degenerated in other matters, but they still held strictly to their ancient law and vouchsafed a refuge to the murderer which was even more liberal than that set forth in Deuteronomy. For, while Moses had stipulated that wilful or premeditated homicide placed the offender outside the pale of sanctuary on the east side of Jordan, the old Cherokee law protected even the wilful slayer once he gained Echota.

Sevier knew a trader, a white man, who had demanded and secured sanctuary at Echota after slaying an Indian in defence of his goods. This man had even been warned by the chiefs that he would be waylaid and killed on his way home unless he first appeased the dead man’s relatives with gifts. Sixteen years back Oconostota, speaking for the Cherokee Nation at Johnson Hall on the Mohawk, in the course of making peace with the Iroquois, had said—

“We come from Chotte, where the white house, the house of peace, is erected.”

But this was not Echota, and yet the vague promise of help persisted in the borderer’s mind. Then there walked through his thoughts the figure of a Frenchman, who had visited him at Jonesboro, having come from the Creek country and passing near the lower towns, and the Frenchman had told of finding rest and security.

“I have it now!” softly exclaimed Sevier, lifting his head and glancing sharply about the village.

The domesticated fowls scratched and pecked before the silent cabins. Pigs grunted and nosed about. Then a small face shyly peeped round the

corner of a cabin, and Sevier smiled as he beheld the little maid who had prayed to the beaver for a new tooth. She held up the trade mirror and ventured a few steps toward him. A low admonition from inside the cabin was ignored by the tot. Suddenly making up her mind, she ran to the window and gleefully held up the mirror for him to look in, then gravely opened her mouth and used the glass in seeking the belated gift of *Dayi*.

Sevier chuckled her under the chin. A woman came running from the cabin and seized the child by the arm, perhaps fearing that the white man would bewitch her.

“Listen, woman,” Sevier commanded under his breath. “Is this Ayuhwasi?”

“Ayuhwasi Egwahi,” the woman timidly corrected as she caught up the child and hurried away.

Sevier drew a long breath and turned from the window to conceal his smile. It was the town the French trader had mentioned. And by what a round-about way had the borderer recalled it! A fragment from Deuteronomy, a flash of memory concerning his old friend James Robertson’s talk of Echota —and Chucky Jack was now ready to meet Chief Watts, his head men and the villain, Polcher, and dicker for his life.

The intrusion of the child seemed to be a signal for the deathly quiet to break up. There sounded a hoarse, monotonous chanting of a *shaman*, the shuffling tread of warriors moving with ceremonial step, and then John Watts, followed by Polcher and a string of warriors, entered the council-house, their faces devoid of expression, their eyes resting on the prisoner as if not seeing him. Watts and Polcher took seats side by side, and, had not Sevier been looking for the tavern-keeper, he would not have recognized him.

Polcher now was all Indian. Gone the smirk and urbanity of his white role. In discarding the garments of the settlements he had taken on the status of the red man. His features were all Indian, and yet three-fourths of his blood was white. What especially served to disguise him was his elaborate head-dress of eagle feathers. Sevier stared at the feathers intently, then began smiling. As the line of warriors scowled blackly at his show of mirth, he threw off all restraint and laughed aloud.

Before he could be interrogated, he pointed a derisive finger at Polcher and demanded:

“Are the Cherokees mad, or are their medicine-men fools, that they allow an eagle to be killed before the snakes have gone to sleep? Have the Cherokee towns lost all their eagle-killers?”

This unexpected outburst caused the warriors to exchange glances of consternation. The twelve feathers on the breed’s head were surely from the tail of the mighty *awahili*, the great war-eagle, especially sacred and prominent in all rites pertaining to the war-path.

Watts frowned and said something under his breath. Polcher boldly assured:

“My medicine told me to kill the eagle. It was sick and would have died.”

“He has killed the eagle and has taken its feathers without first allowing it to remain four days on the ground!” cried Sevier.

The warriors edged apart from Watts and Polcher, for it was known that the insects on the eagle’s feathers will cause a serious skin disease to any who wears them without first leaving them on the ground four days.

Knowing Sevier had thrown him on to the defensive, Polcher declared—

“My medicine protects me from the eagle-sickness.”

But Sevier was not yet done with him and roundly scored:

“Does your medicine save the Cherokees’ corn? You have killed an eagle out of season. Surely the frost will come and kill the corn.”

This, also, was accepted as an incontrovertible fact, and Chief Watts realized the council would be thrown into confusion unless Chucky Jack were headed off. Bringing his two hands together for silence, he cried out:

“That business can wait. Little John need not worry about Cherokee corn. He has asked to see the man who says he killed Tall Runner. The man is here and will speak.”

Polcher rose, and a smile twisted his evil face for a moment as he met Sevier’s eyes. Then the red man’s immobility returned, and he began:

“Tall Runner of the Wolf was killed in Jonesboro. I did not see him killed, but my white friends did. I did see his scalp in the court-house. It was placed on the table before Little John. I tried to get the scalp to bring to you, but Little John destroyed it.”

He sat down and indulged in another smile of hate as the line of warriors grunted in unison. Sevier addressed Watts and said:

“This man murdered an old white man. I have followed him here. Will you give him up, or must I come with my riflemen?”

Chief Watts smiled in keen enjoyment at the borderer's boldness. His voice was low and almost gentle as he replied:

"Little John, Little John! Your white law does not reach here. A Cherokee has killed an old white man. What of it? It were better if he had killed a young white man. You ask if you shall come with your riflemen. If you can find them in the ever-darkening land, and your medicine will let you come back, we can not stop you. You have asked to see the man you hunted. He is here. He is one of your judges. Listen now to what this council shall decide.

"Brothers, it is said a Cherokee was killed in or near Jonesboro. What do we find?"

"A Cherokee was killed," came the answer.

"It is said he is Tall Runner of the Wolf. What do we find?"

"Tall Runner was killed."

"It is said a white man killed him. What is the colour of the slayer?"

"He is a white man."

The chief paused and cast a glance at Sevier. The borderer knew the climax was about to be sprung but concealed any concern he might have felt by staring at the eagle's feathers and smiling sardonically.

"Brothers, it is said Little John of the Nolichucky killed Tall Runner. What do we find?"

"Tsan-usdi killed Tall Runner."

Chief Watts rose and stared gravely at the prisoner. Polcher leaned forward and grinned in open malevolence.

"There is but one more vote to take, my brothers," slowly said the chief, speaking almost sadly. "What is your answer, brothers?"

"Death to Little John!" chorused the council.

Polcher laughed aloud. The chief scowled at him.

As Watts resumed his seat, Sevier leisurely smoothed out his hunting-shirt, brushed back his brown hair and calmly fixed his blue eyes on the chief. His first words were a question, an unlooked for and astounding query.

"How long since John Watts, leader of the renegade Cherokees who live in the five lower towns on the Tennessee, gives the law in Great Hiwassee? How long since the hostiles, calling themselves 'Chickamaugas,' can leave their five towns and come here to Ayuhwasi Egwahi—Great Hiwassee—a white town and a peace town, and pronounce the sentence of death?"

Watts started convulsively and bared his teeth in a wolfish snarl. Polcher yelled a white man's curse and grabbed at his belt. Watts seized the breed's hand and flung it down, then became wooden of face. His followers grunted aloud. Polcher passionately cried:

"The white man lies. Echota is the white town. Ayuhwasi Egwahi is a red town and the path to it is red."

"Dog of a mixed-breed!" thundered Sevier, levelling a finger at him. "Your soul shall curl up and become as nothing. Killer of great war-eagle out of season, your bones shall rattle in blackness! You dare deny the law of the Cherokees!"

The one *shaman* present shivered, his eyes glistening with fear, and, unable to witness the blazing scorn the blue eyes were pouring into Polcher, drew his blanket over his head. Watts could not entirely cover up his concern, and, turning to the *shaman*, he asked—

"What does our father say as to the law?"

The *shaman's* figure trembled, for he had great fear of Chief Watts' anger, even though he were a medicine-man. In a quavering voice he informed—

"A long time ago, when all the old things were new, when water-bears lived at the bottom of the Oconaluftee River, this village of Ayuhwasi Egwahi was a white town."

"It has not been used as such in three lives," cried Polcher.

"A man-slayer has never been refused refuge," said Sevier.

Motioning them to be still, Watts fixed his gleaming gaze on the *shaman* and said:

"I have given many bales of black and red cloth to our medicine-men. Now, my father, when was the law changed?"

And he leaned forward and sought to catch the *shaman's* eye. But the medicine-man's fear of physical violence was as nothing compared with his fear of witches, blue and black spirits and dreams that sapped one's soul away.

Keeping his face in the blanket, he answered—

"It can not be changed so long as the town stands."

"Yu!" cried Sevier in triumph. "And now, John Watts, how dare you come from your renegade towns, from your outcast Shawnees and Creeks, your runaway Cherokees and white dogs, and try to break the law of the Cherokees? How dare you bring this creature, neither white nor red, and let

him enter a council and vote for death while he is wearing the feathers of the sacred *awahili*? You say I murdered a Cherokee or had him murdered. I say you and that mongrel dog lie. You say Tall Runner was killed in Jonesboro. I say he lives and goes to find Old Tassel, unless he was killed by that white-Indian after returning to his own people.

“But believe me to be a murderer, or pretend to believe me a murderer. Believe what you will, and still I laugh at you and the man called Polcher. For I appeal to the ancient law of the Cherokees, the law that has never been set aside and can not be set aside so long as a single white town stands on Cherokee soil! I demand my life so long as I stay here in Great Hiwassee. And, by the living God, who is God of both white and red, do you break that ancient law at your peril!”

CHAPTER VI

ON THE WHITE PATH

WATTS glared in speechless rage, then sank back helpless. Polcher slyly drew a pistol, only to find his arm seized by the frightened *shaman* and the weapon twisted from his hand. The warriors gritted their teeth but offered no violence. It was the law. Human blood must never be spilled in a white town. It was also the law among the Creeks and, if old memories were to be trusted, among the Senecas of the Long House. Superstition cowed those who would have scant regard for some other tribal laws.

Sevier was still flushed with victory when Watts drew himself erect and smiled coldly on the borderer and in a mocking voice said:

“So be it. Woe to the Cherokee who breaks the law!” And he paused to dart a warning glance at the enraged tavern-keeper. “But listen, Little John; the law says you shall receive no hurt so long as you stay here. So long as you stay here.”

Sevier winced. Time was all precious. He must overtake the Tonpits and turn them back. The man’s mad ambitions unfitted him for cool-headed scheming, and it might result that his zeal would embarrass the cause of Spain. Yet, such as he was, he was essential in binding McGillivray to the Cherokees and to the white malcontents back in the Watauga country. Could he and the Emperor of the Creeks be kept apart? McGillivray’s formidable plans might easily go amiss, or at least be delayed until the border riflemen could prepare for the war.

Sevier appreciated Tonpit’s erratic nature and yet did not underestimate him. He came from a proud family. He was austere in personality but could surely gather a following among the recent arrivals over the mountains. Old-timers would stick by Sevier and blindly follow his lead. Many of the newcomers and the lawless element—the last as a unit—would huzza for

Tonpit. The Indians only asked for two hostile factions among the settlers. Aided by the Creeks, they would side with Tonpit.

So Sevier had reason for dismay as he considered the trap he was in. Just so long as he remained within the limits of the town, all trails would be white and he would be treated courteously. Not even Polcher, now he had been taught his lesson, would raise a hand against him. But let him step over the line, and he became legitimate game for any ax.

Chief Watts gauged his thoughts correctly and motioned for Polcher to withdraw. After the tavern-keeper had departed, the chief with mock gravity said—

“My new brother, who has come to live with us, understands where he can walk and where he must not walk?”

“He understands,” was the cheerful reply. “As he is weary, he will be glad to rest here until the next Green Corn Dance wipes out the crime he never committed.”

“When new fire is given to take the place of the old, he will be free to go unharmed,” admitted Watts, well satisfied, to hold Sevier a prisoner until the corn was ready for harvesting, or about the middle of August. Watts believed the die would be cast inside of thirty days and that, without Sevier to stiffen their morale, the settlers would be conquered.

Watts was the last of the warriors to leave. At the door he called out a command, and a man handed him in Sevier’s rifle and a belt. Presenting these to the borderer, the chief gravely said:

“These are yours. No one shall say the Cherokees are thieves even if the whites have stolen their land.”

“I shall feel easier for having them so long as Polcher is in the village.”

“You need have no fear of Polcher. He will not think of harming a hair of your head. He showed anger while here, but that is because he has lived long among whites and forgets the law. Now he knows; he will not reach for his knife again—in Great Hiwassee.”

“If I choose to try to escape, can I have my horse?”

“Your horse is at the edge of the village with the others. Take him any time. It is your horse. If you care to take the risk, you shall set out in as good condition as you were in when my young men brought you here.”

“I will remember it in your favour when next I have you under my rifle,” said Sevier, his eyes sparkling as he examined his rifle and pistol and found they had not been tampered with. “You stay here?”

"I have work to do in my lower towns," was the enigmatic reply, illuminated somewhat by the peculiar smile accompanying the words.

"Preparing for war while I wait for the corn to be harvested. On coming here I saw a war-eagle flying away. What was it a sign of? Your defeat?"

Watts looked sober. More progressive in his ideas than the bulk of his people, yet he could not discard many of the superstitions. Secretly he was alarmed that Polcher had killed an eagle out of season, yet that was a fault that did not necessarily spell disaster. To make light of the disquieting suggestion he indifferently said:

"We have *shamans* to read signs. It is enough for you to know that all crimes die out and are forgotten when old fires die and are replaced by the new. You have your choice, Little John. Stay and live, or step over the line and have an ax stuck in your head. *Ku!*"

"I have heard you," was the quiet reply.

Free to come and go, Sevier quit the council-house and wandered about the village. Feeling hungry, he entered a cabin and found the little girl playing with the mirror. He was promptly provided with beans and venison. The father of the child eyed him stealthily. The child boldly ran to him and climbed on his knee. Sevier knew these were his friends insofar as they could be such without betraying their people.

"Has a white man and a white woman passed through this village since the little one lost her tooth?" he asked as he ate.

The man turned away, but the woman shook her head, and Chucky Jack knew she answered truthfully. He was disappointed, yet remembered it was very possible he had passed ahead of them. Tonpit would be held back by the girl. It was also possible they had passed the village without entering it. And he persisted—

"Have you heard of a white man and woman travelling to the Coosa?"

Again the man pretended not to have heard the query, and once more the woman silently answered in the negative. He was puzzled. He knew the Tonpits could pass without hindrance once it was known they were bound for McGillivray's town. And, did they pass, the news would be flashed from village to village with incredible swiftness.

"It must be that I've got ahead of them; that Polcher got far ahead of them," he decided as he finished his meal. "Tonpit would have to stop and give the girl a chance to rest. Even at that it's queer no word is brought ahead of their coming."

He went outside, wondering if by any chance Tonpit had changed his plans and struck for Governor Miro's headquarters at Pensacola. The girl's hurried scrawl told her lover they were bound for Little Talassee. This substantiated his theory that McGillivray had demanded her as a hostage to bind Tonpit to his bargain. This line of conjecture brought Kirk Jackson to mind, and he speculated on the young man's whereabouts. How long would he hide from the settlers, thinking a mob was after him to give him short shift?

"Just long enough to feel sure he could find me in the court-house," was the borderer's decision on this point. "On learning I've gone and that he's safe in the settlement, he'll wait just long enough to get a horse and come pounding after the girl. Wish I'd left a note for him to stay there, although that would have no effect on a young man in love."

Realizing the folly of further speculation, he brought his mind to bear on his immediate surroundings and strolled out to see his horse. The faithful animal ran to him to be petted. To leap on his back and speed down the trail would take but a minute. He had his arms and had eaten. While making much of the horse, he cast his glance about. The woods were quiet, scarcely a breath stirring the foliage. The itching to be off almost tempted him, then he turned away and walked but a few rods toward the cabins when Watts came from behind a bush.

"No, John," he said before the other could speak; "I decided not to risk it. For a bit I believed it could be done; then I saw *tsiskwaya*, the little sparrow, fly upward, afraid of something on the ground."

"*Tsiskwaya* saw a snake," suggested Watts.

"He wore Cherokee paint," smiled Sevier.

The chief lowered at him evilly, a heavy scowl distorting his dark face. The borderer knew something had gone wrong with his enemy and philosophically decided he ought to be benefitted by whatever had displeased the chief.

"My brother is angry because I did not ride down the trail," he said.

Watts snarled like a tree-cat, then forced his face to composure and said:

"I am angry at your narrow escape. If you had gone down the trail, the snake might have bitten you. Who knows? Bad dreams would have come to me if you had been harmed."

"Just what does that mean?" Sevier suspiciously asked.

Watts pointed to the end of the village, where warriors were filing in between the first cabins.

“Old Tassel comes, and with him is the Tall Runner, the man of the Wolf, who Polcher said was dead.”

Sevier could scarcely credit his eyes. Old Tassel and Tall Runner rode ahead of the band.

“Then I am free to go. I do not need to wait for the Green Corn Dance to wipe out all sins,” he cried.

“Little John is as free as the birds of the air,” quickly assured Watts. “His horse is waiting. He has his rifle, pistol and ax. He had better go before Old Tassel asks him to stay. If there is a snake in the woods, I will drive him away.” And he raised two fingers to his lips and whistled shrilly. The signal was promptly answered. “The path is open and smooth,” he said to Sevier.

There was a strong possibility that Old Tassel would insist on his remaining in the village. Sevier had learned, however, that he invariably profited by doing the opposite to what hostiles like Watts wished him to do. Now that luck had permitted him to meet Old Tassel, whose pacific inclinations were a thorn in the side of the war-faction, he instantly became determined to win some advantage from the encounter.

“Where is the man Polcher?” he asked.

“He is here somewhere.”

“I think my medicine is telling me to see Old Tassel before I go,” he announced. With that he hastened forward, followed by the chief, and overtook Old Tassel in front of the council-house.

The old chief was not prepared for the meeting, and his alarmed manner of glancing about suggested an expectation of beholding a band of Chucky Jack’s famous riflemen. His show of perturbation impelled Sevier to wonder what tricks the wily old diplomat was up to. The Tall Runner ignored Sevier’s presence entirely.

“My brother did not think to see me here,” greeted Sevier, grasping the chief by the hand.

“My brother is far from home,” mumbled the chief.

“Not when he is in the home of his friends,” corrected Sevier. “Come, let us open a bag of talk. I sent you a talk by Tall Runner to say I would meet you in council. I am here alone to do so.”

Old Tassel stared in amazement at his audacity. The warriors behind the old man exchanged puzzled glances and tightened their grip on their axes.

Sevier noted the hostile demonstration and read the red minds easily. Never before had they been given such an opportunity. Many times Chucky Jack and his mounted riflemen had struck them and wounded them sorely. Now he was in their midst, far from the settlements and seemingly alone. The last fact they could scarcely believe.

As their gaze turned to suspiciously sweep the forest, John Watts spoke up, assuring:

“Little John rides alone. My young men found him and brought him here.”

“To this white town of peace,” added Sevier. “What could be better than to hold our talk in a peace town, where evil thoughts and bloodshed are not known?”

Old Tassel’s braves glanced at Watts, as if asking if that were the reason the borderer was still alive, and found their answer in his gloomy eyes. Old Tassel shook off his confusion and assented:

“We will hear my brother’s talk. The Cherokees do not want war with the whites. My brother would be safe in a peace town or a red town, as safe as he would be on the Holston or the French Broad.”

The sullen countenances of his followers and the half-masked ferocity of Watts left room for doubt as to the unanimity of this sentiment, but no word was spoken as the two chiefs and representative men filed into the council-house and took their places.

After a decorous pause Sevier rose and said:

“Evil birds have whispered to the Cherokees, and the nation now refuses to keep the chain of friendship from dragging on the ground. It lies in the dirt, no matter how high my people lift their arms. It is the end in the Cherokee country that is allowed to drag. This should not be. White men and women and children going to Kentucky have been killed by the Cherokees. This must not be.

“The Cherokees have killed many white settlers who have crossed the Holston and the French Broad. Their bones have not been covered. Our settlers were told by North Carolina they were right in going there. It is too late to call them back. They will hold the land because the bones of their dead have not been covered.

“We hear that the Cherokees now plan to join hands with Alexander McGillivray and his Creeks; that war-talks have been sent back and forth

between the two nations. Let the Cherokees beware how they take a red ax from the Creeks.

“Where did the Creeks get their lands? From those they struck in the head. Who filled the Creek cabins with guns and powder? A Spanish King over the big water. How does Spain treat the Indians? Go and ask the old men among your people, among the Creeks and the Seminoles, who have received the stories from the old men behind them. Ask the old men of this nation what their fathers’ fathers told them of De Soto.

“If the Cherokees take the red ax from the Creeks and should break off all the heads of the settlers along the French Broad, the Holston, the Nolichucky and the Watauga, what would they gain? The Creeks as friends. They have never been a true friend to any neighbour. Spain a friend? When you bait a sacred war-eagle with the carcass of a deer and kill it, you pray to it not to take vengeance on you, saying it is no Cherokee that killed it, but Askwani—a Spaniard. Why do you pray to turn the dead eagle’s vengeance against the Spaniards? Because it is burned into your heads from the old, old times how cruelly Spain used your people.

“*Hayu!* If you do not sound the red war-whoop, the Creeks can do nothing. They can not harm you. If you join with them Spain will see they get your lands. Then Spain will take all the land for herself. If you hold up the chain of friendship so it does not drag on the ground, I will promise you that our settlers shall not go beyond the boundary we agree upon at the grand council.

“The land now held south of the Broad and the Holston must remain ours to cover the dead you have slain. We will cover your dead with presents and will not wander from our land to your land. If you make this treaty and stand to it, I promise I will lead my riflemen against the Creeks should they try to steal any of your lands. I have spoken.”

The boldness of this talk amazed the warriors. At the least they had expected Sevier to be very conciliatory. His blunt reminder of what the Kentucky settlers had suffered, his firm insistence that the settlers below the French Broad would not vacate the land and his calm offer of assistance left them speechless. His magnificent assurance, although isolated from his friends by many miles of enemies, touched their imagination and commanded their deepest respect. Even Watts, although determined to take the red path, could not suppress his admiration. The effect on Old Tassel was very marked.

Sevier believed that Watts' eagerness to have him leave the village without meeting the old chief was due to some half-promise on Tassel's part to favourably consider the Creeks' request for an alliance in a general war against the whites. If Old Tassel had intimated any such willingness, it was now obvious that Sevier's plain speaking was impelling him to reconsider and weigh the consequences most carefully.

Watts fumed with impatience to denounce Sevier and his riflemen and to urge his hearers to declare war at once, but etiquette demanded that Old Tassel speak first. The old chief did not relish his task and faltered and hesitated but managed to say:

"My brother's words have entered my ears. North Carolina has sent me many talks, promising I should have justice and that all new people be moved off my land. I am an old man. The promises must be kept very soon, or I shall not live to see them kept. Now they tell me the Watauga settlements are not a part of North Carolina and that I must send my talk to the Thirteen Fires, to the Great Council of America. So much going about to get justice troubles me."

Sevier quickly replied:

"I will keep the promises I make in the grand council I am asking you to come to. The Watauga settlements are to become a separate fire and blaze beside the thirteen."

Unable to restrain his fierce passions longer, Watts leaped to his feet and cried:

"Why should we wait longer to have promises kept? Why should we believe new promises will be remembered better than the old? What power has Little John to make the settlers keep off our lands? Even now the settlements do not know where they belong. North Carolina does not want them. The Great Council of America has not taken them in. Who, then, is to see that the promises are kept?"

"*Ku!* Spain tells these settlers they must not travel on the Mississippi, and the river is closed except to the friends of Spain. Little John is a brave man, but he can not shoot his rifle across the big water. Spain speaks, and her voice comes across the water, and she is obeyed. Let us go to no grand council until the whites have left our lands." Then whirling on Sevier he cried, "I have said you are a brave man. I meant the days when we fought each other on the border. I do not mean now—today. For you have sneaked through the woods and kept from sight until safe in a peace town. You

would talk soft if you were in Little Talassee, face to face with McGillivray.”

Sevier knew Watts was trying to drive him into the wilderness where the paths were red, and he accepted the challenge by retorting:

“I will go to Little Talassee. I will speak face to face with McGillivray, and, after I have finished, go and ask him if I spoke soft.” Turning to Old Tassel he demanded, “What do you say to my talk? Will you come to a grand council on the French Broad or on the Holston after I have returned from McGillivray’s town?”

Old Tassel, beset by his desire for peace, yet feeling the surge of his warriors’ will for fighting, now found a loophole. He gravely replied—

“When you come back from carrying your talk to McGillivray, I will go to a grand council on the French Broad.”

“You have given your promise in the council-house of a peace town. It is to be so,” said Sevier, picking up his rifle and preparing to go.

Watts stepped forward and extended his hand, and, as Sevier grasped it and searched his face, he said:

“Little John is still a brave man. Whether it be peace or war, you are a brave man. And will you go to little Talassee?”

Sevier dropped his hand and coldly replied—

“Unless stopped by a Chickamauga bullet, I shall go there.”

Watts clicked his strong teeth and whispered:

“McGillivray will keep you safe there. You will not get in his trail again.” Then turning to the curious warriors he cried out, “Ho! A brave man goes to Little Talassee. You will not harm him. But, if you see white man turning back before reaching McGillivray’s town, you may know he is a coward and treat him as such.”

Ignoring the hostile glances, Sevier glided from the council-house and made for his horse. He now had his chance to go to McGillivray on the Coosa, and a fringe of Cherokee warriors would see to it that he did not turn back alive.

Hurrying to the corral, he saddled his horse and mounted and confided:

“Well, old fellow, that’s where I reckon to go, to Little Talassee. But I’d rather go alone instead of being chased there. Coming back will be harder.”

As he rode down the white path, he kept his eyes opened for signs of Polcher. He did not anticipate any attack from the tavern-keeper until he left the vicinity of the village, for Watts must have warned that no blood was to

be shed so long as the path was white. When he struck into the main trail leading southwest, then he would be traversing a red way, and there would be no ancient law holding Polcher back. However, that was a detail to be attended to when encountered. What worried him considerably was not the tavern-keeper, sure to be in ambush somewhere ahead, but Kirk Jackson and the Tonpits.

He had barely cleared the outskirts of the village when he discovered some one was following him. He reined in, expecting to behold the van of the Cherokees coming to make sure he did not double back to the north. But there was but one man, and he ran with no efforts at concealment. To the contrary he now began calling Sevier by his Cherokee name, "Tsan-usdi."

"I am here," called out Sevier.

As the Cherokee burst into view, the borderer recognized him as the father of the little girl who prayed to the beaver.

"You want me?" Sevier asked.

"I go with you. Old Tassel has spoken it."

"How far do you go with me?"

"Until we reach the land of the Creeks."

"To see that I do not turn back," sneered Sevier.

"To see no bad Indians cross your path," was the grave correction.

Sevier's hostility vanished. Old Tassel feared his promise of safe passage might be violated by some of the younger men and wished to shift all responsibility of the borderer's fate on to the Creeks. Still half a measure of solicitude was decent of him, and Sevier knew he had him won from thoughts of war for the time being at least.

"You are?"

"The Jumper, of the Ani-Kawi."

"A man of the Deer clan should know the trails. We will go on, Little Brother. Tell me when the white path turns red."

"I will tell you," grunted the Indian.

"Tell me where is the man called Polcher?"

"In the forest. Somewhere along the red path."

Trotting ahead, the Jumper led the way for several miles, and yet Sevier could detect no signs of Cherokees in the rear. He said as much to the Jumper, who drew a half-circle in the air behind him, saying:

"They are from there to there. We shall not see them so long as we go toward the Coosa."

“It is well,” said Sevier.

The Jumper raised a hand and then threw himself prostrate with his ear to the ground. Sevier quieted his restless horse and listened. He heard nothing. The Indian rose and informed:

“Men come. We must leave the trail.”

“Why should we hide, Little Brother? What is there to fear along the white path that leads to the white town?”

“Nothing to fear from men of my colour,” said the Jumper with a touch of irony. “But I can not answer for the whites.”

“White men!” exclaimed Sevier, dismounting and leading his horse aside and into cover.

His first thoughts were of Tonpit, the man who, despite his weakness and ambitions, was so necessary to Spain and Charles III’s field representative, Alexander McGillivray.

“They bring horses to trade in Great Hiwassee,” the Indian added.

Sevier’s hopes fell, then rebounded as he discredited the Indian’s ability to know who was coming and their purpose. Thus far he had been able to detect nothing but the usual forest sounds.

“How do you know that?” he demanded.

“Some of the horses have no riders.”

Sceptical, Sevier composed himself to wait in patience. After what seemed a long time, there came a burst of voices and the trampling of hoofs, and above the confusion roared a coarse voice hurling curses at animals and men.

“Hajason!” muttered the Jumper, his face scowling.

“Red Hajason!” softly cried Sevier, mechanically shifting his rifle.

The Jumper touched his hand as it lay on the gun, and he warned:

“You must not think of that. You are still in the white path.”

Sevier lowered the rifle and asked—

“Does he trade at Hiwassee?”

The Indian nodded. Had not Sevier’s errand concerned the fate of the Western settlements, he would have considered his journey well worth the danger just for an opportunity to confront and kill this man whose name was anathema from the Watauga to the French Broad and throughout the Carolinas east of the mountains.

Wherever horses were stolen and hurried to hidden forest depots, the name of Red Hajason was known and detested. That he continued to carry

on his thievery was due to his practice of sending agents to do the actual work while he remained in his stronghold somewhere at the headwaters of the Hiwassee River in the southwestern corner of North Carolina. When not at this camp, it was said he made his home over the line in South Carolina, “that delight of buccaneers and pyrates,” as the Rev. Hugh Jones, chaplain to the honourable Assembly of Virginia, characterized that commonwealth in 1750.

Border-folks, however, denied that Red Hajason was compelled to shuttle back and forth between the Hiwassee and the Tugalo rivers and openly charged he had been seen in the capital of North Carolina, seemingly on excellent terms with some of those who pretended to safeguard the destiny of the State. This would not be surprising, as in formative periods the devil takes advantage of chaos to walk close to saints.

But the over-mountain country was closed ground to the king of horse-thieves; there was no doubting that fact. A bullet on sight was what he would receive did he venture forth where he sent his men. Thus it had happened that Sevier, while having had the pleasure of hanging several of Red Hajason’s tools, had never looked on his face.

The Jumper increased his vigilance and cunningly took Sevier’s horse by the nose to prevent a whinney.

“We must go deeper into the woods,” he urged.

“Listen, Little Brother, I must see this Red Hajason,” whispered Sevier, dismounting. “Take the horse back. I will stay here.”

“This path is white,” frantically protested the Indian, anticipating from Sevier’s frowning visage a bloody settlement with the outlaw.

“My eyes can not shed blood,” soothed Sevier. “He shall pass unharmed—this time. But I must see him.”

The Jumper reluctantly led the horse deeper into the cover, and Sevier hid himself and waited. The Cherokees owned many horses, excellent animals. A brisk trade was carried on between the friendly Indians and the settlers. And there was much trading between Cherokee and Creek, only it was the white man’s horse that sometimes went to the Southern nation. And Hajason traded stolen nags for honest ones and through unsuspected agents sold the latter to the whites.

Hajason was not dubbed “Red” because of rufescent hair or complexion. He was Red because of his deeds, his readiness to spill the blood of the weaker. Only affairs of great importance had restrained Sevier from taking a

posse of his swift-riding riflemen and running down the scourge long before this.

The cavalcade now drew near, and he could easily make out the oaths and commands being shouted in English by Hajason, sprinkled with orders in the Cherokee tongue. Now they burst into view, two half-breeds riding ahead, a dozen horses following them. Bringing up the rear were three white men. Sevier had eyes for only one of the trio, a giant of a man, whose features were an amazing mass of brutality and evil passions, whose bearded lips opened seldom except to permit the escape of a blasphemy.

His companions cowered under his tongue-lashings, while his thunderous epithets hurled at the head of the drove kept the breeds jumping convulsively. He passed within a dozen feet of Sevier, and the borderer had ample opportunity to study him in detail and time to regret that his hands were tied by the ancient law. With his pistol he could have obliterated a great evil, and he was powerless to act.

So intent was he on scanning the outlaw's burly body and repulsive face that he all but overlooked the horse he was riding. The moment he noticed the big black his interest in Red Hajason became a minor matter. There was no mistaking the animal. Not another horse on the border that showed those white knees, for all the world like two bandages. The horse was Tonpit's favourite mount. Staring incredulously, Sevier darted his gaze over the rest of the animals and found the small bay Miss Elsie always rode.

"By all the red gods in the East, he's got the major's and the girl's nags!" gasped the borderer, craning his neck and risking discovery to watch the cavalcade move up the trail.

Tonpit and his daughter had disappeared from home the night of Old Thatch's death. Their departure was, presumably, the result of the Creek's message from McGillivray. Lon Hester had disappeared the same night.

"They were bound for Little Talassee," he mused. "They rode in haste, or I should have overtaken them. And yet the girl had to have time to rest. Polcher and Hester are free to come and go among the Cherokees. I know Polcher is ahead, waiting for me. Hester is just the man to dicker with Hajason for fresh animals for the major and the girl. But their horses appeared to be fresh. Why change them?"

He stared longingly up the trail, fighting down his impulse to pursue Red Hajason and kill him, if need be, to get the truth. To shed blood would be a violation of the law he had invoked to save his own life. He heard Hajason

shouting a boisterous greeting in the Cherokee tongue and knew he had glimpsed some of the warriors advancing on either side of the trail. To go after the outlaw and scare the truth from him would mean an encounter with the Indians, who had been ordered to treat him as a coward did they catch him turning back. They would not slay him on the white path, but they surely would make him a prisoner.

He almost wished he had delayed his departure until Hajason had arrived. And yet, had Fate worked that way, new complications would have arisen and the trail to the south might not have been open to him. Next rose the puzzling point: why should Hajason come in person to superintend the sale or exchange of a dozen horses? The outlaw was a villain of large activities. He was well known and hospitably received in Great Hiwassee. His immunity to danger consisted in leaving details to his subordinates.

“No!” growled Sevier. “He never came just to get rid of the horses. He has had many deals with this town. He could have sent a boy and a talk and made the trade. He came for a purpose. The nags happened to be on hand, and he fetched them.”

The Jumper pressed through the bushes behind him and touched his shoulder and anxiously insisted:

“Little John loses much time. The medicine of the Deer tells me Death creeps down the trail, even though it be a white trail.”

And he nervously fumbled a small bag hanging round his neck and rolled his eyes in alarm toward the village.

“I am ready,” Sevier said, springing into the saddle. “Death ever lurks where Red Hajason is.”

“Chief Watts’ Chickamaugas are very close,” warned the Jumper.

“Let them come,” was the careless reply. “We have not turned back, not so much as a foot.” And, shaking the reins, he rode down the trail with his guide at his stirrup.

CHAPTER VII

IN THE MAW OF THE FOREST

ONCE they struck into the old Creek trail the Jumper went on ahead; for this was a red path and the Indian by scouting in advance was supposed to reduce the chances of a surprise attack by Polcher. Near sundown they came to a small creek where the Jumper wanted to camp for the night.

“Let my brother gather wood for the fire while I look about the forest for signs,” said Sevier, eager to reconnoiter his back trail.

The man of the Deer clan guessed his purpose and reminded—

“If you are seen turning back, if only for a few steps, there are those who will be glad to kill you.”

“I shall not be seen turning back,” reassured Sevier. “I go to find signs and kill a wild turkey.”

“The forest has eyes that watch you,” warned the Jumper. “My medicine has told me that Death walks along the Creek trail.”

“Death walks everywhere,” carelessly returned Sevier. “And it skips the brave to touch the coward.”

Taking his rifle, he crossed the trail and, as soon as he was out of hearing of the Cherokee turned north and made for a heavily wooded hill. He had noted this elevation shortly before arriving at the creek and knew it would be an excellent vantage point for spying on the back country. He ascended it without detecting any signs of his trackers and lost no time in climbing a tree. The stretch of country he had covered that afternoon was spread out below him in broad relief. For the most part the view consisted of the forest crown but there were occasional openings and it was on the nearest of these that he focused his gaze.

He glimpsed nothing that hinted at pursuit. He studied the birds but was unable to discover any symptoms of alarm. This emptiness of the trail puzzled him, for he had been convinced his every step would be dogged

until he crossed into the country of the Creek. Leaving the tree, he descended the hill and, pausing only long enough to knock over a turkey, made his way back toward the creek.

He had reached a point due east from the camp when he was startled by the sharp report of a gun. Dropping the turkey, he ran to the trail and crossed it, thinking his guide was the victim of some treachery. Before he came in sight of the fire he heard the Jumper wailing and moaning, and yet not as one who cries out when physically hurt. In fact, he knew a material wound could elicit no complaint from the Jumper. Slowing his pace, he advanced more cautiously and halted for a moment at the edge of the woods and surveyed the Indian.

The Jumper was lamenting in a dismal manner. He was busy trimming some small branches into tiny rods.

Stepping forth Sevier demanded—

“Was it your gun I heard?”

The Jumper groaned and held up the small rods. There were seven of them, seven being the sacred number of his people. Sevier took one of the rods and examined it. He found it was sourwood.

“You have killed a wolf?” he asked.

“I shot at one, thinking it was a turkey in the bushes,” shivered the Jumper. And he snatched up his gun and began unscrewing the barrel. “Now will Kanati, the Lucky Hunter whose watch-dog the wolf is, be very angry with me. Already I feel myself turning blue.”

“The Lucky Hunter will know it was a mistake,” soothed Sevier, appreciating how serious a fault it was for any but the ceremonial wolf-killer to shoot at a wolf. “While you finish your medicine for the gun I will go back and get the turkey I dropped.”

According to the Cherokee belief the gun was spoiled unless treated at once by a medicine-man. In the absence of a shaman one must make his own medicine as best he could. As Sevier well knew the incident reduced the Indian’s value as a guide and scout to zero. As a fighter he had become nil. Even if the bad spirit could be immediately exorcised from the offending barrel the Jumper would not dare fire it at a lurking foe for fear of making another mistake and rekindling the rage of the mighty Kanati. And those who stalked the borderer along a red path would not show themselves for an open shot.

Disturbed by the incident Sevier recovered the turkey and hastened back. The Jumper was heating the slim rods over a small fire near the edge of the water and as Sevier came up he commenced inserting them in the gun-barrel. Sevier watched him in silence as he completed his task and leaned forward to place the defiled barrel in the creek, where it must remain for the night.

Turning back, the Jumper plucked the turkey and prepared it for the coals, groaning and grimacing as he worked but taking no heed of his white companion.

“What is it now, my brother?” asked Sevier.

“The Crippler (rheumatism) has me,” lamented the Jumper, rubbing his legs. “I have angered a Deer ghost.”

“You shall make a prayer to the Black, Blue and White Ravens. The Two Little Men of the Sun Land shall come and drive the intruder away,” comforted Sevier.

“Only a shaman can make the prayer,” was the doleful reply.

Sevier turned away in disgust. He had counted on the Jumper as a powerful ally for defensive work at least. His woodcraft and sharp ears and eyes would be invaluable in detecting the secret approach of Polcher. Now his superstitions had changed him from an asset to a liability. It was useless to argue with him. Deer ghosts sent rheumatism as a punishment for some deer killed without placating the spirit.

Every one knew that the Little Deer, chief of all Deer spirits, watched over all his subjects. Never could one fall by the hunter’s arrow or bullet without the Little Deer standing at the victim’s side and asking the clotted blood if “it had heard”; that is if the blood had heard the hunter begging forgiveness for the life he had taken. Obviously the Jumper at some time had failed to repeat the prayer and as a result he was now useless.

“I can not sleep tonight. I will keep watch,” mumbled the Jumper after the turkey had been served.

“Siyu! (good)” agreed Sevier, thankful for a chance to snatch a few hours of sleep.

He had slumbered for several hours when a bullet clipped into the boll of a hemlock near his head and brought him to his feet, rifle in hand. The Jumper, with protruding eyes and gaping mouth, sat leaning against a tree. He made no move to investigate the murderous assault. The fire was down to a bed of coal.

Without a word Sevier glided into the woods. Polcher had had his first try, he concluded. He circled the camp and halted every few rods to locate the enemy by some telltale sound. Unsuccessful, he returned to the fire and lay down at a distance from the dying embers. The Jumper already had concealed himself in some thicket. With the first streak of dawn the borderer rose and dug the Jumper from his hiding-place under a huge stump and ordered him to scout the woods for signs of the midnight visitor.

But the Jumper was now far beyond the point of suffering fear of bodily violence. His brains swarmed with outraged ghosts. Strange superstitions crawled through his thoughts. During the night his medicine-bag had become dislodged from his neck, a most conclusive warning that the Little Deer was greatly displeased with him. The danger of assassination did not impress him as being vital. Bad Luck had settled her talons in his soul; beside which bullets were nothing.

“Will you go or not?” asked Sevier as the Indian tarried by the white ashes and stared timidly about.

“Last night I dreamed of the Little Deer, small as a dog and white,” he whispered. “He told me to go back to the village and give cloth to the shaman, who will make me a prayer and give me new medicine. Ah! The Crippler is twisting every bone in my body.”

“Old Tassel sent you to go with me,” persisted Sevier.

“No chief of the Cherokees gives orders after the Little Deer has spoken,” rebuked the Jumper.

“Of course; that is true,” surrendered Sevier, now resigned to proceeding alone.

The Jumper dragged himself to the creek and removed the gun-barrel and plucked out the rods, then cleaned the barrel and screwed it in place. That the man he had been so solicitous for the day before should now stand in deadly danger made no impression on him. His own soul was in imminent peril of turning blue. The anger of the Deer ghosts remained unappeased. He could only think of hastening home and bankrupting himself in order to buy the shaman’s intercession.

With head bowed and moving listlessly he went up the trail. Only once did a flicker of yesterday’s zeal show in his sombre eyes; that was when he halted and glanced back to warn—

“You are in a red path now.”

Sevier nodded and answered—

“So the bullet fired in the night told me.”

The Jumper resumed his gloomy way and the borderer saddled his horse and rode south.

John Watts had charge of the warriors enforcing this trip to the Coosa. The mystery of their failure to appear on the trail while he was spying from the hilltop was now quite obvious. Watts dared not slay until Chucky Jack endeavoured to return through the land of the Cherokee, but he was perfectly willing to hold his warriors back and give Polcher his chance to make a “kill.”

Polcher, however, must be mounted, which would necessitate his sticking close to the trail if he would not have his victim leave him far behind. Sevier found some consolation in this thought and, leaning over the neck of his horse, he looked for signs and found them within a mile from the creek. The traces indicated that the tavern-keeper had left his horse near the trail while he beat back through the woods to shoot at the shadowy form by the dying fire. On returning to his horse, so the signs read, he had led him some distance, then mounted to spur on as fast as the night would permit.

A glance told Sevier these truths, and red rage smouldered in his heart as he pictured the man withdrawing before him and planning murder, while the Cherokees formed an implacable barrier to drive him to his slayer. His anger did not blind his woods sense, however; and when the forest promised decent travel for his mount he swung from the path and made wide detours. Once he came upon tracks of a horse in the forest mould and decided his foe was indulging in a similar manœuvre.

Yet the day passed without any demonstration from the man ahead or any sign of the Cherokees behind. Both red and white were in their places, never a doubt of that. At sundown Sevier found water and followed it some distance from the trail. Selecting a small circle of cedars he made his fire where he could not be seen unless the prowler approached very close. He had saved enough of the turkey to suffice him for food; and after the first darkness came to hide his movements he shifted his horse up-stream. Returning to the cedars, he gathered small boughs and rolled them in his blanket. Then, heaping fresh fuel on the fire, he withdrew into the night and took up his position between the sprawling roots of a mighty oak.

He planned to sleep through the first of the night, being confident no prowler would approach the cedars so long as the blazing fire suggested he was awake and alert. The flames would consolidate into coals about

midnight; it was then that any lurking assassin would seek the blanketed decoy.

With the woods instinct he timed his slumber accurately. As he opened his eyes and caught the reek of the smouldering fire and beheld the glowing coals staring through the foliage he softly rose to one knee and raised his rifle.

The disturbing voice of a screech-owl raised his *wa-huhu*. Sevier pricked his ears, then relaxed as the dismal notes were repeated. They were genuine and no Indian signal. This corroborated his theory that Chief Watts' men were holding back to give the mixed-blood every opportunity to kill. Something stirred on the borderer's left, a faint rustling. The smoke from the fire would have repelled a night animal.

The darkness made vision useless except as he gazed toward the coals. He aimed his rifle at these. A minute passed and the glowing coals vanished, advertising the intervention of a solid body.

With finger on the trigger Sevier waited for a count of ten, when the explosion of the assassin's rifle tore a red hole in blackness. Almost at the same moment Sevier fired. Something collapsed and the twinkling embers reappeared.

As he fired the borderer fell flat and remained motionless. The silence shut in again. The adventure was finished. Yet Sevier held back until he had reloaded. Then, armed with rifle and ax, he edged forward. He had covered half the distance to the cedars when his moccasin touched something that impelled him to drop his gun and spring forward.

But the form he grasped made no effort at defence. Groping about until he found the hands and had made sure they held no weapons, he dragged the limp figure up to the fire and dropped some dry grass on the coals. The flames flared up and revealed the face of the dead man. It was not Polcher but one of the two whites who had ridden with Red Hajason.

With a smothered exclamation of surprise he drew back under the bushy boughs and crouched on his heels. He observed by the expiring light where the bullet had pierced his blanket and he had no regrets for the death he had dealt. He was chagrined, however, for not anticipating Red Hajason's entrance into the grim game. It was to afford the outlaws a chance to strike, rather than to give Polcher a clear field, that the Cherokees were moving leisurely. Hajason immediately on arriving at Great Hiwassee must have

learned from Chief Watts about the white man riding for the Coosa. And how many men had Hajason sent down the trail? Was he one of the trailers?

"I only wish he'd been this chap," muttered Sevier. "That peace law is bad medicine when it stopped me from shooting him on sight."

Wa-huhu called a screech-owl. Another owl answered from the east and another from the west.

"The Cherokees," he murmured, securing his blanket and stealing from the cedars and making for his horse. "They heard the two shots and are puzzled to know how it came out."

Wa-huhu came the call, now much nearer. And the notes were tinged with impatience, as if the dead man had promised to answer.

Sevier threw back his head and sent the answer ringing through the forest aisles.

He was now convinced his life would be in peril every mile of the way to the Creek country. Old Tassel had feared he might come to harm while in the Cherokee country and had sought to evade responsibility by sending the Jumper to guard him. What might happen to him after he crossed the southern boundary did not concern the old chief. But Polcher, Watts and Hajason were determined he should never reach Little Talassee. He summed the situation up by telling himself:

"From now on I must push ahead as fast as possible. I can't be watching for Polcher and at the same time dodge the gang behind me."

Yet one must sleep and a horse must rest even though two-score Cherokees were stealing like ghouls about the abandoned camp-fire and its dead man. So, shifting his blanket to a deep covert and trusting that his horse would not be found, he slept until sunrise. He sought his horse only after making a circle around the animal; for if other killers were in the vicinity and had stumbled upon the horse they would wait there in ambush, knowing the sun would bring their victim.

But no one was in hiding near the horse; and he threw on the saddle and returned to the main trail without being molested. He rode at a furious gallop and had covered a mile before being reminded of the enemy. A rifle spat at him from the brush and he fancied he felt the wind of the bullet. His only notice of it was to throw himself flat over the saddle-horn and urge his mount to greater efforts.

For several miles he rode at top speed and slowed down only when confronted by a swampy stretch bordering a sluggish creek. Dismounting,

he placed his ear to the ground and caught the *thud-thud* of pursuing hoofs. When standing erect he was unable to hear the hoof-beats, and he knew he had ample time to make the miry ford. Walking ahead to test the footing, he soon waded the creek and helped his mount up the bank and gained firm ground. Springing into the saddle, he rode a few rods up the trail and backed off behind some hemlocks and cocked his rifle.

The minutes passed. Perfect serenity seemed to mark the trail and the surrounding forest. Then wild fowls rose from the creeks and winged away. Peeping from his hiding-place, he beheld a white man afoot leading a horse. The animal was a big black, and a second glance noted the white knees. It was Major Tonpit's favourite steed. The man halted at the edge of the swamp and studied the tracks. Then, climbing into the saddle, he urged the horse into the muck. As he lifted his head to examine the opposite bank Sevier recognized him as another of the trio who rode with Hajason behind the drove.

Possessed with the notion of making the fellow a captive and learning something from him about his master, Sevier spurred into the open just as his tracker reached the middle of the ford. Sevier flung up his left hand and cried—

“Up with your hands!”

The man stared at him, nonplussed for a second, then recognized him and threw up both hands and fired. Without raising his own gun Sevier pulled the trigger, the two reports sounding as one. The borderer felt his brown hair twitch; his opponent toppled off into the creek. The black horse wheeled with a shrill whinny of alarm and dashed frantically back over the trail.

“Two!” Sevier ejaculated, pricking on toward the frontier of the Creek country. “That whittles Red Hajason's fighting strength down quite a bit. Unless he's back there I shouldn't stand in any more danger from that direction. Now to watch out for Polcher.”

On gaining an elevation that commanded a view of the last ford he reined in and glanced back. A score of Cherokee warriors were swarming across the creek. One stumbled and fell over the dead man, and by the commotion the discovery created Sevier knew they were greatly excited. They carried the body back to the bank, then held a council as though hesitating as to what course they should pursue. Finally a runner was despatched to the rear

and the band came on; only now they moved cautiously, as if suspicious of every bush and tree.

Sevier smiled in quiet satisfaction. He was sure he had cleaned out the white assassins, else the Indians would have waited for a third to precede them. For the rest of the day he nursed his speed, walking much to rest his horse and racing madly only when the trail stretched in a straight line for any distance. Whether afoot or flashing down the leafy alley at break-neck pace, he momentarily expected the tavern-keeper to announce his presence with singing lead. Abrupt turns in the path were negotiated carefully, some being avoided by detours. Night found him far advanced on his journey without having discerned any signs of Cherokees or Polcher.

At last he stood at the edge of Little Talassee. His ride through the Creek country had been accompanied by stealth and superb woodcraft and had been uneventful. The wandering bands of warriors that might have intercepted him were avoided without much effort. This taught him the Creeks did not imagine a hostile white man was so far within their territory. It also carried the conviction that Polcher took it for granted Red Hajason's men would prevent his coming. This belief necessitated the conclusion that some of the Cherokee runners had passed round him and informed the tavern-keeper he need bother no longer with Chucky Jack as others had undertaken the work of removing him.

Sevier had timed the last leg of his journey so as to permit an entrance to the village after sundown. From his hiding-place he halted and observed the emperor's home. It was a large handsome house, pleasingly situated back from the river and surrounded by shade trees and extensive beds of flowers. The grounds presented nothing to view which would suggest the red man. It might have been a bit of Pensacola or New Orleans. It was the environment of a white man.

Back of the big house were some two-score neat little cabins that constituted the slave-quarters, while scattered about the residence in a seemingly haphazard manner were outbuildings for supplies and equipment. The entire effect on the borderer was that of a town rather than Emperor McGillivray's private estate.

Near Sevier's hiding-place was a large corral filled with horses. Other animals grazed outside. Waiting until evening had blurred the landscape, Sevier left his horse to graze and ventured among the outbuildings. From the opposite side of the grounds came a chorus of melodious voices as the

slaves sang and made merry. Lights sprang up in the big house, fires twinkled before the cabins in the slave-quarters, but the edge of the estate where Sevier reconnoitred seemed deserted.

He had stolen by a sleepy herder and with a horseman's love had paused to admire the many excellent animals when a big bay passed near him and caused him to start convulsively. There was no mistaking the bay. It was one of Stetson's nags, and he would have taken oath it was in Jonesboro the night of his departure. Wondering at the mystery of it all, he rounded a long structure that was used as a granary and dropped as though shot as a light flared up within twenty feet of him.

An Indian had stepped from the end of a cabin and had revived a smouldering torch by swinging it violently round his head. Sevier remained motionless, his travel-stained forest dress blending with the shadows and logs. But the Creek had no eyes for intruders. Besides the torch he carried a shallow wooden platter of steaming food. Intent on his business he walked to the window of the cabin and, after thrusting his torch into a socket, shoved the platter through a narrow aperture beneath the window, grunting unintelligibly all the time.

For the first time Sevier discovered the cabin was used as a place of detention, for there were iron bars across the window. The face of a white man pressed against the bars and the prisoner said something to the Creek.

Sevier sucked in his breath and then gasped:

"Kirk Jackson! So that's the reason for Stetson's nag being down here. Kirk Jackson, and he's a prisoner!"

The Indian removed the torch and walked round the end of the cabin. Sevier glided forward. Jackson had retired from the window. The borderer glanced over his shoulder to make sure no more torches were approaching and, confident no one could discover him unless by physical contact, he seized the iron bars and shook them gently, and called Jackson by name.

There was a moment of intense silence, then a cautious voice whispered —

"Who is it?"

"Sevier. Chucky Jack."

"Good Lord! What luck!" Jackson fervently murmured, and his face came close to the bars and his hand was thrust to grasp that of the borderer. "The door is fastened on the outside. No danger here of any one setting a prisoner free. Throw up the bar—"

He choked the rest off with a groan of dismay and Sevier began to face about just as a familiar voice exulted:

“Now, —— you, I have you where I want you! There are no white paths here!”

And before Sevier could close in the newcomer thrust a pistol in his face and pulled the trigger. The weapon missed fire. The borderer’s outflung hand caught his assailant’s wrist, the other fumbling for the throat.

“Help! Help! This way!” yelled the man in English.

“Polcher!” roared Sevier, forgetting his danger from the Creeks.

And he redoubled his efforts to get at the man’s throat.

But Polcher was fighting purely on the defensive and evading the groping fingers.

“Look out, Jack!” yelled Jackson at the window.

Sevier glanced about to see whence came the new danger and at first thought the cabin was on fire. This fancy was instantly dispelled by the appearance of several torches round the corner, and before he could think to release Polcher and make a break for it a dozen Creek warriors had penned him in against the cabin. Polcher wrenched himself free and with a howl of rage leaped to an Indian and snatched an ax.

“Stand back there, Polcher!” cried a clear, strong voice using faultless English. “What the devil do you mean by prowling ’round my gaol and raising a riot like this?”

As the newcomer passed through the circle Sevier beheld a tall, slender figure of commanding carriage, and a dark, immovable face. The man was faultlessly dressed after the fashion of the seaboard cities. In his hand he carried a light riding-whip. And Sevier knew he had met Alexander McGillivray, Emperor of the Creeks.

“What’s the matter with you? Why don’t you speak?” sharply demanded McGillivray.

Polcher chuckled sardonically and pointed to Sevier leaning against the wall and informed:

“You have another guest, your Majesty. He was trying to kill me.”

“That is why you snapped your pistol in my ear before I saw you, I suppose,” dryly spoke up Sevier, now stepping forward to meet the emperor.

McGillivray snatched a torch from one of the warriors and thrust the flame close to Sevier’s face.

“And who the devil are you?” he curiously asked, his eyes twinkling in appreciation as they ranged up and down the lithe, upright figure.

“John Sevier, of the Nolichucky, come all the way from Jonesboro to talk with you,” was the calm reply.

“——! Nolichucky Jack? And here?” cried McGillivray, his French blood overwhelming his usual Indian taciturnity.

“They call me that among other names,” modestly admitted Sevier. “Wishing to see you, I had to come here.”

“Well, I admire your courage,” declared McGillivray, his dark eyes slightly bewildered. “Why were you fighting with Polcher?”

“Because he snapped a pistol in my face and said he had me where he wanted me. Oh, I’d have jumped him anyway. He only happened to see me first. I’ve promised myself that some time I shall hang him for a murder he committed.”

McGillivray’s black brows drew down.

“Have a care, sir,” he curtly warned. “Alexander McGillivray is the only man who gives the law in the country of the Creeks.”

“If you value your life you’ll string this man up now, while you have him!” Polcher fiercely broke in.

McGillivray turned on him, and his voice had an edge as he warned:

“Men who volunteer me advice usually regret it. As for valuing my life, it would be in no danger if Chucky Jack had all his riflemen at his back.”

“That is true, sir,” warmly averred Sevier. “I know of no red wampum hanging between us.”

“Not so fast,” muttered McGillivray, staring at him meditatively. “I didn’t mean it that way. If there is no red wampum, neither is there any white wampum between us. You’ve come here without being asked. I’m not yet ready to smoke with you.”

“At least we could go inside and sit down and have a talk,” suggested Sevier.

“Why, certainly, we can do that. And some cakes and a glass of wine into the bargain,” laughed McGillivray. “My surprise at your coming made me forget my hospitality. Only remember, I did not ask you to bring a talk, and we shall talk without belts.”

“That suits me perfectly,” assured Sevier, taking his rifle from where he had stood it against the cabin when seeking to attract Jackson’s attention.

McGillivray waved his hand and the warriors closed about the borderer. Polcher disappeared in the darkness, after loitering to see if he were included in the emperor's hospitality. As McGillivray strode on ahead, leading the way to the big house, he laughed softly but laughed much. As he drew up at the door a slave in gay livery threw it open and humbly stood aside. The emperor slapped his leg with the riding-whip and exclaimed:

"——! But this is unexpected. If I'd offered ten thousand pounds in gold I couldn't had you brought here alive. Behold! You're here without my even asking."

"Yet it cost something for me to get here," said Sevier.

"Meaning just what?"

"Two dead men on the Great War-Path. They tried to stop me."

McGillivray's eyes danced.

"Good! Whose men? Watts'? Dragging Canoe's—"

"Oh, none of the friendly Indians," Sevier interrupted, smiling as he read McGillivray's ardent hope that Cherokees had been slain and that their deaths would precipitate the nation into a war against the settlements. "Merely two renegade whites. Two of Red Hajasen's men."

The emperor's face fell. Sevier only raised the red ax against his Northern neighbours. He eyed the borderer gravely; then a little smile curled his thin lips and he said:

"Those two are better than nothing. If this Red Hajasen lived nearer my country I should send some of my young men to break off his head. He rather got the best of me on a batch of horses. And he'll never come himself with a drove; always sends some of his tools."

Sevier yawned. Instantly the emperor stood aside, bowed courteously and lamented:

"I am forgetting myself. Please leave your rifle and belt with the servant. And enter. You are most welcome to Little Talassee—my guest? Prisoner? I wonder!"

CHAPTER VIII

THE EMPEROR OF THE CREEKS

THE McGillivrays were one of the prominent families springing from pre-Revolutionary marriages between the white traders and backwoodsmen and the Southern Indians. The rapid progress made by the Cherokee and Creek nations can largely be traced to such unions, as the white stock invariably was excellent. The descendants from such mixed marriages are not to be confused with some of the Western squaw men's offsprings of later times.

The children of the Southern mixed-marriages, as in the case of Alexander McGillivray, were sent away to seaboard cities, or to Europe, to be educated. These returned with advanced ideas which they soon promulgated among their mothers' people. One result in the South was an early introduction of schoolhouses and the importation of teachers.

McGillivray was an excellent type of the fruit of such a mixed marriage. From his beautiful half-breed mother, Sehoy Marchand, he had inherited the vivacity and audacity, the brilliancy and polish of the French, and the more reserved traits of the Creeks. From his father, Lachlan McGillivray, he received a shrewd Scottish mind and an ability to solve complicated problems and profit thereby. He was born at Little Talassee in 1746 and was a year younger than Sevier. Of him a President of the United States, more than a century later, was to write—

“Perhaps the most gifted man who was ever born on the soil of Alabama.”^[1]

If he was actuated by great ambitions, he entertained them legitimately; for his mother's family of the Wind was very powerful; by inheritance and tutelage he was propelled to aspire to high things. His mental equipment, too, was that of a man licensed to dream of lasting success and influence. If

he was crafty, his need, nay, the instinct of self-preservation, required craft. James Robertson, Sevier's old friend, characterized him as being—

“Half Spaniard, half Frenchman, half Scotchman, and altogether a Creek scoundrel.”

But Robertson was biased in his judgment because of his hatred for Spain; and there was a strain of Spanish blood in the polyglot emperor. Others of his generation pictured him as fiend and treacherous in his dealings. These charges are not substantiated by any known facts and resulted from the stress and heat of the times. That he played one power against others with consummate adroitness is a matter of historic record—England, Spain and America. He wore the military trappings of the British, he was fond of his Spanish uniform, and finally the insignia of an American officer; the last after Washington made him a brigadier general. But at the time of Chucky Jack's visit to Little Talassee he was all for Spain.

As Sevier faced him in the comfortable living-room of the big house it was without the prejudices of many contemporaries. As McGillivray stood by the table and rested the tips of his long, tapering fingers on the polished board, his spare six feet of muscle gracefully inclined toward his “guest,” his smooth, dark handsome face portraying only solicitude for the comfort of his new acquaintance, Sevier knew he was in the presence of a gentleman.

After Sevier had seated himself McGillivray tapped a bell and gave an order to the half-breed servant. Wine and cakes were brought. All that surrounded the man reflected the opulence resulting from a partnership with Panton, Forbes and Leslie, whose importations yearly ran to nearly a quarter of a million of dollars. And yet this atmosphere of well-being contained no suggestion of the garish. The impression was that the house of McGillivray always had enjoyed a king's income.

Sinking into a chair across from Sevier, the emperor studied the borderer with courteous curiosity. Then, raising his glass, he gave—

“To your good health and—discretion.”

“I thank you. The last is proven by my seeking you in a time of great need,” said Sevier.

McGillivray's dark eyes became luminous.

“Ha!” he softly exclaimed. “If you come for assistance you can count on McGillivray of the Creeks to the hilt.”

“Not so fast,” restrained Sevier. “The need I speak of is yours as well as mine.”

“I don’t understand you,” McGillivray coldly replied. “I know of no personal embarrassment. The Emperor of the Creeks often gives aid. He has never received any.”

“A crisis faces the Western settlements and the Creeks. Your nation can not advance if my people go down.”

McGillivray sprang to his feet and tossed back his dark hair, snapping his long fingers impatiently and darting angry, yet curious, glances at the imperturbable borderer.

“What kind of talk is this for you to bring to me, a McGillivray of the McGillivrays, Emperor of the Creek Nation?”

“It is because you are what you are that I bother to fetch my talk. I come to the one man in the New World Spain leans on for support. Without you Spain would fall to the ground in this Western country.”

The emperor’s irritation vanished, his fierce visage softened. Such homage was very sweet, coming from John Sevier’s lips. He nodded affably. He had reminded Spain of his own importance in his various consultations with the royal governor, Don Estephan Miro.

“I believe his Majesty, Charles III, appreciates my services,” he frankly agreed. “Our treaty of six weeks ago would seem to indicate that much.”

“Could I have seen you before June first I would have urged you not to sign that secret treaty.”

Leaning across the table, his face alive with resentment, McGillivray hoarsely warned:

“Sevier, beware! Beware how you characterize any compact I sign with Spain. You mouth the word ‘secret’ as if it were something shameful. I tell you to heed your words, for you are in my power—and I am trying to forget that fact.”

“To be in a gentleman’s power is to be his guest,” was the calm retort.

With a Gallic flinging out of hands and shrugging of shoulders the emperor dropped into his chair, crying:

“You have disarmed me. Suppose we take up your reasons for coming here—a most unusual proceeding you must admit—in view of the ‘secret’ treaty.”

Sevier’s gaze strayed to the window as if to peer forth and penetrate the darkness.

“I have two objects,” he slowly began. “The most important is to find Major John Tonpit. I admit I had hoped to overtake him before he arrived here.”

“Tonpit? What the devil! It appears that all my guests come with but one thought—to see Major Tonpit.” And McGillivray did not attempt to conceal his exasperation. “That young man from your settlements, whom I was forced to lock up, would hear of nothing but the Tonpits. The Emperor of the Creeks was merely an agency through which he would find the Tonpits. In truth, he seemed eager to tear the secret from me by blood and violence. He seemed to believe I was hiding something from him. My Creeks wanted to kill him on the spot, but there is much white blood in me and I forgave him because of Miss Elsie Tonpit, who no doubt has turned his head. So I saved him from my reckless fellows by locking him up.”

“He’s in love with the girl. Why torture him? You are said to be kind to prisoners. Why not let him see her?”

McGillivray groaned and rested his head against the back of the chair, eying Sevier half humorously, half angrily.

“Why not let him see her?” he mocked. “I would give a thousand pounds to see her myself.”

Sevier bounced from his chair and dropped back again.

“She has not come? Her father has not come?”

“Curse it! Are you trying to bait me?”

Sevier slumped low in the chair and glared blankly at the emperor.

“Not here,” he mumbled. “Then, where are they?”

McGillivray began pacing the room, a crafty cunning glittering through his half-closed lids as he watched the borderer. Finally coming to a halt before Sevier, he stared down at him and slowly inquired—

“Are you sure, John Sevier of the Nolichucky, that you don’t know where they are?”

“If I did, would I be here?” asked Sevier bitterly.

The emperor weighed his show of sincerity and at last accepted it at face value. His lofty brow became worried.

“Polcher said they started for here. He is much disturbed that they haven’t arrived. You and Polcher could scarcely be called friends?”

“He’s the minor reason for my coming to Little Talassee. I’ve promised myself the pleasure of hanging him.”

McGillivray's lips tightened in displeasure at this bold assertion, and his Indian blood came to the fore and he hissed—

“Be careful how you talk of hanging a friend of the Creeks in the country of the Creeks.”

“Alexander McGillivray, Emperor of the Creeks, I do not envy you your friend.”

“So?” purred McGillivray. “You would wish me to call James Robertson ‘friend,’—the man whom I will drive from the Cumberland if my Creeks do not catch and burn him before he can escape.”

Sevier laughed.

“Your chances of burning, or even scaring, Jim Robertson are as good as mine are of becoming Emperor of the Creek Nation.” Then harshly, “This man Polcher is a murderer. He killed an old man in cold blood.”

“Meaning he intended to kill him,” corrected McGillivray with ironical gentleness. “Just as you intended to kill the two white men back on the Great War-Path. Probably Red Hajason by this time is proclaiming you as a murderer. Polcher's ‘cold-bloodedness’ proves he had a definite purpose. If he had slain without an object I would approve of his hanging. Polcher is very useful to me.”

“He's a low-down dog. His usefulness has helped you none in the settlements.”

“That remains to be seen after Major Tonpit arrives. Doubtless you think I would do much better if I made friends with the Western settlers. They are a very pious people.” And the emperor threw back his head and laughed scornfully. “Let me see; it was eight years ago that some of your settlers at Wolf Hill in Virginia ran to their fort to escape an Indian attack. They discovered their minister of the Gospel had left his books in his cabin. Back they went, those pious men, and returned with the books—and eleven scalps. I am told that after a prayer service they hung the scalps over the fort gate.”

Sevier flushed, for the emperor had recited facts.

“The war between red and white has brought out much cruel hatred. Only with peace can kindlier feelings come.”

“When the Legislature of South Carolina offered seventy-five pounds bounty for every warrior's scalp I suppose the State was hungrily seeking a permanent peace.”

“You should add that the Legislature offered even a greater bounty for the warrior alive,” coldly corrected Sevier. “After doing that you could talk till you’re white-headed, reviewing the horrible atrocities your Creeks have committed even during your civilized leadership.”

McGillivray’s gaze became that of a basilisk. For more than a minute he glared at the man so thoroughly in his power. Next, with a startling transition, a most winning smile drove the sullen ferocity from his haughty features and he filled the glasses, reminding:

“Such talk is useless. It makes bad friends. I confess cruelties are practised by the red men. But you didn’t come here to tell me that.”

“I came to find Tonpit. As a side errand I desire to hang Polcher. And I also came as the result of a talk with Old Tassel.”

“Old Tassel?” exclaimed McGillivray, spilling some of his wine.

“I called on him at Great Hiwassee,” Sevier explained.

“Great Hiwassee! Indeed!”

“Before Old Tassel arrived I had a talk with John Watts.”

“Good God! Are you sure you’re not a ghost? You talked with Watts and —”

“And lived to come here? Why not?” And Sevier smiled serenely. “I told Old Tassel I was bringing a talk to you. He is anxious to learn how it results.”

McGillivray played with his glass, his gaze following the light darting through the rich depths, his astute mind seeking to unravel the true import of the borderman’s astounding assertions. Suspicions of double-dealing on Watts’ part came and went, more of a suggestion than a suspicion, for he knew Watts’ implacable determination to have done with the Western settlements. The chief of the Chickamaugas could not change. But there was a mystery in Sevier’s living to leave the town once he had entered it.

“I’ll admit Watts would not receive my talk as I had hoped,” Sevier frankly confessed. “He even showed resentment.” McGillivray smiled. “But Old Tassel was deeply impressed.”

The emperor frowned.

“Old Tassel should be called Old Woman,” he muttered. “What was your talk?”

“I told him if he would hold his warriors back from war I would promise to keep the whites from any further trespass on the lands south of the

French Broad and the Holston. I told him that an alliance with Spain, through the Creeks, would surely ruin the Cherokee Nation.”

“Anything else?” whispered McGillivray, setting down his untasted glass.

“I told him if he made a war-treaty with the Creeks he would lose many warriors and gain nothing. I told him that even if he could kill off all the settlers he would gain nothing, as in the end the Creeks would take his lands.”

“Mr. Sevier,” murmured McGillivray, “why are you so foolish as to tell me all this?”

Sevier knew that while McGillivray would not countenance unnecessary bloodshed he would never permit any one man to stand between him and the ambition of his life. Still he continued:

“Because Watts dared me to tell the talk to you, and because I told him and Old Tassel that I would do it. But I have more to add.”

“I am sorry for you. Go on.”

“I wish to tell you, as I told the Cherokees, that the future of the Creek Nation does not depend on the friendship of Spain; that your treaty of last June is with the same people who made slaves of you in the past. And I tell you now, Alexander McGillivray, Emperor of the Creeks, that if you have the best interests of your nation at heart you will cast off this intrigue with Spain and make peace with the central Government.”

McGillivray threw back his head and laughed long and discordantly.

“A border-leader turned missionary!” he jeered. “Why, man, I was getting angry at you! Your insolence blinded me to the absurdity of it all. Still, I admire you for going to Great Hiwassee. But when you mention the central Government you remind me that facts are facts. Your Government. Where is it? What can it do? Can it sail a boat on the Mississippi? Can it send its goods to New Orleans? Does it resent any action of Spain’s? Or does it meekly bow the head?”

Sevier restrained himself and evenly retorted:

“We are a free people. Just now we need many things. We soon shall have them. War has exhausted us, but we shall make up our strength overnight. We shall never submit.”

“Bah! You submit now,” wrathfully cried McGillivray. “You are powerless now. Why should you think you will be strong tomorrow? Does weakness breed strength? You say the future of my people and that of the

Thirteen Fires are tied up in the same bundle. God forbid! That is what I am trying to escape from. We want none of your future, with its humiliations, with its bending of the knee to Spain. We are free to sail the Mississippi. We trade with New Orleans. When Spain speaks to us she speaks softly. Without our aid she is powerless. My friend, we shall use Spain rather than allow Spain to use us. Her future on this continent is bound up with the future of the Creeks.”

And he rose and extended his arms, his inner vision painting a new and mighty empire in which McGillivray of the Creeks and allied nations played a leading rôle.

Abruptly changing and without waiting for Sevier to speak, he became the smiling host again and asked—

“What is it I hear about your separating from North Carolina?”

“As you heard it as soon as, if not before, we did, there’s nothing new to tell,” Sevier replied. “We are about to set up an independent State and be admitted to the Union.”

“So? My agents are careless fellows,” sighed the emperor, shaking his head ruefully. “Both careless and ignorant fellows. Why, they actually informed me that the Western settlements have been given to the central Government as North Carolina’s share of the war-debt. They led me to believe Carolina was paying her debts with Western land. Never a word about the new State.”

“A month from now they’ll be telling you about the new State,” Sevier answered.

McGillivray simulated a density of understanding and rubbed his head in perplexity.

“I can’t comprehend it,” he sorrowfully confessed. “The wine must have muddled my poor head. Now let me see. North Carolina owes some five million dollars, a ninth of the national debt, plus three millions unpaid interest. France advanced much of the money and is asking for the interest and some arrangement that ultimately will take care of the principal. North Carolina, not having the five millions, votes to pay some twenty-nine or thirty million acres of land. Now, if I have followed you correctly, the thirty million acres refuse to be considered as the equivalent of North Carolina’s share of the debt and insist on being created into a State. It’s very bewildering.”

“Perhaps it will be clearer if you remember there are some twenty-five or thirty thousand settlers who won those acres and who do not intend to be turned over along with their lands like so many beaver pelts,” Sevier replied. “Perhaps you can perceive that the very weakness of the central Government which you have dwelt on is an excellent reason why thirty thousand people will determine the future of the land they alone won and developed. How will the central Government stop us from forming a State if she is unable to resent any insult from distant Spain?”

“I don’t think she can.” And the admission was accompanied by a smile of genuine amusement. “It’s absolutely humorous, the whole situation. A man owes me a thousand pounds. He makes payment. Just as I am about to count the money it hops up and says, ‘You can’t have me as payment for a debt. But you shall take me as a partner and share with me what you already have accumulated.’ What could I do? Perhaps I would demand that my debtor bring me some better behaved money. Eh? What will North Carolina say when she finds she’s lost her land and hasn’t paid her debt?”

“She’ll do nothing,” assured Sevier. “There will be no violence, no bloodshed. You don’t understand the true temper of the people on both sides of the mountains. We’re kinsmen. And your amusing little illustrations make you forget the simple fact that a new State must pay its share of the national debt. Our new State will make good what Carolina owes.”

There was a pause for several minutes, each trying to read the other’s thoughts. Then McGillivray briskly said:

“You mention August. You’re to start building your new State next month?”

“The forty delegates will meet on the twenty-third of August.”

“That will give you scant time to visit me and get back and take part in the good work,” regretted McGillivray.

“Oh, my presence isn’t necessary,” promptly retorted Sevier. “If I remain here as your—guest—everything will go along nicely. I arranged for that.”

“Then you did consider the possibility of remaining with me for a while?”

Sevier shook his head and frankly answered:

“No. My precautions were taken because of the chance of a Chickamauga knife or a Creek ax reaching me before I got to you. I believed that once I had talked to you I could return—always providing I dodged the dangers of the homeward trail.”

“Such faith! Such faith!” murmured McGillivray with a whimsical smile. “Do you know, Mr. Sevier, I must be on my guard against the charm of your personality? I find myself liking you. It’s like walking into an ambuscade.”

Sevier laughed lightly, pointed to the emperor’s full glass and raised his own, saying—

“I drink to the success which will be best for you and your people.”

McGillivray started, gazed intently across the table and slowly moved his lips in testing the words.

“—— me!” he cried. “I can’t see any snake in the bottom of that glass! It rings honest, even if you and I don’t agree on what ‘best success’ is. You’re an honest man, Sevier, and we’ll drink it with honesty in our hearts. And I thank you for the spirit which prompts it.”

The glasses were emptied just as the servant glided in and passed to his master and gave him a written message. McGillivray read it and frowned blackly, then glanced furtively at Sevier. He hesitated and twisted the paper about his fingers; then he brusquely commanded—

“Show him in.”

Sevier appeared indifferent, but from the corner of his eye he watched the emperor’s sudden change of expression. Something in the note had aroused the Indian blood in him, had caused him to entertain a suspicion. The door opened and Polcher entered, bowing low to McGillivray and darting a look of hatred at the borderer.

McGillivray motioned for him to advance but did not ask him to be seated. He bluntly began:

“Your note says you have something to tell me about Mr. Sevier which I should know at once. Why didn’t you tell it to me when you first arrived?”

“Your Majesty, the surprise of not finding Major Tonpit here, the surprise of finding the man Jackson here, drove it from my mind until John Sevier came. Ever since he entered your Majesty’s home I have been trying to get a word to you. Only now have I succeeded.”

“Very well; go on. What is it?”

Sevier eyed Polcher closely, anticipating what was coming. The tavern-keeper gazed only at McGillivray and said:

“The man Jackson, acting under Chucky Jack’s orders, killed your Creek messenger. He was seen to do it by a settler, who was murdered to close his mouth. But before the witness died he told me of the crime.”

“What? What’s this?” roared McGillivray, turning to glare at the composed face of the borderer. “What have you to say, Sevier?”

And the long hands opened and closed as if searching for a deadly weapon or an enemy’s throat.

“Do you believe it?” Sevier quietly asked.

“You heard the charge. Answer!” thundered the emperor.

“Pardon me; but if you already believe it, it is useless for me to answer,” Sevier replied in the same level voice.

McGillivray was nonplussed by this method of defence and finally demanded of Polcher—

“How do you know this to be so?”

“I saw the messenger’s scalp on Sevier’s table in the court-house.”

“——! Sevier, you must speak now. Polcher either has hung himself or you,” McGillivray bitterly exclaimed. “My messenger has not returned. I have thought nothing of his absence because he was to guide the Tonpits here and the woman would prevent a quick journey. Now answer the charge.”

“A scalp of a Creek was placed on my table in the court-house by Polcher,” the borderer slowly informed. “I had never seen it until it was placed there by Polcher. The Creek would not have been killed if you had sent him openly to Jonesboro. I knew nothing about him until he was dead. You sent him by stealth—”

“You admit he was slain?” hissed McGillivray.

“Certainly. But not by Kirk Jackson, as this dog says. The scalp was taken to Polcher by an old man crazy with drink. The old man was to get a jug of whisky if he brought a Cherokee scalp—to Polcher.”

“He lies. —— him! He lies!” gritted Polcher.

McGillivray glanced from the flushed face to the composed one. Sevier coolly continued:

“Your common sense will tell you there can be no question of veracity between me and your tool. The old man who took the scalp did not, however, kill the Creek. I am frank to admit that, although he was a tool of Polcher’s and did as Polcher commanded—as he believed.”

“A Cherokee scalp,” mumbled McGillivray, his anger subsiding for the moment as he recognized the advantage to his cause had a Cherokee been killed and scalped by a Western settler.

“He lies—” began Polcher, but Sevier came to his feet and grasped a decanter, warning—

“You say that again and I shall brain you; no matter how much I dislike to make a scene in the home of McGillivray of the Creeks.”

“Keep your mouth closed, Polcher, until I speak to you,” the emperor harshly commanded. “Sevier be seated—please. Now, Sevier, suppose you enlighten me as to what you know about this.”

Sevier readily complied, omitting only the fact that he knew who had killed the messenger.

“Jackson was in the bush and overheard Polcher’s bargain with the old man and came and told me about it. I directed him to waylay the old man and take the scalp from him. Polcher had demanded a Cherokee scalp for his whisky. The old man believed he had found a dead Cherokee, and he scalped him. Jackson believed the scalp belonged to a Cherokee; so did I until I saw it. I did not want any scalp to be paraded at the tavern, where Polcher and his men would make use of it in inflaming the Indians.”

“But this Jackson fled! He didn’t wait for an investigation,” reminded McGillivray in an ominous voice.

“If he had killed a Creek he scarcely would have fled here,” said Sevier. “He was being chased by a tavern mob. I was away from the village. He already knew the girl was to go to Little Talassee. He was crazy to overtake her. That was the true reason of his leaving Jonesboro in the night without even waiting to let me know where he was going.”

“True, he would be a fool to come here after killing my man,” mused McGillivray. Then with fresh suspicion, “But how did he know the girl and her father were coming here?”

Sevier was unwilling to implicate the girl.

“From something he had learned,” he countered. “I can tell you exactly what he learned, and how, but not in the presence of this man.”

“We still have the death of my Creek to clear up,” reminded McGillivray, scowling blackly. “This old man found the dead body and scalped it?”

“Believing it was a Cherokee. And I went and buried the body so it could not be found and be made the cause of a border war,” Sevier replied.

“But some one did kill the messenger.” With a lightning glance at the tavern-keeper he demanded, “Will you say Polcher killed him?”

Sevier was human and the temptation was strong. The rascal was seeking his life and would hesitate at nothing to accomplish his ends.

“No, I can’t say that. I only wish I could. Polcher didn’t kill him. He only killed the old man he had hired to bring in a scalp.”

“Then you do know who killed him?” cried Polcher.

“You speak as if you were surprised,” growled McGillivray.

“I’m surprised he admits as much,” Polcher defended.

McGillivray nodded for the borderer to proceed.

“Not in the presence of that man,” Sevier refused.

“By heavens, Sevier, you’re taking a high hand!” the emperor passionately cautioned. “Please remember that any man worthy to stand in my presence is worthy to hear any explanation that involves him in a serious matter. I demand you tell me what you know concerning the death of one of my people.”

Polcher grinned triumphantly.

“After he leaves the room I’ll tell you who killed your Creek,” retorted Sevier.

“You’ll tell in his hearing, or else the Creeks have forgotten their knack of making a man talk,” rumbled McGillivray.

“Between such men as you and I that is boy’s talk,” rebuked Sevier with a smile. “I’m disappointed in you.”

“I’m quite in earnest. This man, my paid agent, makes a charge against you—a prisoner—in your presence. You exonerate him of the killing and confess that you know the murderer. You also admit Polcher doesn’t know. I stand back of my men. I’ll put threats aside and appeal to your sense of justice. If Polcher doesn’t know who killed the Creek it is only right that you should speak before him.”

Sevier elevated his brows and stared thoughtfully at the ceiling. Finally he said:

“There is justice in what you ask. It can’t make much difference, as he will never dare go back to the Watauga settlements to serve you again. I’ve decided to tell you what I know. The Creek was killed by an Indian-hater, a man whose entire family was butchered by Indians. The deed was done unknown to any settler; otherwise it never would have been committed. We will cover your dead with many presents. But as you sent him secretly into our settlements, with orders to skulk in the bushes, thereby giving the impression to any who might see him that he was there for mischief, I should say part of the responsibility for his death was yours, Alexander McGillivray.

“Had you sent him to me he would have been unharmed; for then he would have come openly, just as the Cherokee, Tall Runner, came and departed in safety. However, your Creek is dead, and the fanatic will not be handed over for you to kill. There’s the whole truth. Young Jackson is as innocent of the whole affair as you are.”

“I believe you, Sevier; but you talk big when you say the Creeks shall take no reprisal,” McGillivray bitterly observed.

“You can kill me or Jackson, but the settlement won’t turn over the half-crazed slayer of your Creek,” Sevier calmly reiterated. “It is for me to say that you talk big when you complain because your secret messengers aren’t received and protected in Jonesboro at almost the moment you hold as prisoners Kirk Jackson and myself, who came here openly.”

“Came here to make trouble,” ventured Polcher.

Sevier directed a sleepy smile at the tavern-keeper and remarked to the emperor:

“I’ve been thoroughly honest and above board with you. Suppose you ask your trusted agent to be the same.”

“You can’t make his Majesty believe I’m anything but honest with him,” defied Polcher.

“*Ku!*” grunted Sevier. “You killed a war-eagle out of season, Polcher. It has spoiled your medicine. The Great Crystal of the Cherokees would show you floating in blue shadows. Death is very close to you. Now tell the emperor why your friend Red Hajason went to Great Hiwassee and took with him the horses rode by Major Tonpit and his daughter when they departed from Jonesboro.”

Polcher was astounded. When he could master his tongue it was to give a shrill cry of alarm, and for a moment his smug mask of complacency slipped and revealed the stark terror in his soul.

“Lies! Lies!” he choked.

McGillivray was fairly bewildered by the unexpected revelation and glanced swiftly from the borderer to his henchman.

“Tonpit’s horses in Red Hajason’s hands,” he mumbled. Then fiercely, “Polcher, look at me! So. Eye to eye! What do you know about this?”

“Nothing! Nothing! The man lies!” Polcher’s frightened voice persisted.

McGillivray swung about and for nearly a minute searched the depths of Sevier’s steady blue eyes.

“No,” he softly concluded, “he speaks the truth.”

Raising a silver whistle to his lips, he blew two short blasts. Almost instantly a dozen warriors glided into the room and encircled the three men. Pointing to Polcher, the emperor ordered:

“Take this man away. Turn out the dogs.”

“I’ve served you, McGillivray—”

“What?”

“I’ve served your Majesty faithfully. I give my word of honour I will not try to escape until after you have investigated this ridiculous story.”

“You will come to no harm if you’re innocent; and the Emperor of the Creeks knows how to make up for his mistakes with many presents. But if you have played me false you will—if you are wise—cut your own throat tonight. If you attempt to leave the grounds the dogs will get you.”

“I do not wish to leave the grounds,” sullenly replied Polcher as they led him away.

After the warriors and their prisoner left, McGillivray remained staring at the door, seemingly forgetful of Sevier. Black care was worrying his handsome countenance. Speaking gently, he at last asked—

“Do you know anything about the Tonpits, besides what you’ve told?”

“I only know that the man called Hester was the man Polcher used in communicating with Major Tonpit. Hester took orders from Polcher. He left Jonesboro the night the Tonpits set out. The settlers have long believed he is mixed up with Red Hajason. If he is, why not Polcher, his master? I had supposed he went to guide the Tonpits to you, taking the place of the dead Creek. I was surprised to find no trace of the Tonpits on my journey here. Red Hajason had their horses. It must follow he has the Tonpits. Polcher’s a bad one. You’re foolish to trust him.”

“He’s always been humble enough,” muttered McGillivray.

“Humble? Why, he considers himself to be a better man than you, Alexander McGillivray,” laughed Sevier. “And a better man than Tonpit. In Jonesboro he played the part of tavern-keeper and played it well. But, harkee, McGillivray of the Creeks, you’ve had dealings with no man as crafty as he. Show him an advantage in taking your head in a basket to any State capital, and he’ll try for the reward.”

“His ambitions fly above a money reward. He seeks a high position under—in the new order of Western affairs. Yet what you tell me looks bad.” And he sighed as if weary from continued disappointments. “I’ve depended so much on Major Tonpit.”

He blew his whistle, this time but once, and two men entered. Speaking to them in the Creek tongue, he directed:

“You will start immediately for Great Hiwassee and learn if Red Hajason has brought horses there.” Then to Sevier, “Describe the animals.” Sevier did so, and the description was repeated to the men. “You will find out where Red Hajason is now. One of you will return to me with what you have learned. The other shall remain until he has seen John Watts. Ask him in my name if he knows anything about the white man called John Tonpit, and about the white girl, Tonpit’s daughter. This gives you my voice.”

And he slipped a curiously carved ring from his finger and handed it to the elder of the two men.

As they withdrew he said to Sevier:

“We’ll drop it until I receive word from Hiwassee. I admit part of the blame for my Creek’s death. Let that go by. I want to talk with you as friend to friend.

“You imagine me to be a blind tool of Spain’s. You couldn’t make a greater mistake. I hold and intend to hold this Southern country. I welcome Spain so long as Charles III helps me to strengthen my grip on it. Spain knows that if she tries unfairness with me she loses what she now holds. Spain has fleets and needs the fur trade. Her day has passed in Europe. What she gets she must get over here. She will pay well for what she gets. We have something to sell. She is willing to buy. What is there wrong in that?

“If your Western settlements could sell what you raise, you would be very powerful. But you are hemmed in. The thirteen States are satisfied with the Atlantic coast. That is all they have cared for. They have no sympathy with over-mountain development. They are not strong enough to combat Spain, and they know their Western country can amount to nothing so long as Spain holds the Mississippi. Spain holds the Mississippi. Now she asks the Western settlements to form a Government under her protection. The thirteen States will not try to stop you from doing that.

“You say you won’t put on the yoke of Spain. Spain doesn’t ask you to wear a yoke. She knows she can’t win what she must have—our trade—by force. To stop the intrigues of France and England she does want a Government over here—a new republic will answer perfectly—that will be in sympathy with her and favour her in trade. Outside of a commercial advantage, Spain asks nothing from you or me. It only means Spain’s

backing while the new Government west of the Alleghanies gets on its feet. Once the new Government stands alone and needs no European help, Spain would retain her trade advantage because of her just and kindly treatment of us during our development.”

He paused and Sevier shot in—

“What do you get out of such a combination?”

With great dignity McGillivray promptly answered:

“I should still be Emperor of the Creeks. I should retain a monopoly of the Creek trade and, very probably, should have a voice in the affairs of the Cherokee Nation. No, no. Don’t misunderstand me. I shall not interfere with the rights of the Cherokees. John Watts and others are convinced of that. My influence would always be to knit the two nations firmly together. Once that is accomplished we will be invincible.”

“Against whom?”

“Why, against any trespasser,” McGillivray slowly replied.

“Possibly against Spain?”

“If she attempted any injustice, yes. And we’d whip her, too. For she would have to bring the fight to us or lose all she has over here.”

“Invincible against the new Western republic?”

“If the Western settlements treated us wrongly. Certainly.”

“What if you should decide we were treating you unjustly, when, as a matter of truth, we were treating you fairly?”

“Spain would easily adjust any such differences.”

“But, knowing you could defy Spain, would you permit her to settle disputes in our favour?”

For the first time during their interview McGillivray completely lost control of himself. Leaping up, he struck the table and overturned the wine. Kicking over his chair, he began raging from one end of the room to the other, his dark face furious with passion. Sevier replaced the decanter and rescued a book from a puddle of wine. Gradually McGillivray’s emotion subsided. Returning to the table, he righted his chair and sank into it, staring gloomily at Sevier.

“Do you know,” he softly began, “you have been in great danger. You have the quality of making men like you to an unusual extent. You also have the knack of maddening men. For the moment my Creek streak told me to kill you. I am glad I did not give in to it.”

“So am I,” said Sevier, pulling a pistol from the breast of his hunting-shirt. “For I should have acted on an impulse, perhaps, and defended myself.”

McGillivray’s eyes half closed as he watched Sevier twirl the pistol.

“You came in here to have wine and cakes,” he murmured. “And you brought a deadly weapon with you.”

“You have a long knife inside your coat,” smiled Sevier.

“What do you propose doing?”

“Make up for my part in our bad manners,” laughed Sevier, taking the pistol by the muzzle and handing it across the table.

McGillivray’s eyes flew open. He smiled graciously and murmured:

“A gallant gentleman. I meet you half way. Wine and weapons do not go well together.”

And pulling a knife from inside his coat he tossed it and the pistol on a couch at the side of the room.

Speaking sorrowfully, he said:

“Sevier, I have just shown you a wonderful world and you interrupted to ask silly questions. God knows you nearly drove me out of my reason. I can’t bear to have commonplace objections thrown at me when I am painting a picture of new kingdoms. I took you up where you could see yourself as one of the great men of America and you didn’t seem to sense it.”

“If you showed me the whole world from the top of a mountain it wouldn’t tempt me any, Alexander McGillivray, so long as I knew misery and injustice dwelt at the foot of the mountain.”

“Will you go with me to Governor Miro at Pensacola?”

“Only as your prisoner—by force.”

“But Miro is a friend of your friend, of the man who hates me, James Robertson.”

“Miro has been friendly with Jim; but Jim understands that Miro never lets courtesy or friendship interfere with his master’s orders. If Charles III says for Miro to do a thing, Don Estephan Miro does it, regardless of whom it hits or hurts.”

McGillivray bowed his head and sighed, and said:

“Then I must go beyond what I expected would be necessary, beyond my own inclination; for it is not according to my best judgment. But so be it. You are a stubborn man, John Sevier. I will agree with you that we can form

no allegiance with Spain. Say the word and I will inform Don Miro to that effect.”

“What is that word?”

“That you will form an independent Government out of the Western settlements.”

“No!”

“The central Government will not oppose you.”

“That makes no difference.”

“The West is ripe for the move.”

“The move will not be made.”

“You will have twenty thousand riflemen. I will pledge you twenty thousand Indians. You shall have supreme military command. Together we can laugh at Spain, oust her from the Mississippi and bury the ax so deep there shall be no more burning of cabins, or of prisoners at the stake. It will mean the absolute end of Indian warfare, and a prosperity such as men never dreamed of.”

“Once for all, McGillivray of the Creeks, I will form no alliance with Spain. I will work to establish no separate Government, as that would dismember the Union. There is one thing I will do, whether we create a new State or fail.”

“Well?”

“I will protect the Western settlements against the Indians, be they Creek or Cherokee.”

“By ——! You throw a red ax. Then this is the ax I hurl back to you,” snarled McGillivray. “My treaty with Spain will stand. I shall surely win over the Cherokees. The Chickasaws, who now cling to Robertson’s hand because of their chief’s friendship for him, shall join us or be stamped out. We will blot out the Western settlements. The Ohio and Northwestern tribes are eager to join us. If you remain alive to see the border cabins in flames you will remember the offer I made to you in all friendliness. Then will you decide whether you followed a straight or a crooked trail.”

“If it must be so,” sighed Sevier.

McGillivray tapped the bell and rose. Sevier also stood. The servant entered and made a low obeisance.

The Emperor of the Creeks stared moodily at the borderer, hospitality struggling against resentment. Almost sullenly he said:

“If you will give me your promise you will not attempt to escape from the village during the night, I shall be pleased to have you shown to a guest room. The bed is better than what we furnish in the cabins.”

“I have no desire to leave the village tonight. I promise. But I would like to know if my horse—”

“Your horse has been brought in and has received excellent care. I take your promise to save you from a disagreeable death. It is impossible for you to escape. The dogs are out. See here.”

Stepping to the window, he leaned out and whistled shrilly on his fingers.

A wild chorus of baying answered the signal, and in the faint moonlight Sevier beheld a dark patch swerve from between the cabins, running close like wolves. They swept up to the house with two men behind them. Halting beneath the window, they leaped up to caress their master's hand. For a minute or two McGillivray called them by name and stroked the heads of the milling mass. They were gaunt, tawny brutes, one being more than a match for any man unarmed.

Stepping back from the window, McGillivray remarked:

“It would be hard for one to escape my pets. They are a special breed. A streak of the mastiff, and the rest is pure devil. They're trained to touch no one in the village; but woe to the man who goes out of bounds against my orders. Give me a thousand such and I'll chew up the foolish Chickasaws and never lose a warrior.”

Sevier shuddered and followed the servant. His room was on the first floor and at the end of the building. It was large and comfortably furnished. The furnishings were what one would expect in the homes of the seaboard rich but with perhaps more of the Spanish mode than would be found in the North. On a shelf in the corner was a row of books, but Sevier was not overfond of books and gave them scant heed. What did arouse his interest was a wall decoration formed of hunting-knives, arranged so as to suggest the rising sun, the polished blades being the rays. In the collection were home-made weapons of sturdy strength and the more gracefully shaped pieces of European origin.

The windows were open and there was nothing to prevent Sevier from stepping out on to the grass ground. After the servant had left him he remained at the window and looked across the silent, empty grounds to where Jackson was imprisoned in the cabin. How surely had the young Virginian answered to the call of love, even to entering a deadly trap. Such

was the drawing-power of love for a maid. Such should be the whole-souled quality of a man's love for his country.

And where tonight were the Tonpits? Were they alive, and if so, in Red Hajason's camp? It sickened him to think of the girl in that rough environment, her austere father powerless to protect her. If Jackson hadn't been captured and could have known of their plight he could have rallied some riflemen—but that was as useless as wishing for last year's sunshine.

"Oh, for a few days of liberty and fifty of my riflemen!" groaned Sevier. Then came the wild, fantastic thought of calling on McGillivray and offering to go and bring the Tonpits to Little Talassee. He believed McGillivray would gladly take him at his word. He would object to the riflemen being employed but he would willingly furnish a hundred or more Creeks.

However, that would be playing McGillivray's game, Spain's game, the devil's game. If Jackson could get back to the Nolichucky and arouse the men—the inspiration thumped against his mind like a blow. If only Jackson could escape and run the Creek and Cherokee gantlet! The Cherokees would be on the alert to prevent Chucky Jack's return; Chief Watts would see to that. A man must need have wings to escape the ferocious dog-pack. Still such chances were created for men to take and laugh at. There could be no doubting the young Virginian's zeal for the business; nor his woods cunning in putting it through.

Stepping to the book-shelf, Sevier tore a blank page from one of the volumes. On a table in the corner was a quill and a horn of ink; for McGillivray of the Creeks handled a quill as readily as did any of his white contemporaries and kept much writing material easily accessible. The borderer wrote a few hurried lines to Stetson, explaining his fears and exhorting the settler to raise enough men to make the raid a success.

He refrained from speaking of his own plight and simply said the raid on Red Hajason's camp could be made without any fears of an Indian attack during the riflemen's absence from Jonesboro. Sanding the note, he carefully examined the fan of knives on the wall and selected four of extra length, stout of haft and keen of edge.

This done, he extinguished the candle and returned to the window. The problem of the dogs remained. They ran in a pack and kept patrolling the edge of the extensive grounds. Sevier assumed from what McGillivray had said that he would not be attacked while inside the grounds. But to be

discovered would be to spoil his plans. He leaned far out the window and looked and listened. The slave-quarters were on the other side of the house. The pack had gone in that direction when McGillivray dismissed it.

Slipping out the window, the borderer stole to the corner of the house and waited until he glimpsed a shadowy mass passing behind the slaves' cabins. Then retracing his steps, he bowed low and ran swiftly, keeping to the shadows of the outbuildings as much as possible. The light was faint and barely sufficient for him to distinguish one cabin from another, but his sense of location carried him to the window with the iron bars. Gliding up to this, he whispered Jackson's name.

"Who is it?" Jackson murmured, cautiously approaching the window.

"Sevier! Here are four knives and a message. Put two knives under your bed. I will remove the bar from the door. When you hear me whistle, look out and see if the dogs are making for the big house. If they are you must make for the corral and mount a horse and ride for your life. Give the message to Stetson. It orders him to raise some riflemen to go with you to the camp of Red Hajasen, an outlaw. I believe you will find the Tonpits prisoners there. Take them back to Jonesboro and hold them even if you have to make Major Tonpit a prisoner. On no account is he to reach this place. The note explains all—"

"But you? Can't you come with me?" pleaded Jackson.

"I must stay. I've given my word. Remember, when I whistle. If the dogs don't come to me then you must decide for yourself how much risk you can take. Don't try it unless you believe you can make it; as that wouldn't help Miss Elsie any. To be caught by the dogs may mean death. Look out for the Cherokees if you get through. Good-bye."

Retreating in the shadows of the buildings, he beheld the pack trotting toward the big house. They were just getting clear of the slave-quarters and Sevier ran for the window, knowing it was a matter of seconds. He gained the low sill without the pack sounding an alarm and noiselessly vaulted into the room and let out his pent-up breath in a deep sigh of content.

"And you gave your word!" spoke up a harsh voice.

Peering about, he sought to pierce the darkness but was baffled. He knew it was McGillivray but he could not see him.

"I thought I saw a slinking figure outside. I couldn't believe it was you. I felt ashamed to come down here to make sure. I believed I was insulting you by coming. Now I find you've broken your promise."

It was on the tip of Sevier's tongue to deny the accusation hotly, but that would arouse the emperor's suspicions as to the truth.

"A man may walk about the village without breaking his promise not to leave the village," he sullenly replied. "Where the devil are you?"

"Walking in the village!" bitterly derided McGillivray. "You started to escape and became frightened at the dogs."

Sevier said nothing. McGillivray repeated under his breath:

"Frightened at the dogs? Hah! You've been trying to find Polcher."

Still Sevier made no answer. McGillivray opened a door and secured the lighted candle he had left outside. Holding it high, he strode up to the borderer and scanned him closely.

"Your eyes gleam as if you had succeeded in something. Did you find Polcher?"

Sevier smiled, refusing to speak. McGillivray made to set the candle on the table, and his keen gaze at once noticed the absence of the four knives. He leaped to the wall and a glance told him they had been hastily wrenched from their fastenings.

His right hand plucked a pistol from inside his coat. Levelling it he demanded—

"Where are those knives?"

"Ask Polcher," defied Sevier.

"If you have harmed Polcher I will kill you," promised the emperor. Still keeping an eye on his "guest," he stepped to the window and sounded his whistle. Up raced the pack in answer to the familiar call, with the two keepers trotting behind them. Scrambling and crowding, the brutes leaped up until their red eyes glared into the room. Without shifting his gaze from Sevier, McGillivray extended a hand and fondled whatever head came within reach. To the keepers he said:

"One of you stay with the dogs. The other run to Polcher's cabin and see if any harm has come to him."

The order was promptly obeyed and Sevier's spirits rose as he observed the man was making off in the direction of the slave-quarters.

"You still refuse to talk?" demanded McGillivray.

"I prefer to wait," was the calm reply.

The dogs continued leaping up at the window; their master kept up his blind caresses. The one guard stared stupidly at the tableau of the two men,

one with arms folded and counting the precious minutes, the other with a pistol ready in his hand and frowning heavily.

At last there came a patter of feet, and McGillivray straightened and brought the pistol to bear on Sevier's deep chest.

"If the verdict is against you I have decided to shoot you here," he grimly informed.

"I reckon I wouldn't deserve it. I never promised not to harm Polcher. I've told you several times I fully intend to hang him."

"Good heavens! You couldn't have hung him—alone!" cried the emperor.

Up dashed the messenger and sagged against the window-sill and waited for his master to turn and address him. But McGillivray would not remove his gaze from Sevier and commanded over his shoulder:

"Speak, you fool! The man is waiting to know if he lives or dies."

"The man Polcher was asleep," panted the man.

"Asleep? You mean he is dead?" cried the emperor, beginning to contract his trigger-finger.

"No, your Majesty," faltered the man, fearing a rebuke for stating the truth. "I found him asleep. He woke up and cursed me. I told him I was obeying your Majesty's orders. At that he sprang from his blankets and began dressing."

"Alive!" exclaimed McGillivray, slowly lowering his pistol.

"If your Majesty please, I hear some one coming," spoke up the second keeper.

In another moment Polcher stood outside the window, blinking at the candle and impatient to learn what it all meant.

"I am sorry to have disturbed your rest," McGillivray harshly informed. "But my guest has been roaming about the village, and four of my knives are missing from the collection. It seems it was a false alarm." Then, wheeling on Sevier, he shouted, "—— it, man! Why don't you speak? It's dangerous to play tricks on McGillivray of the Creeks."

"I wish to remind his Majesty that he has done me the dishonour of accusing me of breaking my word and of having killed a sleeping man. When I execute Polcher he will be wide awake," Sevier haughtily replied, fighting for more time.

"If the All Powerful would tell me what has happened perhaps my poor wits might put it together and guess the truth," meekly suggested Polcher, inwardly raging with impatience.

McGillivray, deeply irritated, briefly narrated the fact of Sevier's theft of the knives and of his absence from his room and his return to it.

Polcher, standing shoulder-deep among the dogs, gripped the window-sill, his eyes flaming as he sensed the truth.

"He took the knives to use against your pets. But he returns without them. So he must have taken them to some one else. Perhaps to the man called Jackson. I advise—"

With a shout of rage McGillivray leaped through the window and ran toward the cabin, the pack at his heels. The emperor's passion subsided as he saw the cabin door was closed; then flared high as a closer approach revealed it was unfastened. He tore the door open and Polcher leaped inside and kicked about the narrow confines and swept his hands over the rought pallet of straw.

"He's gone!" shouted the tavern-keeper as he bounded over the threshold.

A guard, who had run to one side, now sounded a second alarm.

"The horses are loose!" he screamed.

"To the woods with the dogs! To the woods! Take command, Polcher! Let the dogs have him if they catch him! Arouse the warriors! That man must not escape!"

[1.](#) Roosevelt's "Winning the West."

CHAPTER IX

POLCHER'S LITTLE RUSE

ALL night the search for Jackson worried the forest. Sevier slept but little as McGillivray occupied an adjoining room and walked the floor much of the time, pausing only when some messenger came to report or when he deemed it necessary to leave the house to give fresh orders. At sunrise Sevier from his window saw the wearied pack limp into the village, the two keepers staggering behind them, kept moving by the animals' haul on the leashes. As the dogs were passing the borderer's position McGillivray ran out of the house and demanded of the keepers—

“Why are you back without the white man?”

“He took to water and washed out his trail,” grunted one of the Indians. “He rode fast, although the night was very black. We lost time at the creek in picking up his trail again. Then we followed only to find he had taken to water again. With the dogs on the leash we made slow headway.”

“On the leash? I told you to let the dogs have him!” thundered McGillivray. “You should have loosed them.”

“We did slip two free, Petro and Little One, the fiercest and swiftest of the pack. We sent them after him the moment we left the village,” was the humble reply. “Petro did not come back. We found him where the white man first took to the water. Here, Little One!” And the Indian pulled forward a huge brute whose sides had been wickedly slashed. And he explained, “The Little One crawled back to meet us before we found Petro's body. Came back like this. I was afraid to set them all free, fearing they would come up with him one or two at a time. And surely he is a black spirit.”

The emperor's eyes turned toward the open window and made Sevier think of a flash of a knife as it leaps from the sheath in the sunlight.

"I have my guest to thank for this," slowly remarked the emperor. "My best dog gone and another all but done for. And the prisoner still free. Take the dogs away and see they are well fed and rested."

He would have turned back to the house, but Polcher now came galloping from the forest, his horse in a lather. McGillivray called out to him and the tavern-keeper raced up and sprang to the ground.

"The dogs have failed. What about you?" asked the emperor.

"I think I shall get him," replied Polcher. The words sent a chill to Sevier's heart. "Your warriors are spreading out to the east and west to cut in ahead of him. And I have sent runners north to warn the Cherokees to bar his path. I do not see how he can escape."

"Luck seems to be against me," complained McGillivray. "The prisoner told me he had spent much time in the Shawnee country. He must be very cunning."

"Let him be as cunning as the whole Shawnee Nation and yet he must pass through the neck of the bottle before he can escape," boasted Polcher. "I don't care how much he wanders about in the Creek country. He is our prisoner until he strikes into the Cherokee country and gets beyond the Hiwassee River. Even should he by some miracle dodge the Cherokees of Great Hiwassee and the lower villages and cross the river he will stand but a small chance of reaching the Tellico. But should he do that still the Cherokees will stick at his heels till he reaches the French Broad. We'll see if his Shawnee cunning can carry him that far!"

Polcher's confidence and enthusiasm invigorated McGillivray's spirits and his sombre countenance lightened.

"You have done well, Polcher. I think we shall bag the young man yet."

He walked toward the house with more confidence in his step, but on second thought halted and called after Polcher, who was leading his horse away—

"One word more, Polcher: how far will my Creeks go?"

"Until they get him," was the laconic answer.

"I'm afraid that won't do. The Cherokees might not understand. They may think I'm riding rough-shod over their land," McGillivray worried.

"Not at all, your Majesty," hastily reassured Polcher. "The messengers I sent are intelligent fellows. They will explain the situation fully to John Watts. He will welcome any aid that will stop the man from getting back to the Watauga settlements. It's as much his game as it is ours."

“We’ll hope so. But after I’ve eaten I think I will send a talk to Watts and Old Tassel to make sure they understand.”

“If your Majesty please, I’m sure Watts will be in hot pursuit of the man before your talk can reach Great Hiwassee. As for Old Tassel, I didn’t think it wise to have the messengers see him. He’s weak. The less he knows about things the better it will be. Time enough to explain to him after we’ve caught our man.”

McGillivray frowned a bit, inclined to disfavour any risk of arousing the Cherokees’ resentment, but accepted the advice by nodding his head and waving his hand in dismissal.

In a few minutes there came a soft tap on Sevier’s door and a house-servant entered and informed—

“My master asks Mr. Sevier to join him at the table.”

Sevier made ready to follow and noted that the servant was curiously studying the knives on the wall.

“Only the four are missing,” laughed the borderer, suspecting the man was under orders to make sure the “guest” had not secreted a blade on his person. “I am unarmed. Lead the way.”

With a deep bow the servant did so, and Sevier soon stood in a pleasant side room. McGillivray was at the window. A table was set for two. The emperor haughtily returned the borderer’s greeting and motioned for him to be seated.

After the servant had served them and had withdrawn Sevier blandly asked—

“How goes the chase?”

“You should know. You were at the window when I talked with the Indians and with Polcher,” was the cold reply.

“Jackson is a brave fellow. He deserves to escape,” Sevier stoutly maintained.

“My four knives helped him,” McGillivray grimly reminded, his gaze becoming baleful.

“Then thank God for the knives!” Sevier devoutly cried.

“I would much prefer he had died than to have lost Petro,” the Emperor dissented.

“Then, shame on you, Alexander McGillivray!”

“Ha! You’ve saved up more bold words over night,” gritted the emperor, leaning back in his chair. “Be careful, Sevier. You are not in my white town

of Coosa. You are in the red town of Little Talassee on the Coosa River. A vast difference.”

“I’m where a dog is valued more highly than a clean young American.”

“American? It’s seldom I hear the word,” McGillivray grimly taunted. “I fear it will never become the fashion. But do heed my warning about picking your words. I am irritable this morning, inclined to act on impulse.”

“I feel quite safe, sir. You have too much white blood in you, and you have mixed too much with white men, to descend to barbarism.”

“I don’t know that,” slowly replied the emperor. “When I first learned of my dog’s death—by my own knives—my Indian blood ran very hot. And I tell you seriously, Sevier, and I mean every word of it, that while I prefer to win my ends without resorting to brutality I will allow no white man’s comfort or life to stand between me and success. I have saved many captives from the torture; but if the giving of you to my Creeks to play with would bring me success you should pass under the skinning-knives most surely.”

Sevier bowed gravely and retorted:

“I believe you, McGillivray of the Creeks. And if my passing under the knives of your warriors will block your schemes, then my hide is very much at your service.”

McGillivray could not suppress a flash of admiration. With a short laugh he said:

“After all, we may be able to remain friends. You make people like you, even those who try to hate you. I thought I hated you during the night. This morning I was positive of it. But I can’t. — me! You are a man. Still, I shall send you to your death in cold blood if I decide your death is necessary for my plans.”

“I understand you perfectly,” was the cheery reply. “There are times when a liking for a man goes only so far. Don Estephan Miro has a genuine liking for Jim Robertson, yet he’d cut his throat if he had the chance and his royal master should command it.”

And the borderer attacked the deer venison with much gusto.

McGillivray had no appetite and was content to play with his food while his gaze wandered to the window, watching for a messenger to bring good news. Suddenly he pushed back his chair and leaped to the window. Several Indians were emerging from the mouth of the trail and a white man rode in their midst.

“—— me! But they’ve got him!” he triumphantly cried.

“Where are your Creek eyes?” Sevier contemptuously demanded. “The white man is much too large for Jackson. He wears a beard. Great Injuns! It’s Red Hajason!”

McGillivray’s exultation changed to bitter disappointment. The newcomer certainly was not Kirk Jackson; nor did he bear himself as a prisoner, although surrounded by warriors. He still carried weapons in his belt and held his head high. As the emperor stared Polcher ran across the open ground and intercepted the cavalcade. He exchanged a few words with Hajason, then turned and ran toward the big house.

“The rascal has courage, but he shall hang if any harm has come to the Tonpits,” muttered McGillivray.

“Your man Polcher seems to be acquainted with him,” murmured Sevier between mouthfuls.

The horsemen passed from sight. McGillivray conquered his desire to run out and interrogate the outlaw and resumed his chair at the table, forcing himself to an appearance of indifference. He had barely swallowed a mouthful of the meat when the servant came in and mumbled something.

“Bring my pistols,” the emperor curtly commanded.

The servant turned to a small desk and produced a brace of Spanish weapons, long of barrel and profusely inlaid with gold and silver. Thrusting one of these into the bosom of his coat and dropping the other in his lap, McGillivray next directed—

“Now show both of them in.”

Polcher came first, bowing low. Behind him with head erect stalked the huge form of Red Hajason. Just inside the threshold the outlaw halted and stared insolently at the emperor.

“Red Hajason, of the Hiwasee and the Tugalo rivers,” announced Polcher, standing to one side. “He was picked up by your Majesty’s Indians while on his way here with an important talk for you.”

“I’ve heard of you, Hajason,” lazily informed the emperor. “And I never heard anything good. I was just telling John Sevier that if you have done what you’re charged with doing I probably shall have to hang you.”

Hajason opened his bearded lips in an ugly grin and replied—

“My neck’ll stand a heap of hangin’, I reckon. An’ it ain’t never been cracked yet. But I ain’t here to talk ’bout hangin’. I come to talk trade.”

“Well, what have you to trade?”

“A white man an’ a white woman.”

“Major Tonpit and his daughter?”

“Them’s the two,” grinned the outlaw.

“—— your insolence!” softly hissed McGillivray, the hand in his lap closing over the pistol.

“It’s been done many times,” grunted Hajason, beginning to grow angry.

“You and Polcher worked together in this?” demanded McGillivray.

“Work with him? With that double-faced varment? Red Hajason works alone,” growled the outlaw.

“But the man called Hester helped you in this little coup,” said McGillivray, now folding his arms and leaning back to stare the outlaw squarely in the face.

Again the outlaw’s brutal good humour asserted itself, and he chuckled and informed:

“I don’t count Hester as a partner. Jest a dog-gone fool. Howsomever, I’ll admit it was him what put the game up to me an’ showed me there was money in it. That’s all I asked of him.”

Darting a wrathful glance at Polcher, McGillivray bitterly reminded:

“Hester was your trusted tool. You pick your men well!”

“I shall kill him when I meet him,” promised Polcher.

To the outlaw McGillivray said:

“Suppose you say just what sort of a bargain you wish to make with me. After all, we may be able to trade.”

“An’ why not?” eagerly cried Hajason, the lust for profit showing in his gleaming eyes. “I’ve got somethin’ ye hanker for. Ye’ve got somethin’ I want.”

“Yes; I want the Tonpits. What will you take?” promptly asked McGillivray.

“Two thousand pounds,” was the cool response.

“If it was possible for you to leave this village without being torn to bits by my dogs I would advise you to peddle your wares elsewhere,” said McGillivray. Then he let himself go, and in a voice that trembled with passion he denounced, “You base-born cur! You dare step between McGillivray of the Creeks and his ambitions? You dare dictate what he shall pay for stolen goods?”

With the snarl of a wild animal Red Hajason dropped his hand to his belt, but Polcher pushed the muzzle of his pistol against the shaggy head, while

the emperor's folded arms opened and a second pistol was brought to bear. Polcher deftly slipped his hand along the giant's belt and removed his weapons, stood back from him and looked inquiringly at the emperor, his eyes asking whether he should shoot or not.

Hajason realized his peril. Fighting down his anger, he moistened his lips and apologetically said:

"Hard words always rile me. I come here alone to drive a bargain. Why shouldn't I have some ambitions as well as ye? Ye don't own the Tonpits. They come to me without my askin', an' I've held 'em in camp. Tonpit has money an' offered me a thousand pounds, gold, for to be free along with the girl. Afore bargainin' with him I come to see if ye'd outbid him. That's all."

For a full minute McGillivray pondered over his frank statement; then he smiled whimsically, replaced his pistol and brusquely admitted:

"Yes; you have a right to take your profit. If you had accepted the major's thousand pounds he would have come to me. I'll give the two thousand for the safe delivery of him and the girl here at Little Talassee. Two thousand pounds for the two. McGillivray, Emperor of the Creeks, does not have to haggle over terms. When can you have them here? Time presses."

Red Hajason combed his beard and turned to stare at Sevier. Pointing to the borderer he said:

"If that man can be kept here, so's he can't interfere, I'll not lose a minute in gittin' back to my camp. I'll return here, fetchin' the Tonpits, as fast as hossflesh can bring us."

"Mr. Sevier plans to spend the Summer with me," quietly assured McGillivray. "Should he go away, it will be on a very long journey and in a direction opposite to the one you will take in returning to your camp."

Polcher smiled. Hajason was slower to catch the point, but when he did he broke into a loud guffaw.

"—— my liver, McGillivray," he cried, "but ye're a neat one! 'Opposite direction!' To the Twilight Western land, eh? Ha! Ha! An' takin' along mighty little skin on that fox body of his, eh? Good! I'll eat an' git a fresh hoss from ye an' start back on the hump."

"The sooner the better," insisted McGillivray.

Polcher handed back the outlaw's weapons and the two departed, Polcher bowing himself out in his best landlord's manner, Red Hajason giving his back abruptly and shaking the table with his heavy tread.

“He doesn’t seem to have much respect for you,” remarked Sevier, smiling as he beheld the flare of anger flushing McGillivray’s face.

“The dog! The miserable dog! And he’s all white. Mark you that, Sevier! There is no Indian blood in him. He’s a completed product of your race.”

“Once I get back to the Nolichucky I hope to improve the race. We’ve weeded out quite a few of his kind,” Sevier lightly responded.

McGillivray tossed his pistols aside and left the table. Standing beside Sevier’s chair, he abruptly began:

“We’ve been making believe a bit. We’ve talked at cross-purposes. I’ve no more time to be polite. It’s business from now on. Will you give me your word not to try to escape if I allow you the freedom of Little Talassee?”

“No, sir!”

“Will you promise not to escape until after the Tonpits arrive?”

“No, sir! I propose to escape at the first opportunity.”

“But you came here to see them.”

“I shall leave here to stop their coming here.”

“If that’s your frame of mind I must make you a prisoner,” regretfully decided McGillivray. “I’m honestly sorry to have to do it. I enjoy your company. I get small opportunity to talk with intelligent men. But you’re meddling with big affairs. You threaten to annoy me, to embarrass me. I would be a fool to permit it.”

“There’s something much larger, much grander, than the schemes you’re planning, Alexander McGillivray. Your little ambitions to pose as ruler of a Creek-Cherokee federation, under the protection of Spain, will never be realized. Shut me up in your stoutest prison or kill me, but don’t be foolish enough to believe that my dropping out will give you a clear trail. Only after you’ve killed the soul of some twenty-five or thirty thousand people west of the mountains can you place your feet on the path leading to a realization of your mad dreams.”

McGillivray picked up the pistols and thrust them under his coat and firmly replied—

“Yet I will enter that path and walk to the end even if it requires the death of every settler this side of the Alleghanies!”

Sevier sprang up and sternly demanded—

“Send for my gaoler.”

McGillivray summoned the servant and directed him to bring Polcher and six warriors. While they waited, the two men stood with the table

between them, eying each other in silence. Through the window Sevier glimpsed Red Hajason riding into the forest. Then the door opened to admit the tavern-keeper and the Creeks.

"This man is my prisoner," McGillivray tersely explained. "He is to be watched closely, but no harm is to come to him unless he is caught outside his cabin. If he manages to get out of his cabin, if only a foot from the door, he is to be killed. You, Polcher, will be responsible for him. You can command what guards you may find necessary. I give him into your charge, and see to it you can produce him when I send for him."

"Rest easy, your Majesty, that he shall be produced when wanted," Polcher joyously promised.

"Take him away."

Sevier fell in between the warriors and was led out-doors. Polcher walked behind him with drawn pistol.

Without glancing back the borderer said—

"You'd like mighty well to have me make a bolt for it."

"I'd love to have you," hissed Polcher. "And some one we both know is a big fool to bother with you for a second. You thought you held the whip-hand after I killed Old Thatch. You reckoned you was through with me when I quit Jonesboro on the jump. But all scores come to a reckoning sometime, and here you are in Little Talassee; and before Winter comes I'll be back on the Nolichucky burning a few of our old friends. But I promise you Bonnie Kate shall not burn."

With a low groan Sevier gripped his fingers till the nails cut the flesh. Maddened with rage, he still had mind enough to know Polcher was endeavouring to force him into open violence. Then the pistol at his head would crack and the tavern-keeper would be exonerated for killing a refractory prisoner.

"Remember this, Polcher. You're to die by the noose, and I'm going to be the hangman," whispered Sevier.

"Bah!" laughed Polcher scornfully.

It was the cabin Jackson had been imprisoned in that they took him to. As he was passing through the doorway a servant, sent by McGillivray, came running up with a roll of blankets. Polcher considered this forethought to be a sign of weakness in the emperor and hurled the roll viciously at the borderer's head and swung the door and dropped the heavy bar.

Pausing outside at the window he softly gibed:

“McGillivray is a mad fool. After he clears the way Spain will rule through men like me. I tell you this as I’m positive you won’t repeat it to the emperor. And when I am ruler I shall find a bonnie wife in Bonnie Kate. That is, if I decide to marry her.”

Sevier bent and found one of the two knives Jackson had concealed under his pallet of straw and glided cat-like to the window, the knife held behind him. Never suspecting he held a weapon, yet rendered uneasy by the awful anger raging in the blue eyes, Polcher gave ground and saved his life. Keeping the weapon behind him, Sevier contented himself with saying—

“You will pay for everything when you pay for your neck.”

Polcher began to feel afraid of the imprisoned man. There was something so inexorable in the borderer’s low-pitched voice; it was more menacing than any raving in overtones. Sevier could not harm him—now. But let him get free and no obstacles could prevent him from reaching the man who had dared to utter the name of Bonnie Kate in his boasts. Retreating still farther from the white face at the window, the tavern-keeper selected three Creeks and ordered them to guard the cabin until he returned.

Two of the men remained in front to watch the door and window, while the third guarded the rear, lest by some miracle Chucky Jack should break loose. Although the Creeks were thrown in contact with Sevier less often than their Northern brothers, his reputation had lost none in travelling South. That their emperor ranked him high was shown by the hospitality at the big house. The man Jackson had not been taken there.

In spite of his taunts Polcher was far from satisfied with the situation. The feeling grew upon him that so long as Sevier lived so long would he have a Nemesis on his trail. To have Sevier a prisoner meant nothing. He had been a prisoner at the big house. The only difference in his status now was the change of quarters. Then, too, McGillivray might change his mind. His soul was not the red man’s, and he admired his captive.

Should the Tonpits arrive and should the emperor decide his success was sure, it would be like him to release Chucky Jack and have him up to the house for wine and cakes again. Then the inevitable would happen—Chucky Jack would escape. And there was a deadly quality in Sevier’s last threat which inclined Polcher to great uneasiness. So the obsession grew up in his mind that neither the fate of Spain’s nor of McGillivray’s plans was so important to him as the knowledge that Sevier had breathed his last.

“So long as he lives my neck is in danger,” he muttered. “—— him and his talk of the noose.” And he rubbed his neck nervously. “If I had a little more Cherokee in my veins I’d begin to think I was a fool to kill that eagle. Now if he was to die—but he is not to be harmed! He must be treated like a high and mighty gentleman, curse him—unless he breaks loose. Ah! There’s a thought. If some one would kindly help him get clear of the cabin where I could shoot him down or feed him to the dogs. It’s worth thinking about.”

Only the more he meditated over the idea the more pronounced became the problem of securing a trustworthy tool. Even did he bribe a slave or Indian to unfasten the door to Sevier’s little prison there remained the risk of the accomplice being detected and telling the truth. In event of violated orders McGillivray would have the truth if he dragged out a man’s heart by the roots to get it.

He even considered the possibility of inducing some one to open the door and then shooting him down and openly branding him as a traitor to his master. But such a scheme demanded that he be alone with his accomplice when the trick was played. The arrival of an Indian on the scene would spoil the game.

“There would sure be some slip up,” he told himself. “—— it! There’s but one way left. I must free him myself, shoot him in his tracks and let McGillivray suspect the whole nation. No one being guilty there will be no one to confess. But what if I didn’t hit him? What if he escaped or he killed me. Huh! There is one way that’s sure. Kill him inside the cabin, then drag him out and claim I jumped him outside.”

But how to make it appear logical that Sevier had escaped without help? There were two points of egress possible, providing a man had the proper tools and plenty of time—the door and window. To cut through the door from the outside, so as to make it appear the job had been done from the inside, would require the presence of a knife in the cabin. There would be no time to hack a hole through the stout door after shooting the prisoner through the window; and Sevier would be certain to investigate any assault made on the door while he lived. The same objections were encountered in considering the window.

“It’s got to be done mighty quick,” summed up Polcher. “The door’s got to be thrown open the minute he’s potted through the bars. He’s got to be dragged outside before the sound of a shot disturbs any one.”

For the rest of the day he worked on the idea and at last came to a solution, which, after testing it from all angles, gave every promise of success because of its simplicity and directness. At no time would it oust him from control of the situation, and he whittled it down to so fine a point that only one shot would be necessary.

Shortly before sunset he visited the slave-quarters and, selecting a dull-witted man, directed him to take a platter of food and carry it to the prisoner after the slaves had had their supper. This would mean an hour after dusk. In concluding his directions he touched the fellow's belt and said—

“And have a knife in there so he won't try to reach through the window and catch you as you pass the pan through the hole.”

The slave's eyes grew round with fear. He had no heart for any errand that suggested danger. And it was whispered among the slaves that even the emperor was afraid of this white man. Returning to Sevier's cabin, he dismissed all the guard but one. To him he said:

“When the slave comes with the food you may go. He will stay until relieved.”

The Indian grunted and Polcher hurried to his own cabin and secured his rifle and a brace of pistols.

Making into the woods, he skirted the village until in the rear of the locked cabin. The beauty of his scheme was the assurance no harm could come to him if it failed. If it did not work tonight, then tomorrow night. When it did work the warriors and their emperor would be called to the spot by excited cries and the sound of a shot. They would rush up to find the slave dead, stabbed with his own knife, and the prisoner dead outside the open door. The explanation would be simple.

The slave foolishly entered the cabin with the food instead of thrusting it through the slot. Sevier, quick to see his chance, had snatched the fellow's knife and inflicted a mortal wound and then sprang from the cabin to fall before Polcher's pistols or rifle.

Sevier was as hungry for night as was Polcher. The two knives cached under his straw bed would soon permit him to dig out enough iron bars to squeeze his slender body through the opening. He must work softly so as not to alarm the guard outside. But should one of the guards discover him at his task the fellow must be quieted and secured. For such a contingency he thanked McGillivray for the blankets; at the edge of sunset he swiftly used

his knife and turned one blanket into narrow strips and braided these into a tough rope.

When Polcher came and gave instructions to the guard Sevier hid the blanket-rope under the bed, fearing lest the tavern-keeper should venture to peep inside and discover signs of his handiwork. Early in the day, when Bonnie Kate's name fell from the rascal's lips, the borderer would have forgotten his plans to escape and would have been content to flash a blade through the bars and rip open the lying throat. Now he was calmer and would accept nothing but escape. Polcher could pay up later.

He stood at the window as if idly looking out on the dusk-littered opening, but in reality cutting deep into the window-sill to get beneath the end of a bar. The one guard was impatient to be relieved and was giving scant heed to the cabin. The knives were strong and keen and the task was far easier than Sevier had anticipated. He soon came to the end of one bar and, testing it gently, knew he could bend it back and upward with one push of his powerful arm. Leaving it, he assailed the next, estimating that he must loosen four.

The dogs had not yet been turned out, and, whereas he had originally planned to take his time and escape during the night, he now was determined to make the break while only the slave was on guard. He rejoiced that Polcher's voice had carried the information to him. A slave would be much easier to deal with than a warrior. He would succumb to fear and refrain from attempting to give any alarm. Whether or not he should escape directly after receiving his supper would depend, however, on whether the dogs were loose or chained in the slave-quarters.

He worked feverishly and, having learned the knack of the job, made better time in cutting to the embedded end of the second bar. The sun by this time had waded deep into the forest and the film of shadow over the village blurred objects a few rods from the cabin. The guard began grumbling in a minor tone and walked a dozen feet from the cabin and stared impatiently toward the fires in front of the slave-quarters. The slaves were singing and dancing about the fires, and the warrior grew very peevish. The third bar was ready to be forced clear.

The guard stalked back in front of the window but never bothered to give it a glance. Turning abruptly and grumbling more forcefully, he retraced his steps and walked some distance from the cabin. Now Sevier caught the wild melody of a slave drawing near, singing, perhaps to bolster up his courage.

The Indian called sharply to him. The man came on slowly, his song hushed. The Indian went to meet him and paused to warn him not to leave the cabin until relieved. The slave slowly came on, bearing a steaming dish in one hand, his other nervously feeling of the knife in his rawhide belt. The fourth bar was cut free at the lower end.

Standing to one side of the window, his strips of blanket in one hand, Sevier thrust the two knives into his belt to have a hand free for receiving the pan when it came through the slot. He heard the slave halt at the end of the cabin near the door. He thought he caught the murmur of voices. The discovery startled him, although it was possible the slave was muttering to himself. Then he stiffened and his jaws clamped together as there came a muffled groan and the thud of a heavy body falling to the ground.

His first thought was that Kirk Jackson, unable to break through the Creek and Cherokee lines, had doubled back and was to repay his debt by setting him free. A moment of silence, then the sound of a heavy body being dragged to the door. The next moment the window was blocked by a man's head and shoulders.

"Sevier," whispered a low voice. "Where are you?"

Had it been Jackson, the door would have been thrown open immediately. Turning his head away, Sevier fiercely whispered—

"On the bed."

And plucking a knife from his belt he tossed it on the straw.

"I can make you out now!" hissed Polcher, reaching his pistol far between the bars. "—— you! This is where I win!"

He fired and found his arm caught in an iron grip. A hand was fumbling at his head. He essayed to throw it off but decided its efforts were weak and futile, and he believed he had wounded his man. To make sure he reached his free hand for his second pistol. The grip on his right wrist was amazingly strong for a wounded man. A panic seized him as the pistol caught. Then something touched the back of his neck, pressed against the sides, began crowding his Adam's apple. He tried to shriek. From a great distance came Sevier's metallic voice, crying:

"So you'll bother Bonnie Kate, eh? You killed an eagle out of season. It spoiled your medicine. The noose, you know—"

McGillivray of the Creeks stood in front of the big house when a muffled shot rang out. There followed no outcry, yet the shot was a sinister omen to the emperor's moody train of thought. He could not locate the sound but

believed it came from the direction of Sevier's cabin. He walked in that direction until he met a warrior. Of him he asked—

“Where is the man Polcher?”

“He stands at the window of the cabin, talking with the white man,” answered the warrior. “I heard a gun shoot. I ran to look and found him. I spoke and asked him if anything was the matter. He didn't speak. Just stood with his face against the bars. There were no other guards there.”

Instantly suspicious that the tavern-keeper was planning to play him false, having been won over by the borderer's magnetism, the emperor ordered:

“Call the warriors and surround the cabin. Tell Polcher to come to me. If he refuses, bring him.”

The warrior melted away in the darkness. He had scarcely departed when a figure broke through the gloom and McGillivray greeted:

“I was just sending for you, Polcher. My men tell me you were guarding the cabin alone.”

“Your messenger must travel far to find Polcher,” returned a well-known voice and Sevier, now standing by the emperor's side, presented a pistol. “Polcher is dead. Died by the noose, as I said he must die.”

McGillivray stood as one paralysed. Finally he choked out:

“God! Is it possible!”

“Take me into the house!” hissed Sevier as a loud yell broke up the evening calm. There came the patter of moccasined feet running swiftly. “Inside, quick!”

Propelled by the prodding pistol, the emperor led the way into the house, panting:

“—— you, Sevier! Polcher was right. I should have killed you! You bribed one of the Indians.”

“With what?” growled Sevier. “A slave brought me my supper. Polcher killed him at my door. Then tried to shoot me through the window. The game was simple. I, dead, was to be dragged out. Polcher would claim the slave opened the door and that I killed him. Then he came up and killed me; that would have been his story. With a strip of your blanket round his throat he now stands dead, tied to the only iron bar in the window I did not remove. He was caught in his own trap. Take me to the room where I slept last night.”

The pistol muzzle was all compelling, and, picking up a candle from the hall table, McGillivray with bad grace led the way into the apartment containing the collection of knives.

“But you can’t escape!” exploded McGillivray, his bewilderment slowly passing. “I don’t imagine you plan to murder me. Even if you did, you couldn’t get clear of the village.”

“McGillivray of the Creeks, it’s a chance for me to escape or your life,” sternly admonished Sevier. “Do as I say and you live, although it may mean my recapture. Try any tricks and you’re a dead man as surely as Polcher is a dead man.”

McGillivray of the McGillivrays was now his old unperturbed self and whimsically declared:

“My life comes first. What will you have?”

“Order your servant to bring your horse and rifle to this window. I took Polcher’s pistols. I shall want powder and bullets. Then tell your Creeks that I escaped to the south and order them to take the dogs and go in that direction.”

The village was now in an uproar. Torches were flitting back and forth; men were surrounding the big house. The dogs, infuriated by the confusion, were raising their ferocious voices, demanding to be released for action. As Sevier finished a hundred warriors ran to the lighted window, calling out to their master that the man Polcher was dead and that Little John had escaped by using black magic. Some terrible evil spirit had slain a slave, wrenched the iron bars from the window and tied the dead Polcher up to the window.

The Emperor stood in the open window. Sevier stood against the wall at one side with the pistol raised and levelled.

“Now earn your life,” whispered the borderer.

“Take the dogs and go south!” roared the emperor. “He seeks to escape that way. One of you bring my horse and rifle, powder and bullets here to this window. Off! All of you.”

The crowd rushed away. The dogs, however, had already been brought out and taken to the cabin. They had found the scent and were following it to the big house.

“You must stop them!” warned Sevier.

McGillivray thrust his head from the window and energetically repeated his command. The keepers could not understand why their terrible pets should be so keen to enter the master’s house, but McGillivray of the

Creeks was not to be questioned and they began belabouring the animals and dragging them away. A servant came up, skirting the milling mass of struggling brutes, leading McGillivray's favourite mount. The emperor groaned and muttered—

"I'd prefer you had taken all my horses rather than to take King."

"He will be unharmed and you shall have him back, providing he is not torn by your pack or shot by your warriors," comforted Sevier.

"Curse you, Sevier—"

"Go ahead. Curses never hurt any one yet," encouraged Sevier as the emperor halted.

"It's a foolish habit. I'll wait," mumbled the emperor.

"Send the servant away."

McGillivray obeyed. By this time the dogs had been dragged to the southern limits of the village and the warriors were already scouting the trail that led to the gulf. Sevier made the emperor face the wall and with a sheet ripped from the bed tied his hands behind his back. Forcing him to be seated on the bed, he proceeded to secure his ankles. When he improvised a gag the royal prisoner opened his mouth to shout for assistance, but the pistol silenced him.

"John Sevier, I'll have your life for this," he whispered.

The borderer thrust the gag into his mouth and made it fast, remarking:

"You're getting off easy. It would be better for the settlements if I could bring myself to stop your plotting for all time. If we meet on the border there will be no quarter."

With that he leaped through the window and into the saddle and galloped away to enter the northern trail. The few warriors and slaves he passed recognized the horse and marvelled that their master should be riding north after sending the dogs and the fighting-men to the south.

CHAPTER X

THROUGH THE NECK OF THE BOTTLE

SEVIER'S lead in the race for freedom depended largely on the length of time McGillivray's plight should remain undiscovered. The dogs would balk at going south and their keepers would soon realize the fugitive's trail lay not in that direction. Given the sunlight, the borderer's fleet mount would cover miles before a pursuit to the north could be organized. But night reduced the pace of all horses to a mediocre plane. Sevier entered the trail on the gallop but was quickly compelled to rein in and proceed cautiously.

He rode with his ears tuned to catch the first note of alarm behind him. He had advanced but a short distance when he came to a shallow stream. He turned his horse into this and followed it slowly toward the east. He believed it was the same water Jackson had taken to in hiding his trail. On leaving it he swung back to strike into the Great War-Path, going by the map he carried in his mind. As he broke through a patch of broom-sage on the side of a low hill and entered the hard-packed path the sinister sound he had been anxiously anticipating floated to him on the evening air; a long-drawn bell-like note.

"Sooner than I had expected," he grimly muttered, shaking the reins.

Now he rode recklessly, bending low to escape the clawing boughs and trusting to his horse to keep to the path. The animal soon splashed into running water. Reining in with some difficulty, he forced the animal to ascend the stream for a quarter of a mile, this time travelling due west. Then followed a repetition of his first manœuvre of beating back to the main trail. He planned to follow the Coosa until he had crossed into the Cherokee country when he would leave it below Turkey Town. Riding across country, he could pick up the river again and follow its headwaters until in the neighbourhood of the Hiwassee.

On re-entering the trail he had covered but a short distance when he was startled again to hear the baying of the dogs. He had counted on the animals being delayed on reaching the two streams. Not knowing whether he had followed the streams west or east, the pack would have to course the streams in both directions before correcting the fault.

“Sharp devils, those Creeks!” he grumbled. “Outguessed me, or learned a lesson from trying to catch Jackson. They either divided the pack, half searching the creeks while the other kept straight ahead, or else they’ve paid no attention to the water and are holding all the brutes to the path.”

This suspicion impelled him to ignore the next stream. The two detours already made had cost him time and distance. He could tell by the increased volume of the baying that the chase was closing in. Then followed a short period of silence so far as the chase was concerned, only to be snapped by a frantic, exulting chorus close behind him.

“They’ve let them loose!” he gritted, driving his heels into the quivering flanks.

To be overhauled and dragged from the saddle was not on Sevier’s program. He pushed ahead until the trail opened into a strip of meadow land bounded by the waters of the Coosa and a sharp slope of a rock-littered ridge. Here it was possible to distinguish form. Dismounting, he led the horse up the rocky slope and tied him to a tree. Stumbling on, he came to what he was searching for, several boulders so arranged as to afford protection on three sides. To get at him the dogs must enter the pocket by the one mouth.

Placing his rifle and pistols before him, he slipped off his hunting-shirt and wrapped it about his left arm. Sticking his two knives into the ground, he settled on his heels to wait. Somewhere in the night a whippoorwill—*waguli* the Cherokees call it because of its song—was monotonously reiterating its plaintive cluster of notes. From deeper in the forest came the screech-owl’s *wa-huhu*; but of human and four-footed enemies there was never a sound.

When the crisis broke it was so close at hand as to seem to be in his very face; a triumphant chorus of the bloodthirsty trackers. Sevier’s wide gaze made out several vague forms racing up the slope to where reared the frightened horse. He counted five, one running behind the other, their undulating bodies suggesting the approach of a monster serpent.

The horse shrilly voiced his terror; the pack swerved aside and came for the rocks. Raising his rifle, the borderer carefully covered the leader and fired. Down crashed the brute, its mates leaping over the dead form and dashing onward. Dropping the rifle, he snatched up the two pistols and held his fire for a brace of seconds. He caught one a dozen feet from the opening between the rocks and disabled a third when it was almost upon him. Seizing the knives, he rested on one knee and plunged a blade through the heart of the fourth as it leaped against him. The impact of the huge body bore him backward but he managed to regain something of his balance as the remaining animal closed in and grabbed for his throat and instead caught the bandaged arm.

Stabbing and slashing, Sevier pressed the fighting, and after a few moments of convulsive struggling the beast suddenly relaxed, his teeth still locked through the tough folds of the hunting-shirt. It required much effort to release the shirt from the ferocious jaws. Having succeeded, he ended the misery of the wounded beast. He was bruised and battered and bore some slight abrasions on the left arm, but otherwise was uninjured. Recovering his weapons, he took time to reload them, then limped to his horse and climbed into the saddle.

He was satisfied the dogs were far in advance of their keepers and that the rest of the pack were still on the leash. Returning to the trail, he resumed his flight. Far behind him sounded the ominous baying, but he gave it scant heed. The dogs at the creek had picked up his trail, but the fight among the rocks had increased his optimism. His star was in the ascendancy.

For three days and nights Sevier made his way north, each hour bringing him nearer the neck of the bottle through which he must pass. Jackson's flight undoubtedly had aroused the country. McGillivray's runners despatched on the heels of the young Virginian must have sent a cloud of Cherokees across all paths. The Creeks in large numbers were beating the country as they advanced. It was obvious to the borderer that McGillivray had been promptly released and had lost no time in calling back the men and dogs from the southern trail. But there had been no sign of the dogs for the last seventy-two hours.

There was a menace in the rear, however, more deadly than the dogs—columns of smoke which warned the Cherokees to be on the watch for a fugitive. He tried to make himself believe that Jackson had won through, but there ever remained a doubt. The young ranger was cunning in

woodcraft, else he never would have brought his hair back from the Ohio country. But to run the lines of John Watts' men demanded a bit of luck along with forest wisdom.

As Sevier drew near the neck of the bottle late in the afternoon of the third day he decided the race was not to the fleet. He would save time and insure his final escape by remaining concealed until the edge of the chase had dulled itself. Once his enemies believed he had broken through the search would broaden and move north to the Hiwassee, leaving him the comparatively easy task of following along behind the hunters.

Possibly his shift in tactics was influenced largely by the nature of the country he was entering. To the east and north stretched an extensive area of swamp land, dotted with hummocks and thick with bog growths. Nearly a mile back in the dismal region a rounded dome, formed by sturdy hardwoods, cut the flat sky-line and marked a low hill. He studied the terrain ahead carefully. His horse was badly fagged for want of rest and pasturage. He, himself, was worn by lack of sleep and food. Behind him were the Creeks, urged on by the ire of their emperor. And he had no doubt that the Cherokees were blocking every path ahead.

Leading his horse, he skirted the edge of the swamp until he found a faint trail where hunters had penetrated in search of wild fowl. Taking his horse by the bridle, he encouraged the weary animal to follow him among the quaking morasses. The path was narrow and barely to be discerned and wound among many death-traps. More than once the borderer passed over only to have the horse flounder deep in the slime. Once under way, however, there was no turning back. He must pass on even if forced to abandon the horse. And King, as the emperor had named him, had grown to trust his new master, and Chucky Jack was not one to leave a friend.

"I'll stick by you, old fellow, as long as you can keep above the muck," he promised after extricating the frightened animal from an especially bad bit.

The steaming vegetation masked them from the view of any standing on the edge of the swamp, but if it had not been at the beginning of dusk the occasional flight of startled water-fowl must have betrayed them. As the light faded Sevier renewed his efforts, scarcely pausing to pick and choose. He must reach the low hill before the night blinded him. The last quarter of a mile was a desperate plunge. Several times he believed the horse was lost

and pulled his pistol to give a clean death, when the intelligent animal by a super-effort won the right to live.

When he felt firm ground under his soaked moccasins he had no thought of Creek or Cherokee and threw himself down to rest. The horse gladly shifted for himself and found the pasturage rank and rich. Some time during the night Sevier groped his way up the slope and cut boughs and indulged in the luxury of a bed. But he did this as one in a dream and had scant recollection of it when he awoke in the morning.

With the new sun to warm him he worked the stiffness out of his joints and succeeded in knocking over a water-fowl with a stick. Selecting some dry sticks that would give a minimum of smoke, he lighted a tiny fire inside a dense clump of swamp-cedar and ate his first full meal since leaving Little Talassee. He saw that the food problem would cause him no worry; the swamp was carpeted by game birds. Water remained to be found.

Hunting up his horse, he followed his trail to a spring. With thirst and hunger satisfied, he proceeded to examine the low hill, or knoll, and as he had expected discovered it was surrounded by the swamp. Toward the north, however, the signs indicated an easier escape than that afforded by the route he had taken in gaining his refuge. He could see occasional groups of deciduous trees that demanded a stout soil.

Ascending to the top of the knoll, he climbed an oak and obtained a wider survey of the country. In the east the lowlands met the sky-line. The extent of the swamp to the south, his back track, was much less but so hazardous to contemplate that he wondered how he ever managed to cross it with the horse. The Great War-Path skirted the swamp on the west, and the solid forest wall in that direction was quite close, not more than half a mile away, but was barred by open expanses of water.

The path to the north was the way out. Now that he possessed a high coign of vantage he could trace the course most desirable to follow. For many minutes he examined the country, jotting down in his mind certain landmarks to go by.

A smudge of smoke in the southwest held his gaze, one of the ominous pillars that had followed him for three days. Another column, directly south, was crawling high above the forest crown. A third in the east marked the long line established by the Creeks. As he was about to descend something vague and sombre in the north caught and held his gaze. Now it took shape and ballooned upward, opening like the petals of a black flower. The

Cherokees were signalling to the Creeks that they, too, were on guard and waiting for their old foe to be driven into their arms.

"The trap is well set," mused Chucky Jack.

As he slid down from his perch his attention was attracted by the action of the myriads of water-fowl in the north. They began rising in fan-like formations at the very edge of the swamp; nor did they circle about and return to their feeding-grounds, but flew some distance to the east before descending. He waited and after a time a second flock, much nearer his refuge, took wing and whirled away.

"They're coming," he mumbled, beginning to locate the probable path of the advancing enemy.

Dropping to the ground, he hastened to the foot of the knoll and caught King and led him into a thicket and secured him. Then with his rifle ready he stole to the shore of his little "island" and ensconced himself in a thicket of willows. He believed he had been there nearly an hour when directly in front of his position and within a few rods of firm land he observed a violent agitation among the bushes and caught the sound of a guttural voice raised in alarm.

Sevier crept from under the willows.

"Awi-Usdi! *Higinalii*?"

There was but one voice and it was calling on the Little Deer and asking if the super-spirit were not a friend. Sevier struck into the bog and again heard the frenzied voice crying:

"Little Deer! You are my friend?"

Leaping from rotting stump to decaying log, the borderer found himself committed to a precarious pathway. Often his foot found a transient resting-place only to leave black water behind as it was lifted. Sluggish snakes were disturbed by his passing and swam across slimy pools.

"Awi-Usdi!" Now the voice was filled with despair.

Springing to a long tree-trunk, inches deep in its pile of vivid green mould, Sevier ran to the end and parted the bushes. For a moment he was astounded by the spectacle he beheld. An Indian face was floating on the water, the painted features registering all the horrible anticipation of a hideous death.

Placing his rifle one side, Sevier manœuvred gingerly until he could reach down and grasp the scalp-lock. Although he could lift the head a trifle

and easily drew the submerged body close to the log, he was unable to lift the man from the slime.

“What’s holding you down?” he demanded as a brown arm came from the dark water and clutched frenziedly at his wrist.

“Awi-Usdi heard my prayer! He sent you!” gasped the Indian.

“What’s holding you down?” angrily demanded Sevier.

“My feet are caught in the roots of a water-soaked stump,” groaned the warrior.

“Let go my wrist. I’ll get you out if you do as I say.”

Staring up into the bronzed face with a strange light in his eyes, the Indian released his hold, whereat Sevier dropped in a sitting posture on the end of the log and extended a foot before the imprisoned savage could sink. The hand caught the foot, and as hope brought intelligence the warrior did not make the mistake of pulling his rescuer into the death-trap. Supporting him with his foot, the borderer gathered the tops of several bushes into a bunch and forced them down until the Indian could grasp them.

“Now don’t waste your strength,” quietly commanded Sevier as he slipped off his shirt and bent down a small sapling which he held with his left hand. “You have an ax in your belt?”

The Indian nodded vigorously.

Supporting himself by the sapling, Sevier grimaced and dropped into the slime beside the Indian. He had no trouble in securing the ax, but he grunted loudly in disgust as he shifted his hold on the bowed sapling and allowed his body to sink beneath the stagnant water. He remained long enough to locate one of the imprisoned feet, then pulled himself above the filthy surface. Filling his lungs, he drew the ax from his belt and again descended. He worked cautiously to avoid chopping the foot and after delivering three or four blows was compelled to rise again.

For thirty minutes he repeated the manœuvre, scoring nothing on some trips down, feeling the blade bite deep into the tenacious root at other times. At last the Indian gave a yelp of joy and kicked one foot free. The release of the other foot was quickly effected as the Indian managed to use the liberated member as a lever.

As the two bedraggled men sat on the log, puffing for breath and staring at each other, Sevier smiled and greeted—

“Jumper of the Deer clan, how did you do a thing like that?”

The Jumper wiped the muck from his face and in a weak voice explained:

“As Tsan-usdi knows, I shot at a wolf. It was bad medicine. It made me jump among the roots, thinking the stump was stout and strong. When my feet hit the roots they caught round my ankles like serpents and the stump sank. Kanati, the Lucky Hunter, is still angry because I shot at his watchdog.”

“But I came and pulled you out. Kanati must be over his anger,” soothed Sevier.

“The Little Deer sent you when I prayed,” said the Jumper.

“The Little Deer will help no man who is being punished by the Lucky Hunter. The bad medicine has worked itself weak. Kanati forgives you. The Little Deer forgives you. Has the little girl got her new tooth yet?”

The Jumper’s doleful features lighted up. Hope gleamed in his small eyes, and his strong chest expanded as he began to feel himself a warrior once more, a man of the Deer, unafraid because the gods were smiling. The reference to his child caused him to fairly beam with gratitude.

“She looks many times in the glass Tsan-usdi gave her. She know it will bring a big, strong tooth. Ah! It is good to know the Lucky Hunter is no longer angry.”

“Then suppose we get to dry land and clean up,” Sevier suggested, taking his rifle and rising. “And why did the Jumper come out here alone?”

“I was sent to kill a bad white man.”

“But I am the only white man here.”

“I was told a bad white man was between our warriors and the smoke signals of the Creeks. I saw birds flying away when the sun went down yesterday. I believed the bad white was here. I waited till sunrise and came. I found—my friend.”

Sevier led the way to the spring where they cleaned themselves and the borderer’s garments. This done Sevier inquired—

“Where is Old Tassel?”

“At Turkey Town.”

“I thought he was at Great Hiwassee. Have the Cherokees caught a white man called Jackson?”

The Jumper shook his head, saying:

“Creek runners came and our warriors went out; but he must be very cunning. He was not seen. His trail was not found.”

This was the best of news for Sevier. With Jackson beyond the barrier and speeding on to the settlements there was a chance he might raise the

riflemen and sweep down on Hajason's stronghold in time to prevent the departure of the Tonpits for Little Talassee.

"Have you seen Red Hajason?"

"He got fresh horses at Turkey Town and rode fast for his home three days ago," the Jumper replied.

This news was not so pleasant.

"Where is John Watts?"

The Jumper waved a hand toward the line of smoke signals in the north.

"Waiting to catch me?"

The Indian nodded.

"What does Old Tassel do at Turkey Town?"

The Jumper hesitated, loyalty to his people vying with gratitude to his rescuer.

"The shamans perform the sacred rites very soon," he slowly retorted.

"For going to war?" sharply demanded Sevier, his gaze contracting.

"They have looked in the great crystal and found war floating in it."

"When did they go to water?"

"They do not begin the rites till two days from now."

Sevier leaped to his feet and glared eagerly toward the north. Wheeling about, he caught the Jumper by the arm and said—

"Little Brother, you owe me a life."

"Take it!" proudly answered the Jumper, holding out his war-ax.

"You shall pay me another way. I must give a talk to Old Tassel before the Cherokees go to water. You must take me through John Watts' Chickamaugas. You must take me to Turkey Town unseen. You shall leave me near the town and no one shall know you brought me."

"I can do that, Tsan-usdi," quietly agreed the Jumper.

Sevier's face grew troubled.

"It will be hard to see Old Tassel alone. Watts' Chickamaugas will go there to perform the rites."

"The Chickamaugas went to water before you reached the Creek country."

"Good! I remember Major Hubbard said that back in Jonesboro, only he's always hearing of war-parties to excuse his killings." Then to himself, "—— those hostiles. They've been on the red path for years. They don't count if the rest of the nation can be held back."

“If we are to reach Turkey Town in time we must travel all night. We must cross that before dark.” And with a shiver the Jumper pointed north across the traps of the slime-covered swamp.

“It shall be done. I must take my horse out.”

“Then Little John’s horse must grow wings like *awahili*, the war-eagle.”

Sevier replied:

“But I brought him in here, and from the south. The trail to the north is not so bad.”

“Little John’s medicine is very strong,” conceded the Jumper.

Moving by night with the stealth of phantoms, with the Jumper leading the way; following little-travelled side-paths, sometimes doubling back, often making wide detours to avoid the Cherokees hastening south to be in at the killing of the white man, the two edged their way toward Turkey Town. The first day they covered but a short distance, satisfied to work to the east and taking time to rest; for it was the Jumper’s plan to make a dash round the left of the Cherokee line and cover the distance with a rush during the last twenty-four hours of grace.

The second night they made notable progress, escaping detection by inches when they stole between two large groups of warriors. With the morning sun they found themselves above the smoke signals. They had passed through the barrier and would now have to guard against stragglers only. Sevier was impatient to make an open ride for it, as he feared he might be too late. Did he arrive after the warriors had gone to water Old Tassel would consider himself hopelessly committed to a program of war and, being surrounded by men of the belligerent lower towns, he would be too weak to resist the pressure.

The Jumper insisted, however:

“They do not begin the rites until tomorrow. The ceremony takes four days. We must move cunningly until dark. If I am seen by Watts’ Chickamaugas——”

“You shall not be seen. We will move cunningly,” agreed Sevier.

CHAPTER XI

SEVIER OFFERS THE RED AX

OLD TASSEL wished he had remained at the Little Tennessee towns instead of coming to the country dominated by the war-spirit of the Chickamaugas. In particular did he regret his visit to Turkey Town, where messages from McGillivray poured in upon him and where he could not hide from the persuasive tongue of John Watts. As he was fond of reminding those who met him in council, he was an old man.

When the pressure of the war-faction threatened to become irresistible he could only console himself with thinking that war might not come in his day. Now, here in Turkey Town, even this sorry consolation was denied him. Pacifist and diplomat, he had been overwhelmed by the enthusiasm of Watts and the insistence of Dragging Canoe.

In seeking to temporize he had drifted unconsciously with the tide. Like one helpless in a dream-drama he now found himself in the council-house about to listen to the formal speeches which preceded the sacred rites of getting the eagle's feathers, the shamans' recital of the formula for those about to take the war-path, the going to water and the chewing of the charmed root. Even now he would have entered a protest and asked time to reconsider, but the Chickamauga chiefs had so cunningly hurried him along he found himself accepted as a war votary.

Watts felt so secure that this day would see Cherokee and Creek enrolled in a common cause he did not hesitate to return to his warriors, who were waiting to pounce upon Sevier. The borderer's escape from McGillivray's hands would soon take on a tinge of the supernatural if the man were not caught. The runners, who had brought the news and the emperor's request for co-operation, told of the slaughtered dogs. This feat alone was bound to make a tremendous sensation throughout the nation and redound mightily to Sevier's reputation unless he were run down immediately.

There was no doubt in either Cherokee or Creek minds as to Sevier's hiding-place. It had to be in the narrow strip of territory between the two lines of smokes. Even had Watts felt uneasy to leave Old Tassel's side the necessity of capturing Chucky Jack would have called him away. Already one refugee from the Creek country had passed the Cherokee lines—Kirk Jackson. The young Virginian's successful flight escaped being a disgrace to the Cherokee Nation because he had penetrated deep into the country before the runners arrived with the news.

Warriors had been sent after him and there was a chance he might be overtaken before he could reach the French Broad. But there would be no excuse if Chucky Jack, prize of all prizes, slipped through the Cherokees' hands. Thus, despite his inclination to remain at the village until Old Tassel was irrevocably crowded into the war-pact, Chief Watts was compelled to rejoin his lynx-eyed warriors. And Old Tassel sat disconsolate and heavy-hearted among the hot-bloods.

There were staid and sophisticated head men in Old Tassel's train who would be pleased to see the red ax buried. These lived in the Eastern towns and had mingled with the whites and had begun to realize the irresistible momentum of the tide sweeping down over the Alleghanies. Old Tassel knew he could count on his followers, but he had permitted John Watts to believe he would consent to war, and he feared the scorn of the fighting chief and his men.

Now that he knew he was being carried along with the red tide and was to be dashed against the Western settlements he sought surcease from worry by whipping himself into a rage. God knows he had had much to bitterly complain of. But despite the injustices worked him he could not establish a lasting anger. His attempt to cultivate a blood-lust failed. He had held to the white trail too long. Even in these great moments of regret he recalled certain victories he had won by guile and cunning, or fair dealing, when never an ax was reddened with blood.

The long benches were full and the majority of those present were flushed with thoughts of conquest. Theoretically they could not fail. Old Tassel was an Indian and not to be put out of countenance by the death of white folks. It was the ever present fear of disaster to his people that worried him. Even the most perfect of theories may end in alarming facts. And there was the rub. He could not be sure the Creeks would do all they boasted. If a single link in the chain broke, the chain would fly to pieces.

Then it would be Old Tassel's domain that would first feel the vengeance of Chucky Jack and his horsemen.

Old Tassel cast a mournful glance over the assemblage and rose and said:

"I am an old man. My path is very steep and slippery. Now it leads me to this council where war or peace is to be decided."

He paused and glanced furtively about. With the exception of his own personal following this ambiguous announcement was received with indignant glances. Thrown into something of a panic he hastily added——

"I believe most of the men here are for war."

A loud chorus of affirmatives accented the truth of this statement.

With a poorly suppressed sigh Old Tassel continued——

"Is there any one here who has a talk for us?"

Up sprang one of Dragging Canoe's leading warriors, who began:

"I have a talk for the Cherokee Nation. It is a very old talk. It is as old as the first war-wampum. So long as we raised the ax and gave blow for blow, we were respected by the whites. Since we have put down white paths we have been crowded from our own trails and thrown into the briars and on the rocks, and the white men have filled those trails. In the old days we suffered, for we had bows and arrows against guns. Today it is not so. Spain, through the Creek Nation, will supply us with many guns and much powder. Already she has given us much.

"We will not have to run from the white man's gun or dodge his bullets to get within arrow-shot. We are men. This is our country and we will hold it. There was a time when our land reached to the Ohio and the Great Kanawha and the Catawba, and to the west as far as our young men cared to hunt. Now we do not touch the Cumberland, except on its upper waters, while the French Broad holds us back if we go toward the rising sun.

"Brothers, we are like an old man, once tall and good to look upon, but now bent and withered. There is but one medicine that will make us young and strong and straight. It is a red medicine—the blood of the whites. The all-powerful Red Spirits of the East do not love those who give up their lands without a fight. I speak with the voice of the five lower towns. I speak for war, war, war!"

The speaker's fervour exploded whatever restraint his hearers had been practising, and in a frenzy of martial emotion brawny arms waved axes and many voices thundered:

"War! War! War!"

Even Old Tassel's eyes gleamed with savagery, suggesting new fires blooming through dead ashes. Then returned the old killing doubt: Could the white man be driven out? His gaze once more became dull and lifeless; and more for the sake of restoring a formal atmosphere to the council than because he wished to prolong the sitting he asked—

“Is there any one else who brings a talk to us before we follow the shamans?”

There was a bustling about at the entrance and a swirl of confusion as a man heavily blanketed unceremoniously pushed his way into the room and stood before the chief. Throwing back the blanket from his head and figure, he addressed Old Tassel, saying—

“I bring you a talk, Utsidsata.”

“Tsan-usdi!” croaked Old Tassel, his jaw dropping in amazement.

The assemblage, stunned to silence at beholding the man their redoubtable chief and the Creeks were seeking, glared incredulously. Then broke forth a storm of guttural execrations, and brown hands stretched forward to grasp the impudent intruder. Even in their rage, however, all remembered the kind of man Chucky Jack was. His daring to venture into the council while being hunted by the fighting-men of the two nations was a mighty check to homicidal impulses. And no hand touched him.

“Yes, it is Little John who brings the talk. Little John, who lives on the Nanatlugunyi—‘the spruce-tree place’—once an ancient home of the Cherokees. I am here with my talk, even as I promised you at Great Hiwassee that I would come. Did Little John ever give his word to Old Tassel, or to any of his people, and then take it back?”

He paused for rhetorical effect, and the aged chief began to feel the influence of his audacious presence. Swinging about and pointing his extended hand at the astounded and wrathful faces, he defied:

“Did I not say I would return and give a talk to Utsidsata—‘Corn-Tassel’—called Old Tassel by the white men? Then why are the Cherokees surprised to see me? Have I ever broken my word? Then why are hands clawing near my back as if a panther was near?”

Facing the chief again, he rapidly continued:

“I have always kept my word with you. Who else of those you count as friends have done the same? Is he a Creek? Does McGillivray always keep his word? Or does he first build for McGillivray and ask you to help him,

and then tell you he is too tired to help you build, but some other time. *Hayi!*"

"My men want war, Little John, for the wrongs the white men have done them," weakly retorted Old Tassel, still scarcely able to believe Chucky Jack had slipped through so many fingers.

"Your men shall have war, Utsidsata. Men shall have the thing they crave; but let them beware lest the thing they seek does not bring death to them."

"Ha! The white man is a fool to talk of Cherokees dying when he stands alone with his enemies in the war-council at Turkey Town," passionately cried the orator from the lower towns.

Sevier turned on him and extended a knife, handle first, and challenged:

"So, Little John is a fool to say what he does, to speak of death? Here is a sharp knife; here is my heart. Use the knife; kill my heart. But remember this, and all here remember it—there is one now who is rallying the riflemen of the Watauga. Before my blood can dry they will be riding a hundred miles deep into your country and will be burning your towns and corn and driving your people into the mountains, even as they have done before when you shed the white man's blood."

Abashed the warrior refused the knife. Old Tassel cried—

"Who calls the riflemen together when Little John is in Turkey Town?"

"The man called Jackson, who was held a prisoner of the Creeks in McGillivray's own town until I unfastened the door and told him to go. Did the Creeks and their dogs stop him? Could the renegade Cherokees under John Watts stop him? He laughs at you and carries my word to the riflemen. My word is this: Unless I cross the French Broad on a certain day the men of the Holston, of the Nolichucky, the Broad and the Watauga, are to enter the Cherokee Nation, killing and burning. For if I do not come it will be known that Old Tassel has broken faith, doing me harm after asking me to a council on my return from the Creeks."

The warriors glanced uneasily at each other and refused to meet the sharp gaze of the white man. Little John was once more establishing his influence. McGillivray was considered to be a mighty war-leader; yet he had been unable to hold Little John or Little John's friend. If the Emperor of the Creeks could not hold two of the borderers prisoners in his own village, what guarantee did the Cherokees have he could aid them in withstanding the attack of some three thousand riflemen?

Old Tassel, greatly alarmed at the prospect of having the northern and eastern towns destroyed, hastily insisted:

“McGillivray does not make war for the Cherokees. It is for the Cherokees to say whether they will have war or peace. The Creeks live far from the western settlements. They talk like children at times. This council has not voted for war.”

“Not yet voted for war?” scornfully replied Little John. “Then take this talk from me and have done with talking. You can have war. I am not here begging for peace. I am tired trying to remain friendly with the Cherokees. Take your vote and go to water; then chew your sacred root and see if the medicine can stop our bullets. At Great Hiwassee I gave you a friendly talk and asked you to a grand council. And before doing that I sent a talk to you by Tall Runner—a peace talk.

“Now I will give you no more peace talks; for you do not like them. You want war. These young warriors from the lower towns want war. You can always have what you want if your medicine is strong. As I stood at the door I heard this warrior shouting for war.”

And he turned to Dragging Canoe’s orator and snatched the ax from the nonplussed warrior’s belt. With his knife he slashed his own forearm and allowed the blood to drop on the head of the ax.

Before the stupefied circle could more than draw a breath he waved the gory ax above his head and threw it at the feet of Old Tassel, defying—

“You, who want red war, pick up that red ax!”

Old Tassel drew back as if it were a deadly serpent. Wheeling on the owner of the ax, Sevier invited:

“You pick it up for him. He is old and his bones are lame. You are young and strong. You love war. Yours is the voice that raises the red war-whoop. It is your ax and my blood is on it. You pick it up!”

The startled warrior glared from the chief to the borderer, then dropped his gaze and folded his blanket about him and drew back.

“Ho! Dragging Canoe’s brave cries for the white man’s blood but will not take back his own ax when there is white blood upon it!” jeered Sevier, spurning the weapon with his foot. “Is there any one from the lower towns who wants to pick up the ax? Remember, the Creeks will help you—the Creeks who could not hold two white men prisoners. What Chickamauga wants it? I call on the men from Running Water, from Nickajack, from

Long Island, from Crow Town, from Lookout Mountain town. Who wants the red ax?"

Old Tassel scrambled to his feet and in a low voice announced:

"Red axes have no place in a peace council. Go back to the Nolichucky, Little John, and tell your riflemen to put away their guns. The Cherokees do not go to water or lay down a red path. I am an old man. My path is steep and slippery. I will not make it red with blood. You gave me a promise at Great Hiwassee. I gave you one. I said if you came to me after going to McGillivray I would meet you in a grand council on the French Broad. I will do so. Go to your home, Little John, before your men ride into my country. You shall find nothing but white trails between here and the French Broad. I have said it."

"*Ku!* But there is something else. How can I hold my riflemen back when Creek warriors are crossing your land to strike us in the head? If you are honest, see to it the Creeks are turned back home. For my riflemen will believe you have given them a bloody belt if they see them on your land. Ride! Ride fast, Utsidsata! Reach the Tellico before I reach the Nolichucky, so my men may know your talk is straight when you say you will come to a grand council. Send out warriors to drive McGillivray's Creeks where they belong—back on the Coosa. I will not answer for peace unless this is done."

Leaving the village, followed by the black scowls of the fighting-men, Sevier lost no time in striking for the Hiwassee River a hundred miles away. He left the warriors in the council-house inert and speechless under the impress of his bold speech. His personal magnetism had once more stood him in good stead, and did Old Tassel ride for the Tellico before Watts returned to Turkey Town there was every likelihood of the Cherokees refusing to complete their war-pact with the Creeks. A few miles from the village, as he galloped along the eastern bank of the upper Coosa, he found the Jumper waiting for him.

"Brother of the Deer, you have a talk for me," he saluted as he drew abreast of the silent figure.

"The man called Red Hajason is ahead with Creek warriors. They will turn east at Fighting Town and make for the head of the Hiwassee, where Red Hajason has his village."

"Tsan-usdi thanks you. Old Tassel votes for peace. Go to him and say that Little John demands the Creeks with Hajason be turned back home."

The Jumper led a horse from the bush and scampered down the trail while Sevier resumed his journey. The borderer knew he would not be molested in the immediate vicinity of Turkey Town, but so soon as he encountered warriors who had not learned of his last talk with the old chief there was likely to be trouble. For it was accepted as a fact throughout the nation that Old Tassel had been won over by the war-faction. So Sevier held to the trail for a scant score of miles and then turned aside into the forest, to proceed by stealth until the news of Old Tassel's latest decision could be carried to the northern towns.

Behind him the Cherokee smokes still answered the Creek signals, the watchers confident that Chucky Jack was bottled up between the lines. The result of the peace talk had not yet been conveyed to Chief Watts. And Chucky Jack smiled as he pictured McGillivray's rage on being told Old Tassel was opposed to the Creek alliance.

"If he sticks to his word and keeps on being opposed!" Sevier murmured as he picked his way beneath the ancient trees. "Can Watts win the chief back again? Not if fear for his towns on the Little Tennessee sends him home without meeting Watts. If he rides for home he will sweep the country with the news that the ax is buried. I'll save time by waiting a bit to make sure. If he stays at Turkey Town, then Watts will make him change his mind."

That night he made his camp on the side of a hill overlooking the trail to the north. Before sunrise he was up and anxiously scanning the worn ribbon of a path where it debouched into an opening. Either Old Tassel and his followers would pass within a few hours or had succumbed to the insistence of the Chickamaugas. If the old chief was still for peace he must be within a few hours' ride of the borderer and would press on hotly to avoid being overtaken by Watts.

With his gaze fixed on the opening Sevier saw the mist-ghosts rise and draw their shrouds about them and vanish before the level rays of the sun. For two hours the open trail was purified by sunlight; then a horseman, riding hard, broke from the woods. Behind him came others, until the borderer counted nearly two score, and in the middle of the galloping line rode Old Tassel.

"I've won!" softly exclaimed Sevier, sinking limply back on the moss. "Old Tassel hurries to the Tellico. That means peace! Now, McGillivray of

the Creeks, go ahead with your secret treaty with Spain, and be —— to you!”

In great elation Sevier shot a turkey and ate his breakfast and leisurely followed on after the warriors. The cry of peace would radiate on all sides of their advance. Twice during the day he saw Cherokees. One party he avoided. The second was afoot and hidden by a twist in the trail and he rode into them unexpectedly. Instead of seeking to force him to pass between them, they drew to one side.

Yet he halted and sternly asked—

“Is it peace?”

They presented empty hands, and an elderly warrior gravely answered—

“It is peace, Tsan-usdi.”

He galloped on. Could he but intercept the Tonpits he would set back McGillivray’s plans for two years; and during that period of grace he was confident his riflemen would increase in numbers until a show of force on Spain’s part would be folly.

Toward evening, while looking about for a place to camp, he came to a point in the trail where Old Tassel’s band had split into two parties. The larger had turned in an easterly direction, the smaller had stuck to the main trail leading north. He deduced the reason for this division almost at once. The Jumper had told Old Tassel that Little John wanted the Creeks and Hajason turned back, and the bulk of the warriors were following the outlaw to strip him of his escort. The chief and a few men had pushed on to make the Tellico.

With a solid night’s rest refreshing him and his mount Chucky Jack took after the eastbound band; for he must be near at hand when Red Hajason told the Tonpits they were free to go to Little Talassee. He knew Major Tonpit would bitterly resent any interference with his plans and would insist on going to the Emperor of the Creeks. In that event Sevier planned to use the girl as a lever and take her from her father by force if necessary. Did Jackson succeed in returning with the riflemen the task would be simple; if he failed, then Chucky Jack must depend upon his own medicine.

A day and a night and another morning, and just as he was about to light his tiny fire there came the noise of many horsemen riding carelessly. He stood at the head of his horse to prevent the animal from betraying him. First came the Creeks who had gone north with Hajason, and the borderer’s heart sang in victory. Behind them, taciturn and determined, rode Old

Tassel's Cherokees. The Creeks were sullen and talked none with their escort. Sevier now knew that Hajason was alone, and no sooner had the Indians passed out of hearing than he was riding madly along the trail to overtake the outlaw.

Near midday a bullet clipped through foliage on his right and missed him only because of the Providential intervention of a hemlock bough. He dropped behind his horse and drove the animal to a huge oak, where he left him to slip into the woods and scout toward the source of the murderous assault. He had advanced a score of rods when the rifle barked again, this time back near the trail, showing his assailant had doubled back.

Sevier ran rapidly, sacrificing cover for speed, for he feared his unseen enemy was planning to steal his horse. As he broke into the trail and beheld his mount by the oak there came the *thud-thud* of swift hoofs ahead, and he smiled grimly at the error in his reasoning. The fellow had left his horse in the trail and was eager only to escape after his two unsuccessful attempts at murder.

The borderer spurred after him, rejoicing at the prospect of an open fight. Only once, however, did he sight his quarry. He had topped a rise and the horseman ahead was beginning the descent of a low ridge. Already the horse was hidden from view. Throwing forward his rifle and taking quick aim, Sevier fired. The man's fur hat leaped into the air. On gaining the ridge Chucky Jack found the trail to be empty.

"He can consider that a promise of what's coming," Sevier told himself as he paused to reload.

He raced on recklessly, feeling only contempt for a white man who would seek to ambush one of his own colour, but he pulled his horse in sharply enough on discovering the trail of the fugitive now showed two sets of tracks. Either some one was pursuing him or had emerged from the woods to ride with him.

"They're friends. Two against one," he decided after studying the tracks carefully.

Night overtook him without his sighting the couple. This time he arranged his camp with much cunning, camping apart from his evening fire and arranging his blankets so as to resemble the muffled form of a sleeper. He fell asleep at once and slumbered peacefully until aroused by a rifle-shot.

“Daylight is when I want to meet you, my lads,” he drowsily murmured before turning over and going to sleep again.

With the first light he returned to the dead camp-fire and retrieved his blanket. There was a hole through one end of it. He examined the ground and found where the intruder had stolen forward to shoot and then ran away without investigating the success of his shot. That he had retreated in haste was indicated by the broken sticks and the torn up moss.

“Never even stopped to see if he got me,” murmured Sevier with a grin. “Wonder if it was Hajason or the man who joined him. Hajason seemed to have enough grit when he faced McGillivray.”

His visitor had come afoot and his trail was lost once he struck into the main trail. Sevier lost some time in searching for the men’s camp, then shrewdly decided he could pick them up by pressing on to the headwaters of the Hiwassee. Moving cautiously, for even a coward’s lead is not to be despised in the daylight, he covered a dozen miles and was brought to keen attention by the muffled report of a rifle some distance away.

This shot was not intended for him, and the field of conjecture was very wide. Had it been followed by other shots he would have believed the riflemen were heading off Hajason and his mate. But the forest remained quiet enough and, leading his animal, he stole on. Suddenly a frantic scrambling of a heavy body in a dense growth sent him to shelter; and yet neither of the outlaws’ mounts could be creating this confusion.

He stood erect, his gaze betraying his astonishment as a woman’s voice close at hand shrieked the one word—

“Father!”

The anguish in her voice bespoke a deadly fear. Sevier darted toward the sound. Again the voice rang out, this time in a cry of despair, followed by a hoarse shout of triumph. And the bushes parted and a maddened horse, riderless and with blood-smears on his flank, plunged out and past the borderer.

Throwing caution to the winds, Sevier plunged ahead. A familiar voice was exclaiming:

“Run ye down, pretty bird, didn’t I? Wasn’t fit for ye to wipe yer leetle feet on—an’ now!”

Sevier became a shadow, but the speaker obviously attributed any noise he had heard to the mad plunges of the riderless horse, for he continued:

“Hajason can play some folks double, but not me, young woman. Now ye quit that foolishness an’ git up on yer pins, or it’ll be the worse for ye.”

Parting some cedar boughs, Sevier beheld Lon Hester. The villain was still wearing his bedraggled cock’s feather and was standing beside his horse and staring evilly at the limp form of Elsie Tonpit, where she lay unconscious after being unseated by her crazed mount. The little drama was clear; the girl had escaped and Hester had pursued and shot her horse.

“—— if she ain’t pretty’s a picter,” gloated Hester, his face growing bestial.

The girl was alive and Sevier waited. Hester continued, speaking aloud to check off certain data:

“I can’t go back to Jonesboro. McGillivray might pay a ransom, an’ he might string me up without even sayin’ thank ye. I reckon I’ll keep her for myself, seein’ as nobody else ’pears to want her.”

It was at this point that Sevier noiselessly stepped from cover and quietly informed—

“But I want her, Mr. Hester.”

CHAPTER XII

TONPIT CHANGES HIS PLANS

“**C**HUCKY JACK!” Hester dully exclaimed.
“Drop your gun.”

The bully’s readiness to obey convinced Sevier the weapon had not been reloaded since discharged at the girl’s horse. The borderer glided to the girl and kneeled at her side. She breathed. The borderer started to rise, and Hester pulled an ax from the back of his belt and hurled it. Sevier ducked and raised his rifle. The ax smashed against the barrel and knocked it from his grasp. Believing he had Chucky Jack at a great disadvantage, Hester leaped forward, his hands outstretched, his diabolical fingers crooked to claw his opponent’s eyes. Like a cornered rat he knew he must fight as he had never fought before.

To save the girl from being trampled upon Sevier stepped over her body without pausing to pick up his rifle. The two crashed together within a few feet of the silent form. Still having the girl in mind, the borderer exerted all his energies to force Hester back. The bully was quick to realize that so long as there was danger of their falling on, or stepping on, the girl Sevier would fight defensively, postponing any attempt to use either of the long knives in his belt.

Sevier had not forgotten his weapons, but as Hester was unarmed he was quite willing to meet him barehanded and make him a prisoner. Hester bulked larger than the borderer and had made man-maiming a study.

He grunted in relief as Sevier clinched and made no effort to draw a knife. The bully blessed his luck for relegating the contest to the plane of sheer brutality.

“I’ve always hankered to git a chance at ye,” he panted, clawing at Sevier’s eyes.

Sevier ducked back his head and struck upward, a short-arm jolt, the heel of his palm catching the bully under the nose and eliciting a howl of pain. Fighting to spare the girl, Sevier manœuvred his antagonist back a dozen feet. Then he flashed a smile of relief into Hester's distorted face and the bully's moral fibre began to weaken. The fact that Chucky Jack had accomplished his first objective was an earnest of a second victory. Hester redoubled his ferocious efforts.

Sevier played back right willingly, his slim form giving and resisting with the supple strength of a steel spring. Hester's eyes grew a bit worried. In Jonesboro he had often told his cronies that Chucky Jack was allowed to have his own way because of his prowess as a rifleman, and that in a man-to-man contest he would soon lose his fighting reputation. In drunken confidences at the tavern he had also gone on record as asking nothing better than to be turned loose in a fight with Sevier, each man armed only with his hands.

Now that these ideal conditions were afforded him he discovered he was not making any headway. Repeatedly he essayed his *coup de maitre*, a play for the eyes, and each time he failed by the edge of a second and received terrific punishment in return. His long, pointed nails scratched the borderer's forehead and furrowed his face, but they could not extinguish the blaze in the deadly blue orbs.

He shifted his tactics and endeavoured to use his feet and knees, but instantly the borderer pressed close until there was not enough room for delivering a telling kick, or for a drive of the knee.

"Any more tricks you haven't tried?" murmured Sevier, viciously plunging his knuckles into the front of the red throat.

Coughing and gasping, Hester faintly cried out a blasphemy and feared he was being mastered at his own game. He now knew Sevier could have blinded him a dozen times had he so desired. A terrible fear of the slim fighter began to smother his rage. Judging Chucky Jack by his own standards, he fully expected that when the borderer had wearied of playing with him he would destroy his sight and leave him to find a hideous death in the forest. For that was the death he had planned for Sevier, and he could not imagine a man foregoing the pleasure once he secured the advantage.

The two knives in Sevier's belt hung just back of the hips to be out of the way while riding. They were long, terrible weapons. Hester believed Sevier could have used these at the beginning of the fray and had refrained for the

greater joy of blinding his foe. He could not know that Sevier had fought with his hands in order to take a prisoner, and that once the borderer was committed to this style of battle he had all he could do to protect his eyesight and dared not leave his face unprotected while he fished for a knife.

And Sevier smiled as he blocked each attempt, but he was more keenly concerned than Hester imagined. Suddenly the bully butted his head and at the same time wrenched a hand free and plunged it to the borderer's belt. Sevier bowed his head and received the blow on his forehead, the two skulls crashing together with sickening force. For a second the borderer's head swam; in the next he had struck Hester's hand to one side, but not before the bully's long fingers had gripped a knife.

"Now!" yelled Hester, stabbing joyously.

"And now!" replied Sevier, avoiding the thrust and pulling the second knife. "I like this much better."

Hester was surprised at the expression of relief on Chucky Jack's face.

"Ye was skeered of my hands?" he grunted, thrusting tentatively.

"I was afraid," confessed Sevier, stepping to one side and forcing him toward the bushes. "Just as I'm afraid of a mad-wolf's bite. But this is clean sport. I like it."

Hester believed him and woefully regretted his shift to the knives. But he grew optimistic as he observed Sevier kept darting glances about, a dangerous practice for a knife-fighter, and exulted:

"Gittin' sick, eh? Tryin' to find a chance to sneak out, eh?"

"Hardly that," corrected Sevier, scoring him in the forearm. "I had planned to take you alive. Now I've decided to kill you; and as Miss Tonpit is recovering her senses I'm just looking for a place where you can die without disturbing her."

As he spoke he thrust and slashed and drove the bully back to the fringe of bushes.

Hester's face glistened with sweat. Did he dare shift his gaze aside, he believed he would behold cowed Death waiting for him. Then there rang a long-drawn cry that caused the combatants to throw up their heads and for a moment to neglect their grim business.

"Elsie-e-e! Oh, Elsie-e-e!" called the voice, and Sevier heard the girl stir behind him.

For a moment the borderer relaxed the pressure of his attack, and with a loud yell Hester leaped backward and threw his knife and jumped into the bushes. The knife, thrown blindly, landed haft first between Sevier's eyes and confused him for a second. Before he could pursue the bully the girl's name was shouted again, and the girl, now on her knees, faintly answered:

"This way, father! Come to me!"

Sevier hesitated. He could hear his antagonist crashing away in frantic flight and he knew he could easily overtake him. But close at hand Major Tonpit was loudly calling, and the girl could not be left alone. Now she was on her feet and staring at him wildly.

"Who are you with a knife in your hand?" she whispered.

He advanced and with a little scream of terror she drew back, not recognizing him because of his disordered garments, his scratched and soiled countenance.

"You've forgotten John Sevier?" he asked.

With a glad cry she ran to him and clutched his arm and stared about in search of Hester.

"He's run away, Miss Elsie," Sevier soothed. "He won't bother you any more. And your father is coming."

"Father escaped from them!" she rejoiced, and lifting her voice she called to him.

Sevier picked up his rifle and examined the priming, then loaded Hester's gun. Securing Hester's horse he swung Elsie into the saddle and led the way back to his own mount, cautioning:

"Don't call again. I can find him. If the outlaws are following him he'll bring them down on us. Hester will set them on our trail soon enough without any help from us."

Tonpit's voice rang out again, this time impatiently, for he had heard his daughter's voice and knew she must be safe. Motioning her to be silent, Sevier gave a soft whistle. A horse crashed through the undergrowth and Tonpit was imperiously demanding:

"Where are you, Elsie? I've been horribly frightened."

"This way, father," she softly answered. "And not so loud, dear. Those men will hear us."

"There are two of them who won't hear anything this side of the Last Trump," he hoarsely assured, spurring his mount into the trail. On catching sight of Sevier, he levelled the pistol he was holding and snapped it.

“Father!” groaned the horrified girl. “It’s Mr. Sevier, father.”

Tonpit leaned forward over his horse’s neck and blinked at the borderer.

“Then what the devil is he doing here with that scum?” he fiercely demanded.

“He just saved me from Hester. Mr. Sevier is my friend,” she gently reminded.

“Friend? We shall see,” was the grim reply. “If he is our friend he will guide us to the trail that runs south.”

“You ride where?” asked Sevier, mounting his horse.

“To the Coosa River. And time is precious,” snapped Tonpit.

“You’ve been held prisoners by Red Hajason?” Sevier asked.

Tonpit nodded gloomily; then with a streak of suspicion he asked:

“How did you know about it? Has my daughter told you?”

“I’ve had no time to talk with your daughter,” Sevier coldly replied. “I found her unconscious from a fall from her horse. Hester was with her, and I was on the point of killing him when your call disturbed the balance of battle long enough for him to escape.”

“Then I’m ——— sorry I called,” growled Tonpit. “But Hester said you killed the Indian, who was to be my guide.”

“He lied,” Sevier calmly retorted.

“He came in the Indian’s place,” continued Tonpit. “But he took us to Red Hajason’s camp instead of to the Coosa. We’ve been held prisoners ever since. Then Hajason went away, and I got two horses and Elsie and I rode for it, followed by the band. We threw them off the trail yesterday, but when we broke camp this morning several of them jumped us. She rode ahead while I fought them off. I shot two and got away, but, lost her. That’s all there is to tell, except I’d give a thousand pounds to know what Hajason is up to.”

“I can tell you for nothing,” said Sevier. “He went to McGillivray of the Creeks to bargain for your release. On returning he met Hester. They tried to kill me and then separated when I chased them. Hester ran into Elsie and shot her horse. Hajason by this time has connected with the gang. McGillivray offered Hajason two thousand pounds, gold, for the release of you and your daughter.”

“Ha!” cried Tonpit, his eyes flashing. “Good friend! True friend! And by escaping we save him his gold. But how come you to know all this?” And the habitual air of suspicion lowered from his gaze.

“I was in Little Talassee—his prisoner. I’ve just escaped. Polcher was there—”

“Escaped from the Emperor of the Creeks!” exclaimed Tonpit, his tone implying an inclination to disbelieve the statement. Then hurriedly, “And Polcher? He helped to arrange for my ransom? He’s true-blue! He’s humble, but he has served me faithfully. I shall reward him.”

“He’s—he has been rewarded, after a fashion,” said Sevier. “Major Tonpit, you might as well face the truth now as later. McGillivray’s game is played out. Old Tassel votes for peace. The Cherokees will not join with the Creeks. Without them McGillivray’s pledge of twenty thousand warriors is just ten thousand warriors short.”

“I don’t believe it, sir!” Tonpit passionately cried. “McGillivray of the Creeks will be the saviour of the Western settlements! He has done me the honour of picking me—” He halted and frowned heavily at Sevier’s battered face. “I was forgetting that you’re on the other side; that you prefer bloodshed and bowing the knee to Pennsylvania and Massachusetts to a glorious freedom.”

“Just now I prefer clearing out from here before Hester can bring the outlaws down upon us,” dryly retorted Sevier, pricking his horse up the trail.

Tonpit wheeled his mount and would have struck to the south had not Sevier caught the bridle of the girl’s horse and led it beside his own.

“Here, here, John Sevier!” Tonpit remonstrated, spurring after him. “We ride to the Coosa.”

“You would be overtaken before sunset,” coolly replied Sevier, increasing the pace. “By this time Red Hajason is in command of his men. He knows you would ride in that direction.”

“Where I ride is my business!” angrily cried Tonpit, now on the other side of his daughter and attempting to wrest the bridle from Chucky Jack’s grasp.

“But, father, Mr. Sevier knows best,” pleaded the girl.

“Is it a girl’s place to teach her father wisdom?” harshly rebuked Tonpit.

“You can’t ride south,” quietly informed Sevier. “Your cause is lost, and I’ll be shot if you lose your daughter into the bargain.”

“Release that bridle!” thundered Tonpit, now beside himself with rage.

And he raised the pistol. The girl threw herself forward to block the bullet, and cried:

“Shame, father! After what he has done for us! Better shoot me than him.”

Tonpit sagged back aghast. A second more and he had pulled the trigger, for his mind was curiously warped and his imprisonment had rendered him irresponsible. To relieve the scene of its tragic atmosphere, Sevier advised:

“You’d better load that pistol. We may need it soon. You’ve tried once to shoot me with it.”

Tonpit’s cold face flushed and he mumbled:

“I was hasty. I apologize; I will reload it. Then my daughter and I will ride south.”

“The trail south is open to you, but the girl rides north,” Sevier calmly informed.

Tonpit’s eyes glowed wolfishly and without a word he began reloading the weapon. The girl knew the climax would come the moment he finished his task, and to Sevier she pleaded:

“You mean well, but after all my place is by my father’s side. I thank you for what you’ve done. Now let us part good friends.”

“Your place is not in Little Talassee, where they plot to cut up the Union,” was the firm response. “Your place is where Americanism thrives, in the settlements, or in the cities over the mountains. Never where McGillivray plots with Spain.”

“Mr. Sevier, I will shoot you if you persist in your interference,” Tonpit announced.

“Then you will be a murderer and your daughter will refuse to ride with you,” cheerfully countered Sevier. “If my death will restore the young woman to the American settlements, why, I shall not have died for nothing.”

“Put up your pistol, father,” commanded the girl. “If you do Mr. Sevier any harm I shall ride north alone.”

Tonpit’s face became ghastly as he heard her ultimatum and caught a reflection of his own stubborn will in her young face.

“You’ve tricked me, Sevier,” he whispered. “But there’ll be a reckoning between us—”

“Hush!” cried the girl, placing her fingers against his lips.

Sevier tilted his head and meeting her questioning gaze nodded gravely.

“What is it now?” growled Tonpit.

“They’re after us, the whole gang,” informed Sevier. “Had you started south you would be prisoners by this time. They’re on our trail and we’ve

no time for talk. Keep at my heels.”

He spurred ahead with the girl and Tonpit raced after him. Loud yells from behind advertised their discovery by the outlaws. Rifles were fired, but without aim, as none of the lead came near them. Sevier twisted his head and motioned for Tonpit to ride beside him while the girl led the way. As Tonpit drew up the borderer informed:

“We can’t outride them. Your girl is played out. A few miles ahead there is a cave near the trail where we can hide. Once there one of us can stand them off until the other gets help.”

“Get help? Who is there to help us in this cursed country?” groaned Tonpit.

“The Cherokees,” said Sevier. “Because of my talk with Old Tassel they will send men. Did McGillivray have his way the Cherokees would now be at war with the settlements and be among those hunting us. You’ve lost a chance to be Spain’s governor in the new world, but we’ll save the girl.”

“Let us get to the cave,” gritted Tonpit.

He dropped back and Sevier rode beside the girl. Their pursuers came fast and furious and the borderer knew they were gaining. The trail with its twistings and its banks of forest growth prevented the pursuers and the fugitives from glimpsing each other. Pointing ahead to a lightning-shattered oak, Sevier directed:

“When we reach it you and Miss Elsie must dismount and make back into the woods till you come to a high ledge. The cave is half-way up the ledge and can’t be seen from below. Better hide among the rocks and wait for me to lead you.”

As they reached the fallen tree Tonpit and Elsie dismounted and plunged into the woods. Sevier gathered up the bridles and the three horses swept on. For half a mile Sevier laid down the telltale trail, then took to a ribbon of exposed rock and turned at right-angles to the travelled path, his course paralleling that taken by the Tonpits.

A quarter of a mile of cautious advance brought him to the foot of the ridge, and he turned south and soon came to the ledge. As he leaped to the ground and led the horses deep among the rocks and brush Elsie Tonpit’s face peered from behind a boulder. In another moment he was leading father and daughter to the hiding-place.

CHAPTER XIII

THE SENTENCE OF THE WILDERNESS

ALTHOUGH styled a cave by Sevier the hiding-place in the ledge was only a rock recess, caused by the undercutting of surface waters. In this pocket the borderer left the Tonpits while he went for assistance. He was surprised on scouting toward the trail to hear the voices of the outlaws raised in loud discussion. He had taken it for granted that Hajason's men would not observe the abrupt ending of the signs left by the three horses and would continue their pursuit for some distance beyond the ledge.

"I tell ye this is the girl's hoss. I plugged him to stop the girl. That skunk of a Sevier can't make fast time carryin' her on his saddle. Old Tonpit's nag must be 'bout blowed," bawled Hester's voice.

"My breed tracker says there was three hosses ahead," boomed Hajason's deep bass. "He didn't have to see 'em to know that. If ye fools hadn't rammed ahead of him an' wiped out the signs he could 'a' told where they swung off the path. All we know now is that they turned off somewheres atween here an' where we stopped, or 'bout half a mile ahead. We'll have to scatter an' search both sides of the path."

"This hoss with his flank ripped open is the girl's nag, I'm tellin' ye," persisted Hester. "If Sevier didn't ride double then they must 'a' took my hoss. If that's the case an' he's within hearin', I reckon I can wipe out the need of searchin' both sides of the path. My animal is trained to prick up his ears when he hears this."

Sevier darted back toward the three horses hidden among the rocks, but he had scarcely started when the bully's shrill whistle rang out. Before he could cover quarter of the distance the whistling was repeated several times and Hester's mount came galloping through the thickets in answer to his master's call. The borderer essayed to catch the bridle, but with a snort the animal jumped aside and crashed toward the trail.

The excited cries of the outlaws, punctuated by Hester's loud oaths of admiration, greeted the arrival of the horse. Sevier's only consolation was the knowledge that although the faithful beast had answered the call he could not guide the outlaws to the ledge. And yet, a quarter of a mile even of thick forest did not afford as wide a margin of safety as Sevier would wish. The borderer realized that whatever action he was to take to safeguard the secret of the ledge must be initiated at once.

At a point where a twist in the trail hid the band from view Sevier crossed to the other side. Moving parallel to the trail, he gained a position opposite the horsemen just as Red Hajason was commanding:

"Spread out in a thin line an' beat up the woods. The hoss come from some spot near here. The trackers will go ahead an' foller the hoss's tracks. When any one sights the runaways jest give a yell an' lay low till all of us can come up. Not a word, mind ye, till ye see something."

Sevier crawled closer, until, by kneeling, he could detect the movement of a horse on the trail. Raising his rifle, he fired. The animal dropped, shot through the head. The rider, thrown violently to the ground, quickly identified himself by cursing volubly as only Red Hajason could curse.

Sevier, although deeply regretting his lead had killed the horse instead of its master, thus distracted the outlaws from their purpose of searching the woods in the vicinity of the ledge. He began falling back, slipping noiselessly from tree to tree, while Hajason yelled for his men to dismount and give chase. The men obeyed but displayed a strong inclination to keep well together. Such a daring attack could have been made by but one man, Chucky Jack, whose woodcraft was superior to that of an Indian's.

"—— ye for white-livered hounds!" roared Red Hajason. "Spread out! A hundred pounds to the man what fetches me his head!"

Stimulated by this offer and spurred on by their fear of their leader, the men lengthened the line, and Sevier knew he must give ground in earnest. He was in a peculiar predicament, for his task was increased two-fold by the appearance of Hester's horse. He must adhere to his original plan of securing assistance; the safety of the girl demanded that. Yet he must remain in contact with the gang or the men would become discouraged at their lack of success and return to investigate the east side of the trail.

To find succour under the circumstances would demand something of a miracle. Any band of Cherokees in the neighbourhood would scatter and take to cover when they heard the sound of the chase. He had counted on

finding a village, unsuspected by the outlaws, and by a diplomatic “talk” enlisting the aid of the warriors. The precipitate pursuit eliminated any chance of finesse. Could he play the game until nightfall he might find it possible to double back and lead the Tonpits north.

Against this manœuvre bulked the obstacle of the horses and their guard left in the trail. Once the outlaws lost him they would return to their animals, arriving coincident with his return to the ledge.

“Devil of a mess!” Sevier inwardly raged as he knocked the legs from under an outlaw closing in on his right. “Held up by these scum after standing off both the Creek and the Cherokee Nations! If it wasn’t for Miss Elsie I’d love to stay round these parts till there either wasn’t any Chucky Jack or there wasn’t any outlaws.”

His shot at the man on the right brought the gang forward in a wild rush, each eager to sight the fugitive before he could reload. Sevier raced for his life until he gained enough leeway to pause and recharge his rifle. He had barely finished when a rustling behind him sent him to the ground, his gun levelled.

“*Wa-ya!*” softly called a voice.

“*Aniwaya!*” joyfully hissed Sevier, creeping forward. “Man of the Wolf clan, where are you?”

A copper-coloured form rose almost at his elbow. The borderer recognized Bloody Mouth.

“Little John never knew the hunting-call of the Wolf could sound so sweet,” whispered Sevier.

“Tsan-usdi is chased by dogs,” growled Bloody Mouth, his eyes flaring with blood-lust. “I will stick my ax in their heads.”

Drawing the warrior back as the outlaws advanced, Sevier hurriedly asked:

“Where are the Cherokees? I want warriors.”

“You must travel till sundown to come up with them,” was the discouraging rejoinder.

“That will not do,” muttered Sevier. “Bloody Mouth will do as his brother says?”

“He will. By nightfall his wolf-call will bring many men of his clan. Then we will hunt down and break off the heads of Tsan-usdi’s enemies.”

“I can not wait. There is a white woman I must take north. Take my place and keep falling back. Wear my hat and hunting-shirt but do not let them

see you if you can help it. If they do see you they will think you are Little John. Do not speak.”

“But I can shoot?”

“Ay, and shoot to kill. Lead them far. There are many horses back on the trail. They shall all be yours.”

“*Siyu!* I feel my medicine is very red,” gloated Bloody Mouth, slipping on the shirt and taking the hat.

With this decoy to take his place Sevier sprinted away to pass around the north end of the outlaws’ advance. Occasional shouts and much rifle-fire kept him informed as to the continued success of his deception. Bloody Mouth was retreating, and the few fluttering glimpses the horse-thieves caught of him convinced them they all but had Chucky Jack in their power.

A crackling among the bushes near by caused Sevier to drop into a hollow and draw his knife. A man in buckskin, evil of face and panting with eagerness to work behind the fugitive and slay from ambush, passed close to the borderer. Only the safety of the Tonpits prevented him from stopping the outlaw. In another five minutes the fugitive knew he was behind the line of searchers. Between him and the trail there could be no menace except as he might encounter a straggler.

His return was unimpeded and, cautiously thrusting his head from cover, Sevier beheld two-score horses and five guards. He was surprised at this show of strength, having believed there could not be more than a score of outlaws at the most. A new and daring plan formed in his mind; to rout the guards and run off the animals would be a noble counter-stroke. Without their animals Hajason’s men would feel helpless.

He carefully shifted his position, preliminary to covering the guards with his rifle and demanding their surrender, but was interrupted by a commotion in the bush above him. The guards observed it and raised their guns; then they relaxed as Red Hajason and Hester stepped into the trail and slowly walked toward the borderer’s position.

“I tell ye, the major’n the woman’s back where my hoss come from,” persisted Hester. “To —— with Chucky Jack. Whistle yer gang back an’ let’s grab ’em.”

Hajason smiled cynically and retorted:

“D’ye s’pose I didn’t have brains ’nough to know they was back there? That’s why ye run into me on comin’ back here. We both had the same notion, I reckon. Sevier’s out of the way, bein’ chased toward sundown. His

goin' takes the men out of the way. It gives us a chance to git the major'n his girl an' light out. Old Tassel's ag'in war. That means Chucky Jack will have plenty of time to fetch his riflemen down on me. I've been lookin' for it for more'n two years. I'm through with this country. Me for the Creek Nation an' the money McGillivray will pay for the man an' woman. Then for New 'Leans. Game's played out on the Hiwassee. Too many —— settlers crowdin' in."

"Where do I figger in the money McGillivray pays ye?" curiously asked Hester.

"I'll give ye five hundred dollars."

"——! An' after me fetchin' 'em to ye!"

"Ye fetched 'em 'cause ye couldn't handle the game yerself. It was me that risked my neck in goin' to McGillivray. Then I got to square some of the men."

Hester laughed mockingly.

"Ye'll take these five men, mebbe. An' after ye strike the creek border they can carry in one eye all ye give 'em. Gimme a thousand an' we'll round up the Tonpits, bunch the hosses an' ride for the Coosa."

"A thousand! Ye're crazy. After Polcher dips his dirty paws in, what'll be left for me?"

"Polcher?" gasped Hester, rubbing his chin. "Huh! So he's down there. I don't reckon I care for to see Mister Polcher. He must feel nasty the way I fetched the Tonpits to ye. An' he's sure told McGillivray the trick I played. I ain't hankerin' to see McGillivray, neither. Gimme the five hundred now."

"What do I git for the five hundred?" sneered Hajason.

"I'll help round 'em up an' help run 'em off till we strike the lower towns. I've got some good friends there."

Hajason stroked his beard thoughtfully; then he promised—

"As soon as we git the man an' woman on hosses an' ready to cut an' run I'll hand over."

Hester's visage grew dark with passion, but he feared Hajason and smothered his rage and reluctantly agreed:

"Ye drive a fussy bargain. But I'll agree, providin' ye can pay me the minute we catch 'em."

Hajason tapped a bulging belt under his hunting-shirt and assured:

"I've got it with me. Don't fret any. I've been lookin' for the game to bust up an' always go loaded. It's yers once we nail 'em."

“All right,” said Hester, catching a horse and mounting.

Red Hajason climbed into a saddle and ordered the guards to take the horses down the trail a mile.

“We’ll save time pickin’ ’em up there,” he laughed.

“There’ll be some pretty profits out of the nags an’ the saddles,” mused Hester. “S’pose I come in on that?”

“S’pose ye don’t, an’ save yer breath,” snarled Red Hajason. “Ye’re lucky I ain’t found no fault for the way ye let them two slip through yer hands while I was gone. I’m a fool to give ye even five hundred.”

Hester sighed and rode beside Red Hajason and remarked:

“Wal, if ye feel that way ’bout it, I reckon I won’t say nothin’ more. I’ll jest take all ye’ve got.”

He had pistoled his man before Sevier could guess what was coming. The borderer raised his rifle; then he lowered it as the five guards sounded a shout of rage and started for the assassin. The last Sevier saw of Hester the bully was galloping the two horses up the trail while he held Hajason’s body in the saddle and unfastened the heavy money-belt.

After the guards had pounded by his place of concealment Sevier darted across the trail. The rearmost guard happened to glance back and see him. He wheeled about with a yell of warning to his mates, but the four swept on to kill Hester. The cry was answered from the woods, however, and Sevier dived into cover just as the outlaws returned from chasing Bloody Mouth.

The borderer had no idea of leading the gang to the ledge, and at once he endeavoured to work north, parallel to the trail. The outlaws pressed him close. He shot one and was instantly engaged by two others. Clubbing his rifle, he knocked one senseless, whereat the second lost all stomach for the fight and fled. The delay permitted others to come up. Dropping his empty gun, he snatched up the rifles belonging to the dead man and his senseless mate and discharged both pointblank at his assailants. They fell back in confusion at this unexpected reception, and the borderer leaped into a thicket armed only with his knives.

Frantic cries from the trail, followed by a volley of rifle-fire, checked his flight and turned him back to investigate. As he emerged into the trail a horseman threw up his rifle, only to have it knocked aside by Kirk Jackson.

“John Sevier!” he yelled. “John Sevier without his shirt!”

Chucky Jack beheld his riflemen scuttling into the woods and out again in the process of running the horse-thieves to cover. On the ground were a

dozen dead outlaws and two settlers. Stetson was standing beside his horse, tying a bandage about his arm by using his teeth, the process sadly weakening his emphatic sentiments concerning all “varments.”

“Hester got away!” panted Sevier, throwing himself on to a horse. “He went north—”

“We came from the north. We met him,” gravely informed Jackson. “We’d been here sooner, but the men formed a ring and he and I had it out. I found this on him.” And he touched the money-belt strapped outside his hunting-shirt. “It’ll help raise the militia you’re going to need. Now for Red Hajason—and Elsie!”

“Hajason is on the ground here somewhere. Elsie and her father are near. Round up the rascals in the bush and I’ll fetch her to you.”

“No; I’ll go with you. Stetson is wounded, but he can handle the fighting,” cried Jackson.

A shout from Sevier, and Major Tonpit and his daughter descended from their hiding-place. Tonpit was stupefied by the defeat of his schemes and showed neither resentment nor interest in the young people’s public avowal of their shameless preference for each other’s arms.

“Creeks fooled. Cherokees quieted for a time at least. Spain blocked. Hajason wiped out,” checked off Sevier as he rode ahead with the despairing major by his side. “Now for Bonnie Kate and the building of the new State.”

Escorted by two thousand men in buckskin, the delegates met at Jonesboro on August twenty-third and voted that the people should elect fifteen representatives, who were to write a constitution for the new State and organize its Government. The North Carolina Legislature met in November and repealed the Cessions Act and granted all that had been asked in the Jonesboro petition. But the fifteen representatives proceeded, nevertheless, and created the State of Franklin with John Sevier as governor, thereby constituting one of the most unique chapters in American history.

The new State endured for three years, then passed out of existence, to be recreated in time as Tennessee. How Sevier was outlawed by North Carolina, put on trial for high treason and rescued from the court-room in a most amazing manner; how he was appointed brigadier-general by Washington, unanimously selected six times as governor of Tennessee and elected three times to Congress is told in history.

How in his last years he was often visited by John Watts and other chiefs, with whom he had fought, and how they partook of his hospitality and profited by his kind advice, rounds out a career seldom, if ever, equalled in all border chronicles.

THE END



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Transcriber's note

Silently corrected typographical errors and inconsistencies; retained non-standard spelling.

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